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THE POLITIC

Spring 2008 A Yale Undergraduate Journal of Politics Volume LXIII, Issue VI

IMMIGRATION

Huddled masses in the 21st century

Featuring

Tom Tancredo
U.S. Representative

George Packer
The New Yorker

F. James Sensenbrenner
U.S. Representative

Geri Smith
BusinessWeek

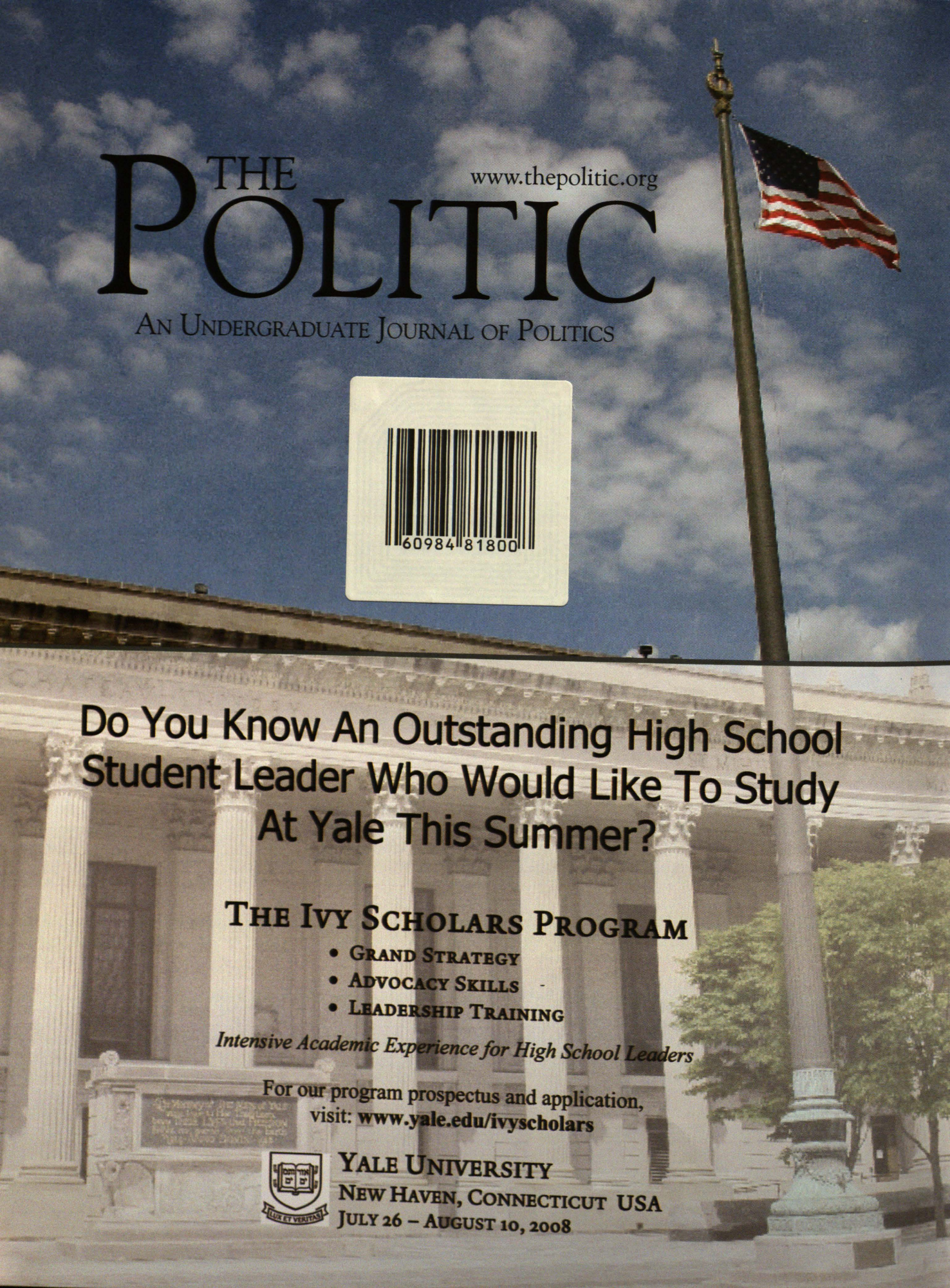
Also With

Peter Beinart
Council on Foreign Relations

William Odom
Former Director, National Security Agency

Mike Gravel
Former U.S. presidential candidate

Tim Weiner
The New York Times



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IMMIGRATION | THE POLITIC

Huddled Masses in the 21st Century

Spring 2008 - Volume LXIII, Issue VI

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Spring 2008

Give me your tired, your poor,
Your huddled masses yearning to breathe free,
The wretched refuse of your teeming shore.
Send these, the homeless, tempest-tost to me,
I lift my lamp beside the golden door!
-Emma Lazarus, The New Colossus

Dear Reader,

The passage above, written by the American poet Emma Lazarus, was engraved onto the Statue of Liberty one hundred years ago during the height of immigration to Ellis Island. While the phrase decorates one of the greatest emblems of American freedom, its true significance remains contested even today. The current debate over immigration reform is as much a struggle about conflicting American historical narratives as it is about contemporary disputes over policy objectives. Republicans and Democrats alike have framed the debate in their own historical terms, and these perspectives underlie distinct attitudes in America's looming immigration debate.

In this issue of The Politic, we hear from all sides. Congressman Tom Tancredo (R-CO) urges that America's southern border must be secured immediately, arguing that policymakers have a choice between two paths: "to actually hold together a nation or to split apart into a lot of Balkanized pieces." Gerri Smith of BusinessWeek, who has reported extensively on the Bush administration's proposed "virtual fence," argues that despite our expensive attempts to "secure our borders," this simple promise will undoubtedly encounter complications. Fences, Smith argues, are simply too easy to breach.

The gridlock in the debate over border security makes it nearly impossible for policymakers to address other pressing issues surrounding illegal immigration. With nearly 10 million illegal immigrants living in the United States, problems have developed on a number of fronts, ranging from national security concerns to the plight of refugees waiting for U.S. citizenship. Although the May 2005 Kennedy-McCain Immigration Bill seemed to be a promising bipartisan effort to bring consensus to the issue, it resulted in nothing short of an ideological backlash from many Republican voters who, based on their understanding of what it means to be American, opposed any notion of "amnesty."

The immigration debate raises bigger questions about the meanings of American "conservatism" and "liberalism," and the National and International sections of The Politic explore these questions. The death of William F. Buckley, Jr., founder of the modern conservative movement, leaves Republicans in an ideologically precarious position. When Buckley visited Yale in the fall of 2006, he called for a "repristineated vision" for the Republican Party. Peter Beinart of the Council on Foreign Relations spoke to The Politic about similar challenges facing Democrats.

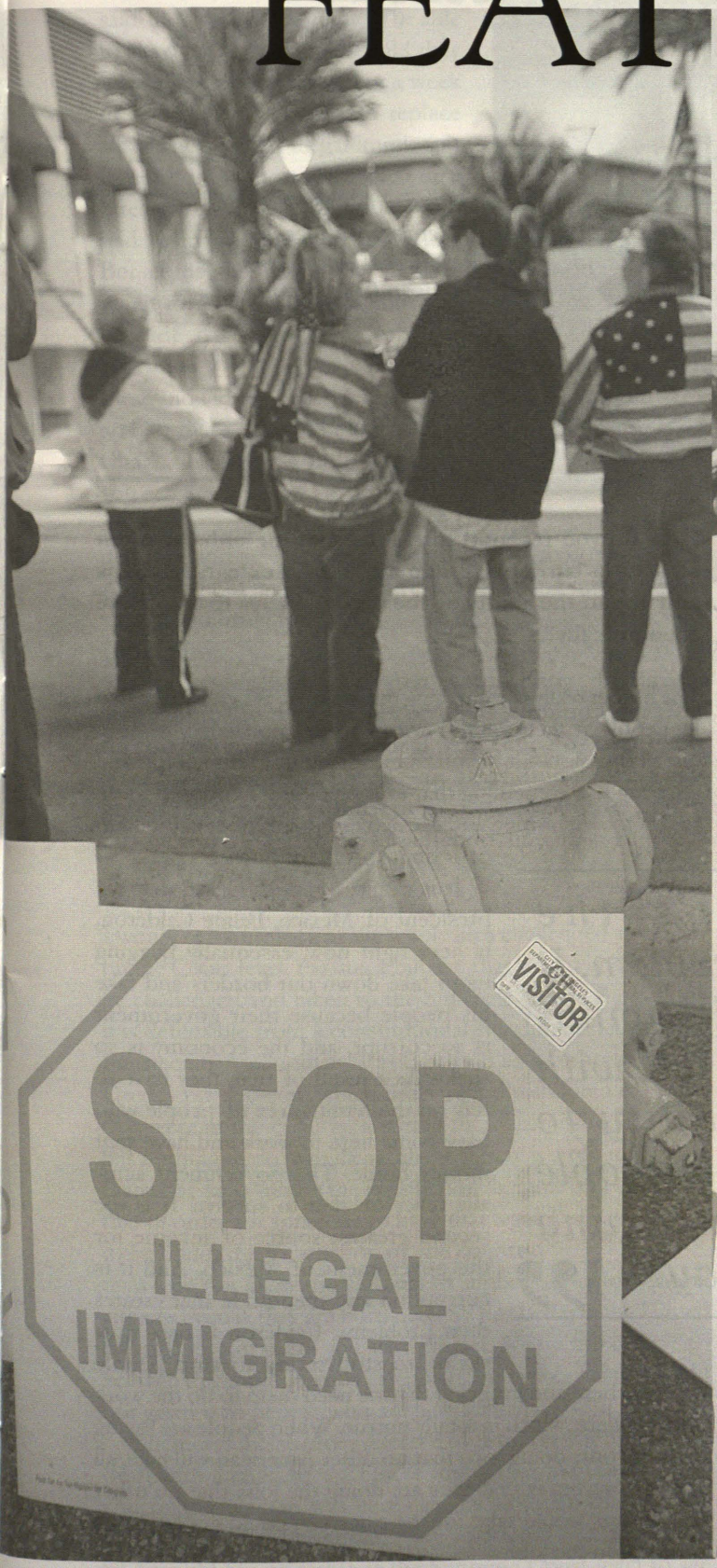
As Americans search for answers on what to do about the "huddled masses," I hope this issue of The Politic sheds light on the immigration debate and raises new questions about the meaning of an American social and political identity.

Sincerely yours,

Maggie Goodlander

Maggie Goodlander

FEATURES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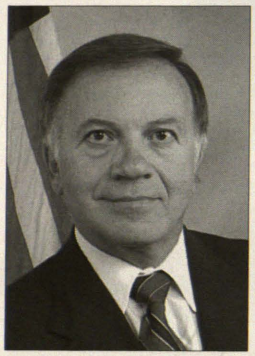
Holding Together a Nation

An interview with Tom Tancredo



Conducted by Rebecca Yergin

Congressman Tom Tancredo (R-CO) represents Colorado's 6th Congressional district in the United States House of Representatives. He is a member of the Foreign Affairs and Natural Resources Committees and the founder and former chairman of the bipartisan House Immigration Reform Caucus.

You have strongly opposed many of the plans put forth for comprehensive immigration reform in Congress, including the recent Kennedy-McCain Comprehensive Immigration Reform Bill, which you described in 2007 as "the worst piece of legislation to come down the pike in a long time." In a broader sense, what is your primary concern with such a proposal?

The primary concern I have had with Kennedy-esque legislation—because there are certainly others besides Kennedy who have introduced similar pieces—is that they all contain amnesty for people who are here illegally. There are significant problems that emanate out of any sort of amnesty. One is the real damage that you do to the concept of the rule of law. Secondly, amnesty is a slap in the face to all of the people who have come here the right way and those that are waiting to do it the right way. Amnesty really is an insult to all those people. They spend a lot of money and a lot of time doing it the right way only to see that if they had snuck into the country, they would have been given almost all of the same benefits. It is very disconcerting, I think, and it is very bad public policy. So, that is the main concern. There are a lot of others, but with Kennedy and the folks who support him, that is the primary problem.

> *"That's the whole problem. It is not with immigration; it is with our inability to assimilate people who are coming here today."*

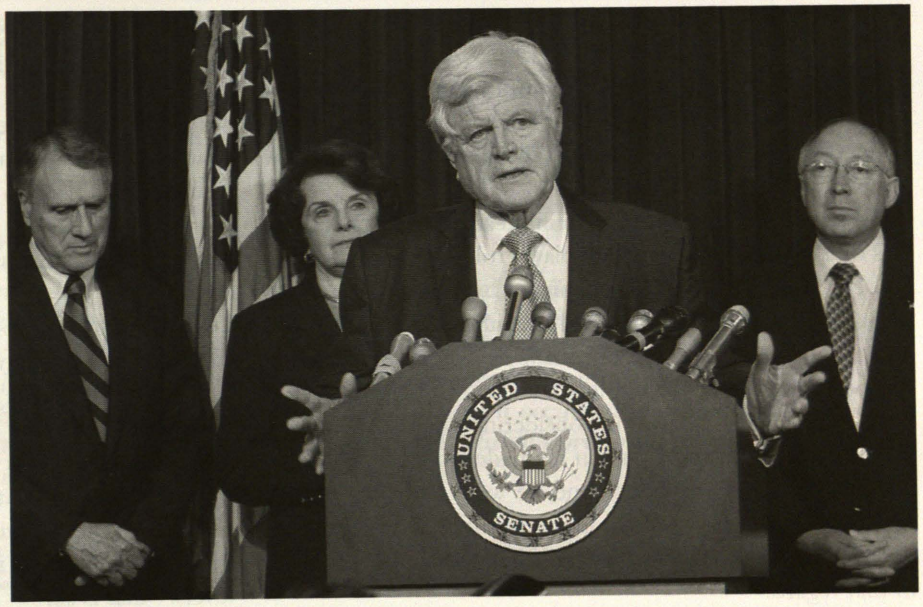
You have strongly advocated for a major increase in border security spending, a greater number of Border Patrol agents, and the extension of the security fence along the U.S.-Mexican border. You stated in a 2006 Washington Post interview, "Good fences make good neighbors." How do you respond to claims that the enhancement of such a barrier will damage U.S.-Mexican relations and impair the ability of the two countries to cooperate economically?

The border really is something that matters. When it is crossed by people at their whim—without our knowledge, without our permission—it becomes meaningless. Defending it and securing it is something that every nation is supposed to do for their own border, and Mexico essentially does a good job of it on its southern border.

It is ironic, to say the least, that the president of Mexico, Felipe Calderón, is here right now, essentially begging us to take down our borders and take his people because their government is so corrupt, and the economy is so shaky. As a result of that, they have to rely on the remittances of people who have come here to work and have sent money home. The government actually relies on that to survive. It is the second greatest source of income for the government of Mexico. And it is corruption and ineptitude that creates their problems. Calderón is here now saying to stop trying to stop people who are here and implying that we need them to do the work they do here, which is totally untrue. When people are saying they are only doing jobs that no other American will take, all they are saying is that they are doing the jobs that no other Americans would take for the price you could get an illegal alien to do the job.

There was a great story in the *Wall Street Journal* a couple of months ago about a chicken-processing plant in Georgia

that had been raided because all of their employees were illegal, and they said they were never going to be able to survive that. Lo and behold they were able to open up within a week or two. They were able to replace almost all of their illegal immigrant legal labor—almost all of their new hires were African Americans who had been unemployed for years. But all they had to do was go from seven to nine dollars per hour and provide transportation from the community to the plant. Most of these individuals did not have cars and so that's what they did. Guess what? The plant is now open. So, you see, it's a matter of economics; it's purely a matter of supply and demand, and we can find plenty of people to do these jobs. And for the ones that we can't, we can bring in the people we need to bring in.



U.S. Sen. Edward Kennedy (D-MA) discusses border security and enforcement provisions proposed in the Senate immigration bill, as Sens. Jon Kyl (R-AZ), Dianne Feinstein (D-CA) and Ken Salazar (D-CO) look on during a news conference May 24, 2007 in Washington, DC. Rep. Tancredo's main concerns with Kennedy's most recent work and other pieces of "Kennedy-esque" legislation are that these proposals contain amnesty for people who are in the United States illegally; amnesty damages the rule of law and insults those immigrants who have entered the U.S. by legal means, he argues. (Alex Wong/Getty Images)

You co-sponsored a bill that would deny "birthright citizenship" to the children of illegal immigrants. How do you reconcile this proposal with concerns over Fourteenth Amendment rights—an amendment that guarantees: "All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States…"?

I would certainly look at the whole idea challenged at the Supreme Court level. Passing a bill like that would immediately be challenged and taken to the Supreme Court. But I think it is defensible from a constitutional standpoint because the Fourteenth Amendment was designed as a response to the Dred Scott decision, which deals with the children of slaves that were in the country, assuring their citizenship status. It has nothing to do with illegal aliens. There is a reference, as a matter of fact, "under the jurisdiction thereof," which means that in order for someone to have that legal status, they have to be under the jurisdiction of the country.

We do not allow the children of ambassadors to become citizens even if they are born here. So just being in the United States does not mean you are a citizen. We do not grant citizenship to people in many categories, and we certainly should not grant it to people who are here illegally.

There was a case often referred to from the late 1800s that dealt with a child of a Chinese immigrant. At the time, of course, that person was here illegally although that sort of "illegal status" did not exist. And, so, it's not the same at all. So I would like to test it at the Supreme Court level to see its ruling about illegal immigrants.

Turning to the current presidential election, what role has immigration played in this election and why has it been more of an issue with the Republican candidates, while the Democrats have addressed it less?

Let me put it this way: I have always had two huge problems trying to get this issue addressed here in the Congress. One, the Democratic Party saw illegal immigration as a source of potential voter replenishment for them—it replenishes the pool of Democratic voters. It enhances it, even though they are not supposed to be able to vote, but, of course, they do. That is one reason why the Democrats push so hard for amnesty so that they will have illegal immigrants in their pool. Illegal immigrants vote, generally, for Democrats. Most immigrants are big-government folks who believe in the welfare state. Even though they come with other attitudes about family and value hard work, they will still vote for big government. That is something Democrats know to be the case, and that is why they want to keep the borders open.

On the Republican side, they saw illegal immigration as a source of cheap labor. And the combined opposition to immigration reform made it difficult to ever get anything done. It is now been percolating up to the point where Republicans have to deal with it, mostly because I made them during the

debate, anyway. They didn't want to—nobody wanted to—but that was my purpose. That was the whole reason why I ran. In the course of eight months, the rhetoric changed dramatically. And it did so because the Republicans have become more concerned with the increase of illegal immigrants in the country.

Even the Democrats are in an interesting situation. I think it is one of the things that will play a role in the election because even McCain has now changed his position regarding illegal immigration and has said that the McCain-Kennedy amnesty bill was the greatest mistake he ever made. I think it will become an issue, and I think it is one that the Democrats have to be a little careful of considering what happened to former Governor Spitzer when he made a plan to get illegal immigrants driver's licenses. And he went from 58 percent approval rating to something in the twenties. And even Hillary Clinton had to back off her half-hearted support for him in that regard.

So it definitely affects Republicans and Democrats, and we'll see how much of a role it will play in the general election. I think it will play an important role.

At this point, do you see any hope for compromise? While the course that immigration reform takes will no doubt depend on who enters the White House next year, do you have any insight into the future of immigration legislation?

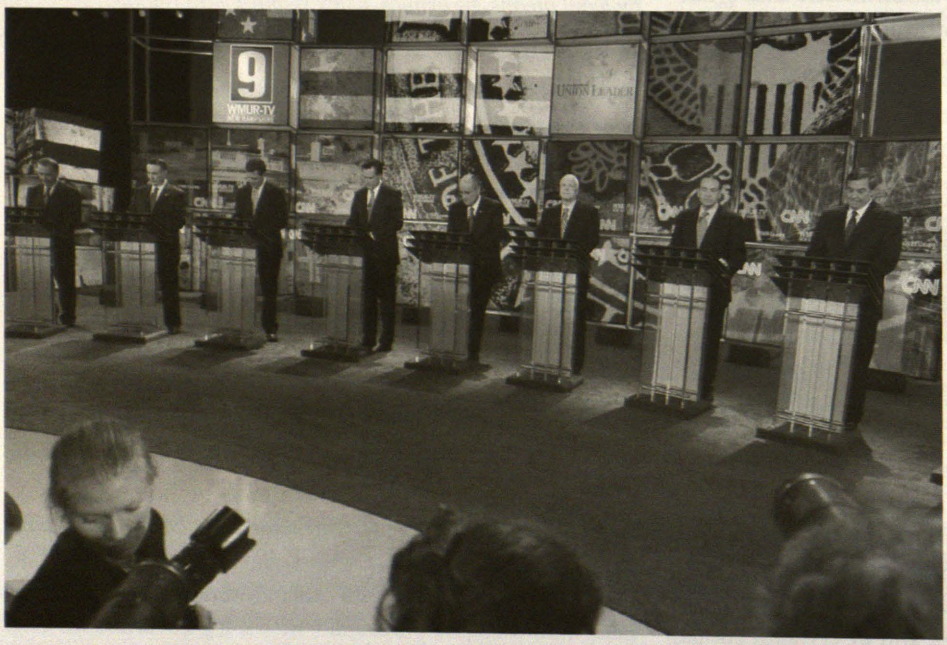
I don't know. But, the thing I am relatively sure of is that no matter who ends up in the White House, it is going to be difficult for this issue to be settled.

Do you think this issue can ever be settled?

I think it is difficult for this issue to ever get settled, regardless of whether it is Obama, Clinton, or McCain.

The people of this country are really concerned about this. That concern will be expressed in a variety of ways—either here in the Congress by their various elected representative or in their various states like Oklahoma, Arizona, and Georgia. All of these states in the past have passed very tough laws regarding illegal immigration. It will continue at various levels—that is all.

In the June 5, 2007 presidential debate, you argued, "What we're doing here in this immigration battle is testing our willingness to actually hold together as a nation or split apart into a lot of Balkanized pieces." Why do you think the increasingly changing ethnic composition of the United States will threaten its existence, when this country has historically been a "melting pot"?



Republican presidential hopefuls debate at Saint Anselms College in Manchester, New Hampshire on June 5, 2007. Rep. Tancredo (R-CO) maintains his purpose in running for president was to make the Republican Party deal with the issue of immigration, and he argued in the New Hampshire debate, "What we're doing here in this immigration battle is testing our willingness to actually hold together as a nation or split apart into a lot of Balkanized pieces." (Photo by Darren McCollester/Getty Images)

We have been able to successfully assimilate people from all backgrounds for a long time. It has only been the last 40 years or so that that process of assimilation has begun to break down. It has broken down primarily because of the cult of multiculturalism that permeates our society, expressed often on campuses like Yale, in ways that encourage the "Balkanization of America." I remember a book written in the early 1990s by a liberal named Arthur Schlesinger, Jr. and it was called The Disuniting of America. He warned of what we are seeing right now, frankly, the "Balkanization" of the country based on ethnic and linguistic lines.

That's the whole problem. It is not with immigration; it is with our inability to assimilate people who are coming here today. It is their unwillingness to assimilate and our unwillingness to push it. That's the crux of the matter. And, if we were that melting pot—if that melting pot were still working—believe me, I would not be interested in making this a huge issue.

Fencing the Border

A dubious attempt to deter illegal immigrants

By Geri Smith

Geri Smith is BusinessWeek *magazine's Mexico Bureau Chief and Senior Correspondent for Latin America. She has lived in the region for 28 years, covering economic policy, business and industry, and politics. During her time in Mexico, Smith has taken many trips to the U.S.-Mexican border, the most recent of which occurred in January during the final testing of the Bush administration's proposed "virtual fence."*

Stretching for nearly 2,100 miles from the Pacific Ocean to the Gulf of Mexico, the U.S.-Mexico border meanders through grassy plains, steep canyons, rattlesnake-infested desert terrain, a muddy river with treacherous currents, and people's backyards. Apart from the busy official crossings, where billions of dollars in trade and hundreds of thousands of commuters cross daily, much of the border is unmarked and unfenced. With the exception of prosperous San Diego County, there is little to indicate that this is the boundary of the world's richest nation: ramshackle trailer homes, dusty, unpaved roads, and payday loan shops give this dismal stretch of the U.S. the look of a hardscrabble developing country.

Yet, for many Mexicans and Central Americans, the U.S. border beckons: migrants refer to a popular crossing point near Sasabe, Arizona as "la puerta dorada"—the golden door—their gateway to a more prosperous future. The estimated half-million migrants who manage to sneak illegally into the U.S. each year are drawn by the prospect of jobs paying five times more than they can earn back home. For that, they are willing to risk their lives making the often dangerous journey across the borderlands; over the past decade, around 500 migrants a year have perished while crossing.

As the United States heads into a recession, public opinion is turning against undocumented migrants, believed to depress wages and take jobs that unskilled Americans might want. Even presumptive Republican nominee Sen. John McCain, who last year co-sponsored a comprehensive immigration reform bill that failed to pass, is now making a more simplistic promise to voters: he pledges that "as president, I will secure our borders" first. Democratic contenders Barack Obama and Hillary Clinton both advocate exploring high-tech solutions to boost border security. It's understandable that politicians believe they must show voters they are serious about solving the problem of illegal immigration, but the current focus on fence-building will achieve little if it is not accompanied by meaningful immigration reform that recognizes the strong economic and labor links between Mexico and the U.S.

> *"As long as the incomes of Mexicans remain just one-fifth of those of Americans, people will continue to breach the border, fenced or not."*

Building fences to keep unwanted migrants out is tempting, but it is a dubious proposition because fences are easy to breach, especially in remote areas that the Border Patrol cannot regularly police. Just 300 miles of fencing have been erected over the past 15 years, most of it clustered around a half-dozen main ports of entry along the southwestern border. That fencing, floodlit at night and monitored by video cameras, is designed to keep migrants from crossing in urban areas, where it is easier for them to quickly melt into the crowd. Congress in 2006 approved the Secure Fence Act, authorizing construction of another 700 miles of fences. But it's slow going: just 70 miles were built last year, with another 225 miles planned for 2008. Since President George W. Bush took office in 2000, the number of Border Patrol agents has nearly doubled to 14,900, supplemented by up to 6,000 National Guard troops, whose deployment ends this summer. The Department of Homeland Security credits the additional

fencing and manpower with helping cut apprehensions of migrants by 20 percent last year, to 877,000.

Recently, I traveled to Nogales, Arizona, just south of Tucson, to see if the new fencing was deterring migrants. Private contractors were finishing up a seven-mile-long segment of 15-foot-high barriers made of cement-filled steel tubes anchored three feet deep in the desert sand. Designed to resist blowtorches, climbers and the impact of a heavily-loaded vehicle, the fence looked pretty formidable. But when I witnessed a Border Patrol chase a few hours later, I realized there is only so much a fence can do. Smugglers driving a pickup truck packed with a dozen would-be migrants, pursued by two helicopters and five patrol cars in a high-speed highway chase, screeched up to the brand-new barrier, easily shimmied over and dropped to safety on the Mexican side. As one of the Border Patrol agents told me, "Border fences don't keep people out—they just slow them down."

Migrants from Mexico are arrested, as they try to sneak across the border in January 2008. While Smith was present for these migrants' arrest, she also witnessed a Border Patrol chase in which the vehicle got away. As one of the Border Patrol agents told her, "Border fences don't keep people out—they just slow them down." (Courtesy of Geri Smith)

Smugglers are ingenious: Some use blow-torches to cut door-size holes in the fence, to which they attach hinges and a padlock for regular use. Officials recently seized a truck retrofitted with extendible ramps allowing other vehicles to drive up and over any barrier. As Arizona Gov. Janet Napolitano has remarked, "you show me a 50-foot fence, and I'll show you a 51-foot ladder."

Fences are expensive, too, with one Army Corps of Engineers study estimating that erecting and maintaining a sturdy barrier along the entire border for 25 years could cost from $37 billion to $150 billion. In the 1990s, the government installed ground sensors and cameras to keep better track of would-be crossers. The Bush Administration hoped to harness that technology to create a "virtual fence" to substitute for some on-the-ground patrols, and it paid aerospace and defense contractor Boeing Corp. $20 million to build nine communications towers along a 28-mile stretch of the Arizona border to test the concept. The towers, rising 98 feet above the desert scrubland, are equipped with radar and infrared cameras that use Wi-Fi technology to transmit images and data to a command center in Tucson and to laptops installed in 50 Border Patrol vehicles. But the experiment was plagued by software and equipment glitches—cameras couldn't distinguish between coyotes and humans—and in February, Homeland Security scrapped plans to deploy the virtual fence along the Mexican and Canadian borders.

For more than a century, Mexicans have been crossing into the United States to work, with migration flows expanding and contracting in response to economic circumstances in the two countries. Under the World War II-era "bracero" program, some 4.2 million Mexicans worked six months each year in the U.S. on farms and in factories to replace American G.I.'s fighting abroad. When that formal program ended in 1964, illegal immigration began to rise.

In 1986, Congress granted amnesty to around 3 million Mexicans and introduced workplace sanctions for companies found to have undocumented employees. But the sanctions were ineffective, and in the early 1990s, when voters in California and several other states balked at providing education and health services to growing numbers of illegal immigrants, the Clinton Administration again turned its focus to border enforcement. A 14-mile-long double fence made of steel mesh and welded metal panels—surplus airplane landing mats from the Vietnam War—was built between San Diego and Tijuana, Mexico. It wasn't cheap, costing $9 million per mile, but it did dramatically cut the number of illegal crossings in that area, which led many to believe that fences were the solution. Yet, migrant flows simply moved to other stretches of the border, because demand was high: the American economy was booming and workers were needed to build, landscape, and clean thousands of homes, hotels, and shopping centers.

The terrorist attacks of September 11, 2001, prompted a

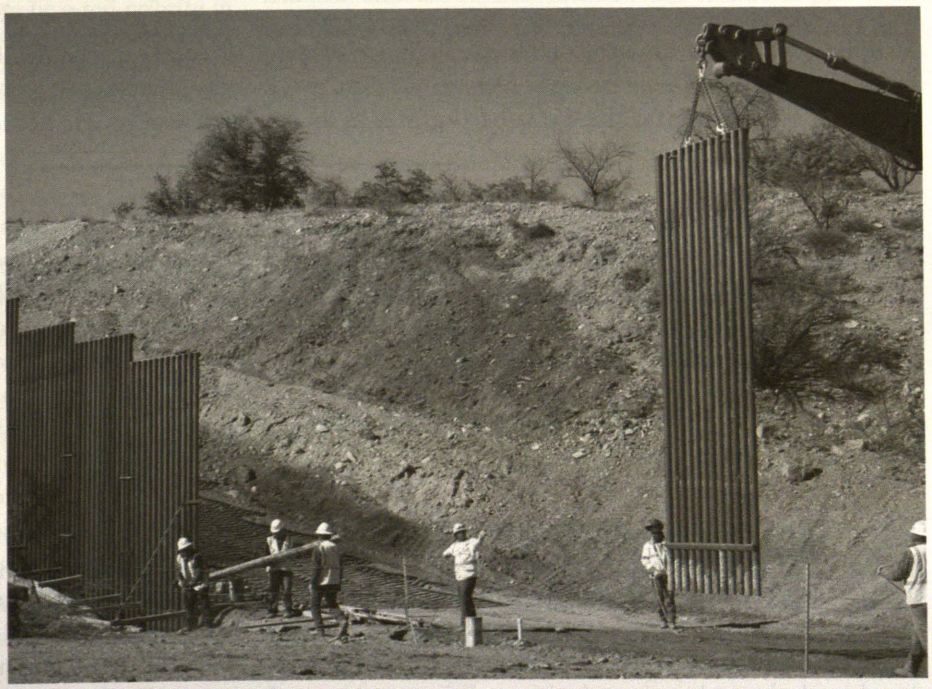
serious tightening of border security, though, and migrants who used to travel home periodically to visit family instead stayed put, paying smugglers known as coyotes as much as $3,000 per person to bring in their spouses and children to live in the U.S. Ironically, the expanded border fence, rather than keeping people out, may actually keep many migrants fenced in. And immigration experts estimate that one-third to one-half of the 12 million undocumented migrants in the U.S. didn't scale any border fence at all: they entered the country legally and then overstayed their visas.

Ralph Basham, commissioner of U.S. Customs and Border Protection (CBP), told a Congressional hearing in March that it may be impossible to meet CBP's own timetable for having "operational control" over the border with Mexico by 2011, in spite of $2.7 billion spent since 2006 and another $775 million requested for fiscal year 2008. That goal, he said, had assumed that comprehensive immigration reform would be in place by now. The bill that the Senate failed to pass last year would have created 200,000 two-year visas for temporary workers and offered a path to legal residence for migrants if they paid a fine and learned English.

As long as the incomes of Mexicans remain just one-fifth of those of Americans, people will continue to breach the border, fenced or not. Exaggerated sales pitches for the North American Free Trade Agreement (NAFTA) promised that the pact would dramatically narrow the wage gap, reducing migratory pressure, but that has not happened; Mexico consistently fails to create enough jobs for the 1 million young people who enter the work force each year. Certainly, the government could take steps to improve working conditions: Mexico's insufficient protection of independent labor union organizing has contributed to continued low wages by weakening workers' collective bargaining efforts. That has led to calls by both of the Democratic presidential candidates for renegotiation of NAFTA to strengthen its labor-protection provisions. If NAFTA is re-opened, however, Mexico will surely push for freer cross-border movement of labor.

President Felipe Calderón says building a border fence is not a neighborly solution and insists the U.S. should reform its immigration laws to "recognize reality, our complementary economies, and the importance of the free movement of labor to increase North America's competitiveness." Mexico, he says, cannot afford to continue losing some of its most enterprising citizens to the U.S., but at the same time, many Mexican communities have become dependent on migrant remittances from the United States, which reached $24 billion last year, outstripping foreign direct investment in the country. As the U.S. economy slows, affecting industries that employ undocumented labor, some Mexican migrants will return home In January, remittances were down 5.9 percent from the same month in 2007, the largest drop in 13 years, indicating tougher times ahead for migrants.

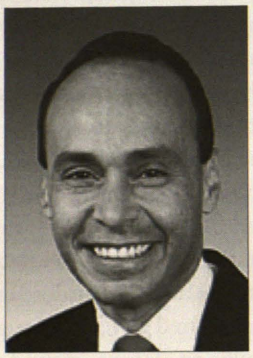
For many migrants, the writing is already on the wall. At a shelter in Nogales, on the Mexican side of the border, I met 21-year-old Ramiro, who had lived most of his life in Arizona but was deported after a minor traffic violation revealed he was in the U.S. illegally. The new border fence didn't worry him in the least: he planned to leave Nogales on foot at 3 a.m., walk seven miles to detour around the fence, and then hop a cargo train to Phoenix. Two days later, he made the 26-hour journey, and when I tracked him down on his sister's mobile phone, he cockily chalked up his feat to "Mexican ingenuity." He no longer had his job as a restaurant cook, though: the owner, fearful of losing his business license under Arizona's tough new workplace-enforcement rules, said Ramiro had to prove legal residence in order to work there. In the end, it wasn't the expensive new fence that had deterred him. P



Construction workers at the U.S.-Mexican border in January 2008 work on part of the fence that is supposed to keep unwanted migrants out. While 300 miles of fencing have been built in the past 15 years, and the Bush administration has authorized the erection of 700 more miles for this purpose, Smith explains that fences are easy to breach and often very difficult to police. (Courtesy of Geri Smith)

Fixing a Broken System

An interview with Luis Gutiérrez



Conduted by Eddie Fishman

Luis Gutiérrez (D-IL) is an eight-term U.S. Congressman serving Illinois' 4th District. The first Latino elected to the U.S. House of Representatives from the Midwest, Gutierrez has been a consistent advocate of immigrants' rights. He is currently a senior member of the Financial Services Committee, a member of the Judiciary Committee, and the chair of both the Democratic Caucus Immigration Task Force and the Congressional Hispanic Caucus Immigration Task Force.

In the summer of 2007, you and Congressman Jeff Flake (R-AZ) introduced the Security Through Regularized Immigration and a Vibrant Economy (STRIVE) Act, which addressed many of the key issues surrounding illegal immigration. What were your goals in proposing this piece of bipartisan legislation, and how did it differ from other pieces of immigration legislation introduced in the House and the Senate?

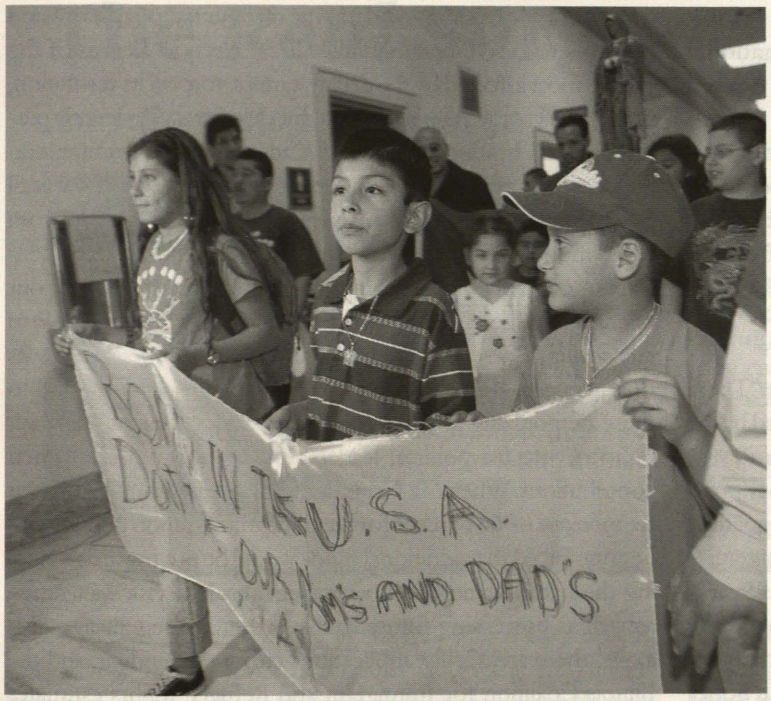
To truly fix our broken immigration system, any proposal must include three factors: One, a strong border security plan, two, a temporary worker program, three, a path to legalization for the millions of people who are in this country working and contributing to their communities. STRIVE would accomplish these goals, creating a system that allows people to come out of the shadows and work here legally, safely and humanely. It regulates future flows of workers. And it greatly enhances our border security through a combination of cutting-edge technology, improved cooperation and increased resources. My legislation offers real solutions to the challenges we face. It creates a system predicated on family values by developing laws that better value families—a system that keeps families strong and, most importantly, keeps husbands and wives, parents and children together. It is the only comprehensive bill that deals directly with the undocumented who are living, working and contributing to a better, more dynamic America.

STRIVE creates a system that is tough and enforceable—a system that would eliminate the exploitation and abuses that are ubiquitous in our underground economy. It also creates a system that is fair and just and which reflects the enormous contributions immigrants make every day.

> *"We are a nation of laws, and within those laws there must be justice and fairness."*

You have been a consistent supporter of a temporary-worker program, claiming that it would help fill the void in the workforce left by aging members of the baby-boomer generation. Critics of such a program argue that it would rely too heavily on government bureaucracy, and, consequently, that it is not a dependable option for bolstering the labor force. How do you propose that the government structures such a program so that it can be run efficiently?

I recently read in the *Wall Street Journal* that before a recent lettuce harvest, one grower took out ads in his local papers for fieldworkers. He needed about 350 workers. The grower got one reply. Just one reply. The Labor Department estimates that the total number of jobs requiring only short-term training will increase from 53.2 million in 2000 to 60.9 million by 2010, a net increase of 7.7 million jobs. The simple truth is that most of our aging, more educated workforce is unwilling to perform this type of labor. However, these jobs need to get done to keep our economy growing and our communities thriving. Under the legislation I have proposed, once the flow of labor is legalized, workers here and those who come in the future will not be second-class workers but legal workers with full labor rights. But I'm not proposing an unlimited flow. There must be caps, limits, controls, and screening—unlike the current system, which is uncontrolled, unlimited, and unscreened, and leads to illegal immigration. The overhaul I propose would make the new limits honest, enforceable, and realistic, and the levels can be adjusted based on economic conditions. Additionally, workers must have unprecedented protections, including wage protections; a mechanism to ensure that jobs are first offered to American workers; a prohibition on



After a press conference regarding the deportation of his Mexican mother by U.S. officials, eight-year-old Saul Arellano leads a march in the halls of the Rayburn building on Capitol Hill in Washington, DC, on September 12, 2007. Congressman Gutiérrez considers keeping families together to be a top priority in resolving the immigration issue, and he is deeply concerned that many immigrants in the U.S. are forced to wait long periods of time before being reunited with their families. (Paul J. Richards/ AFP/Getty Images)

treating those on temporary visas as independent contractors; a prohibition on hiring temporary workers in the midst of a labor dispute; visa portability so that workers can vote with their feet and change jobs; whistleblower protections; and a mechanism for immigrant workers to apply for permanent residence. Such protections are essential if we are to substitute the current unregulated flow of easily exploitable undocumented workers with a regulated, legal flow of workers with equal labor rights and an eventual path to citizenship.

Opponents of your positions on immigration issues have labeled you as an advocate of an "open-border" policy, and they have equated your proposed solutions to "amnesty." What is your response to the use of such terms and to what extent is this rhetoric accurate?

You know, "amnesty" is defined as "forgetting or overlooking of any past offense." I have never proposed legislation that does anything of the sort. What's more, I believe that to equate comprehensive reform to amnesty or an open-border policy, that allows anyone to get their papers, is totally incorrect, misleading, and very destructive to our work to resolve this issue. My goal is to end illegal immigration in a way that not only protects our homeland, but that also protects our economy and our hard working families. I want to do it in a way that reflects and respects our nation's proud history of welcoming those who seek a better life. I think we can all agree that immigration reform is all about security. But I believe that security must extend from our homeland to our economy to our families.

I know there is a lot of focus on the border—and border security is important—but if you focus on border security alone, I think you miss the point. Immigration reform must be comprehensive. A fundamental part of that must involve innovative, tough, realistic and pragmatic security measures to secure our borders, end illegal immigration and prevent exploitation and discrimination in our workforce. However, we must also recognize that nearly half of the people who are in our country illegally came here legally and then overstayed their visas. We must address this issue holistically if we are going to end illegal immigration. So let's fine them. Let's fingerprint them. Make sure they learn English. Pay back taxes. But let's give them the opportunity to correct their status. I believe there should be a path to legalization. I believe it should be rigid and firm and narrow, but secure enough that those who work really hard—and show their commitment—can eventually earn their legalization.

On a Jun 24, 2007 episode of *Meet the Press* featuring you and Pat Buchanan, Buchanan said, maintaining that getting rid of the "magnets" that attract illegal immigrants to the United States is essential. One type of "magnet," according to Buchanan, is the host of corporations that are willing to hire undocumented workers. Do you think that the institution of a guest-worker program will prevent businesses from hiring illegal aliens who operate outside the system and are willing to work for extremely low wages? What should Congress due to punish the corporations that hire these undocumented workers?

When we introduced STRIVE last year, I proposed an electronic system for employers to verify the status of employees, increase penalties for hiring illegal aliens, and replace the current paper-based verification system with an electronic system and a fraud-proof card. These are necessary changes, but we can't stop there. Our current immigration laws provide just 5,000 permanent visas for low-skilled workers annually. This mismatch between demand and supply has given rise to the horrible situation we face now: 12 million undocumented immigrants, widespread abuse and exploitation in the workplace, and growing public frustration at the lack of control. I want to fix this in a way that is sensible, pragmatic, tough and realistic.

Republicans have contended that your positions on immigration reform pose threats not only to our national security, but also to our national unity. They have argued that relaxing immigration laws could divide the United States, creating a class of newly arrived immigrants who work blue-collar jobs and do not speak English fluently or have a sense of the United States' traditions. If Washington changes the laws to allow a more regular influx of immigrants into the United States, what will prevent this vision of a more divided U.S. from coming to fruition?

Let me begin to answer that by sharing a quote with you: "These newcomers are by nature unruly and can only be controlled by the rule of law." That's from a *New York Times* editorial from 1905. The newcomers they were writing about were Italians. My point is not that Italians were unruly. My point is that scapegoating, finger-pointing, bullying—is not new. It's as old as immigration itself. But this country is founded on a hard work and the dreams of immigrants. Almost all of us can trace our roots to a brave grandfather who risked his or life to come here, or a grandmother who lost every security and comfort of her homeland in hopes of making a better future for us, the next generation. Like the immigrants who built our country, the vast majority of today's immigrants are working and contributing to their communities. They are upstanding citizens and the type of people we want as our neighbors. They are intertwined in our lives, and I mean that in a good way.

They shop next to us in the grocery store. They sit with us in the same pews at church. Their children go to school with our kids. Many of them speak better English than I do. I make this point because immigrants are part of the fabric and foundation of what makes our nation great, and they must continue to be so.

How do you think that the immigration issue is shaping the 2008 Presidential election? Considering your views on immigration, is there a particular candidate in the election that you think will be strongest on the issue?

I have endorsed Senator Obama. His fight started many years ago as a community organizer, and now in the Senate, Obama has become a leader for immigration reform. In the immigration debate, I think he understands more than anyone what it feels like being used as a scapegoat just because of one's background or last name. I'm confident that he'll carry us towards a resolution in the White House.

With November 2008 approaching, the media coverage of the immigration issue has largely been linked to the election and the positions of the candidates. What can you tell us about Congress's current efforts to deal with the issue? Is there hope that anything will get done before the next President takes office?

You raise a good point—and it's true that our national discussion on immigration is inherently linked to the election. Because if the people most affected by the debate cannot vote on its resolution, then there's something broken in our democracy. I recently participated in a hearing with the U.S. Citizenship and Immigration Services director, Emilio Gonzalez, who said that from now until 2010, the agency will take an average of 18 months—up from seven months or less last year—to process petitions for citizenship. Immigrants who are living, working and contributing to our country have been deeply criticized, simply for wanting to earn citizenship. These immigrants deserve a system that processes their requests efficiently, and which allows them to respond to these demonizing and xenophobic attacks by exercising their right to vote for political leadership who will represent their contributions. When Mr. Gonzalez implemented a 2007 midyear fee increase of 66 percent for handling immigration documents, he announced that additional funds would be put towards reducing the naturalization and permanent resident visa wait times, as well as preventing future backlogs. Yet in the Chicago area alone, there are 37,480 applications currently pending, and the Illinois Coalition for Immigrant and Refugee Rights estimates that several hundred thousand applications nationwide will not be processed in time for the November 2008 presidential elections. I am committed to doing everything possible to remove roadblocks to citizenship, including holding the responsible agencies accountable for a lack of preparation to accommodate the anticipated rise in applications. In the coming weeks, I'll continue to scrutinize what appears to be a complete failure to efficiently adjudicate these people, who desperately want to become citizens and contribute to a better, more dynamic America.

It seems as though Congress cannot make any progress on the immigration issue without some degree of cooperation. In a June 6, 2007 article in the *New York Times*, you were quoted as saying: "Immigration is a life and death issue. Each day that goes by without action means more people will die in the desert." To what extent do you think Republicans and Democrats are willing to compromise on this "life or death" issue, and how likely is it that they will pass significant reforms in the foreseeable future?

Immigration reform is exactly the type of issue the American people want us to address, regardless of their party affiliation. I think if you look at what we were able to accomplish with the STRIVE Act, you'll see that bipartisan cooperation is possible. You probably don't get two people on further ends of the ideological spectrum than Rep. Flake (R-AZ) and I, but we got in a room, rolled up our sleeves, made compromises and emerged with a bipartisan bill that deals directly with this issue. The only way we are going to solve our nation's immigration crises is in a bipartisan fashion, and I think if we tone down all the politically charged rhetoric—we can get this done. Will it be tough? Yes. But this issue is too important to not address.

The *Real* Surge

An Interview with George Packer

Conducted by Sam Ayres

George Packer, Yale '82, writes about foreign affairs, politics, and books for The New Yorker. A former Guggenheim Fellow, he is the acclaimed author of several books including, most recently, The Assassins' Gate: America In Iraq, *for which he received an Overseas Press Club book award. His play* Betrayed, *based on an article he wrote about Iraqis risking their lives to work for Americans in Iraq, recently opened in New York City at the Culture Project.*

Editor's Note: A hidden tragedy of the Iraq War is the forced displacement of roughly 4.5 million Iraqis, one sixth of the country's population, who have found themselves without a home since the beginning of the war. The U.S. Committee for Refugees and Immigrants calls this a "silent surge" with "no end in sight." Although the United States' presence in Iraq is largely responsible for this exodus, the American government has long ignored the refugee crisis. While grappling with questions about the progress of its war abroad, the United States must face the realities of this crisis and the possibility of permitting Iraqis to seek refuge within American borders.

New Yorker *staff writer George Packer published in 2007 an article entitled Betrayed in which he exposed the plight of the displaced Iraqis most forgotten by the U.S.—those who have taken great risk to work, mostly as interpreters, for the American government or American contractors. As a result of their work, these individuals have found themselves both heavily targeted by sectarian factions in Iraq and entirely unprotected by the United States despite their vital contributions to American efforts. The U.S. efforts to protect and resettle these Iraqis remain embarrassingly ineffective. Only a trickle of Iraqis have been allowed into the United States: from 2003 to 2007, only 466 Iraqis were allowed into the country, and in the 2007 fiscal year, only 1,608 Iraqis were resettled in the United States—out of the nearly 12,000 cases referred during that period by the United Nations High Commissioner for Refugees. The crisis and subsequent effort to resettle Iraqis employed by the United States have made salient the complex policies—and politics—surrounding immigration to the United States in the age of the War on Terror.*

The Iraq War has been one of the most privatized wars, and as such, many of the Iraqis who help the American effort are employed by for-profit companies contracted by the American government. One of these companies, Titan Corporation, which had a $4.6 billion Pentagon contract to provide translation services, reported in early 2007 that 257 of their employees who had worked as translators in Iraq had been killed in less than four years. How have contractors dealt with their 65,000 Iraqi employees who are targets because of their employment? What should be the corporate responsibility in ensuring the security and well-being of their current or former Iraqi employees, many of whom are now refugees?

Anecdotally, Iraqis have told me Titan essentially washed their hands whenever a problem came up. If an Iraqi needed paid leave in order to go underground during a hot period, it was denied. If an Iraqi needed to live on a base because his home—his own neighborhood—had become impossible to live in, it was denied. If an Iraqi was badly injured, it took a Herculean effort to get medical care and expenses reimbursed.

Basically, the military and Titan became a holding company scheme where no one was finally responsible because the military could say they were Titan employees and Titan could say it was just working for the military. There was no accountability, which is also what's happened in the case of the private security contractors. It's a way for the government to pass the buck to a company that itself is unaccountable. Titan has now been bought and rebranded, so now it's very hard to get a spokesman on the phone who will even say, "Yes, those are our employees." I tried to do that last year when I was writing my article about the interpreters, and Titan was no longer 'giving out statements,' and the new company, L-3, said, "Well, that was Titan." It's a situation where it's nobody's problem. And the Iraqis I've talked to who say very positive things about some of the Americans they work with, in the military especially, have nothing but bad things to say about Titan—and neither do the soldiers. The interpreters' problems become their problems somehow or other.

Titan, with that enormous contract you cited—I can't believe it's that much money—never managed to recruit and retain enough interpreters to go around for all the battalions we have in Iraq, so they were always shorthanded, always caught unprepared. And then when they started getting killed, in the cases I know of, families were not given compensation for the death of their loved ones, often because—and this will just boggle your mind—they were killed, for example, on their way to work or on their way home; they weren't on the base, so somehow according to the terms of the deal that meant they were no longer Titan's responsibility. It's a nightmare; the whole story is a sad nightmare and a shameful one.

One of the more than 1.2 million Iraqi refugees in Syria shows his passport and other papers as he waits his turn at a UNHCR office. In Syria, Iraqis who have fled the violence in their country gather at the UNHCR to register their names in a bid to be transferred to a third country. Only 1,600 Iraqis were resettled in the United States in 2007. (Louai Beshara/AFP/Getty Images)

One way to deal with this nightmare is for the American government to resettle these Iraqis in the United States. Although in February 2007 President Bush signed into law the Department of Defense Authorization Act—which includes a provision calling for, among other things, 5,000 Special Immigrant Visas to be available for Iraqis—the government continues to interview only about half of those referred, and only 444 Iraqis were resettled into the U.S. in February. Why do you think that there is still this delayed response?

You should add that another aspect of the amendment to the Defense Authorization would allow for the processing of Iraqi applications in Baghdad, which is really important because as it stands now they have to become refugees and take on the precarious lives in neighboring countries that we were talking about earlier before they could even be considered for an American visa.

The embassy has no consular section. They say it's for security reasons, but no one has given me a convincing explanation for why it would be impossible to set up a consular section in a secure way so that at least some Iraqis who have a special claim—such as these Special Immigrant Visa applicants—could apply without completely upending their lives twice because then they have to come back from Jordan or Syria and the answer takes months. It puts them through an enormous hardship that shouldn't be necessary.

But the question is why with all the legislation, with all the media attention, with all the advocates on The Hill trying to draw attention to it—why are the numbers so low? There are two reasons, and they are interrelated. The first is simply bureaucratic indifference. You have the Department of State and Department of Homeland Security moving at a glacial pace, hewing to rules and regulations that may make sense from within the bureaucracy but are absurd hardships viewed from any common sense perspective. They put out encouraging sounding projections, but they fail to live up to them because they are unwilling to cut through their own red tape and bend their own rules enough to get people out.

But all of that is the secondary problem to the primary problem, which is that there is no political will to do it. It is not in the interest of a midlevel consular official or a former ambassador at the State Department or a Homeland Security official to cut through this. They're not getting signals from above—whether from the department secretaries or, most importantly, from the White House—that this is a priority. The way government works is if it's not considered a priority, if you don't get in trouble for not doing it, then you're not going to do it, since you could get in trouble for doing it—you could possibly let in the wrong Iraqi, or you could be seen as a troublemaker, someone pushing too hard.

It all comes back to the White House and the Oval Office. If George Bush were willing to say, "This matters to me—I want it done," it would get done; there's no doubt about it. But he hasn't done that, and I think it's because it doesn't fit the administration's version of the war, which is that the

war has made Iraq a better place and we're winning.

You mentioned the buck stopping at the Oval Office. In 1975 at the twilight of the Vietnam War President Gerald Ford was instrumental is saving 134,000 Vietnamese refugees, many of whom had supported the U.S., and for this reason feared retaliation. Do you believe a similar action by President Bush is the only way to resettle those Iraqis who have supported the American government in Iraq?

By the way, I don't think it needs to be seen as an acceptance of defeat, that's just the way political people think. I think it's going to take a change of administration. I have very little hope that the next year is going to move this substantially. It would have moved by now.

I have some hope that a new president who's less tied to failed policies and to an untenable public relations line might do the right thing, whether it's John McCain because he has a sense of military honor, as many soldiers do and feel that the interpreters are our battlefield buddies who need to be saved, or it's Obama and Clinton—they're already talking about it in their speeches—and I think both of them care about this issue and would act on it. But I don't expect much out of the current occupant of the White House.

You wrote recently in the *New Yorker* about what you call the "Guam Option"—what is it, and is it a possibility today?

It is possible, there is absolutely nothing practically standing in the way; again, it's a matter of political will. The "Guam Option," which is kind of my facetious shorthand, is to do what we've actually done in the past with Vietnamese in 1975 and with Iraqi Kurds in 1996. We organized airlifts. If we're worried about security—if that's the reason why it's taking so long to interview these people and make them jump through these hoops—why not get them to a safe place? Guam has processing facilities; Guam has lodging facilities that are still there for the Vietnam experience. Why not get them to Guam by C-130? And if it takes three or four months, process them there—they'll be safe, they'll be fed, and their families will be safe. And then, if they don't qualify, they have to find a way to get back, but if they do, we bring them to the U.S.

To me it's obvious; it's what the British are doing actually. The British recently announced an airlift, after taking the same benign neglect line we've been taking—they've reversed course. The Danes did this last year. They airlifted their Iraqi employees directly to Denmark; the British are going to airlift them directly to the U.K. We don't need to do that. We have other places if we're afraid of bringing people in before we have a chance to completely vet them—and the vetting is just unbelievably laborious and extensive and repetitive—but if we must go through it, then go through it in a safe place like Guam. There's no practical reason why we can't do it.

Do Iraqi refugees—even those who may have worked for the U.S. government or contractors—face asylum restrictions from the PATRIOT and Real ID Acts, which bar asylum status or resettlement to any person who has provided "material support" to terrorist groups?

Yes, there have been cases of Iraqis who have been either refused immigration into the U.S. or had their cases held up because they paid, for example, ransom money to insurgent groups that kidnap loved ones. That has now been interpreted by the Department of Homeland Security technically as a violation of the PATRIOT Act, and there's been some talk of amending the PATRIOT Act to allow for loopholes in obvious cases like that where we're not talking about terrorists, we're talking about desperate people doing what any of us would do. And there are other groups around the world that have also come under the same gigantic provision in the PATRIOT Act language, which was written in haste and badly defines terrorism in such broad terms that almost anyone who joins a small group that advocates for regime change anywhere in the world could qualify as a terrorist.

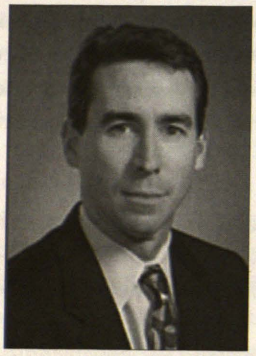
Do you think that the slow response of the American government in resettling Iraqis is a result of xenophobia or anti-Arab sentiment, considering that the American public has heard about the threat of Islamic terrorism for the past six or seven years?

There's no doubt that's playing a role. I was just in Southeast Asia and learned that Burmese refugees in Thailand who have come across the border and who have some American association are being processed and brought here in about a month's time. So obviously it can be done quickly if other factors are not present. One factor that is present is a fear—which is not unjustified—that we might let in the wrong Iraqis. Anyone has to be concerned about that. But there are provisions and procedures in the Department of Homeland Security vetting to keep them out, and if we really can't distinguish between terrorists and Iraqis who worked for the U.S. government for three or four years at great risk to themselves, we might as well close up shop and stop admitting anyone.

But I think the larger reason is the political reason mentioned before: this is not Burma, it's Iraq, it's the legacy of this administration and it's not the nature of this administration to face reality in Iraq when sticking to a more comforting storyline is possible. That's what they've been doing on this, as they have on so many other aspects of the war.

The Economics of Migration

An interview with Gordon Hanson



Conducted by Matt Andrews

Gordon H. Hanson is the Director of the Center on Pacific Economies and Professor of Economics at the University of California, San Diego. He also serves as a Research Associate at the National Bureau of Economic Research and Co-Editor of the Journal of Development Economics. *His many published works include* Why Does Immigration Divide America?: Public Finance and Political Opposition to Open Borders, *a book that explores how public finance shapes individual preferences towards immigration policy in the U.S. and* The Economic Logic of Illegal Immigration, *an article that examines the costs and benefits of illegal immigration.*

You have argued that although there are many reasons to be concerned about rising levels of immigration, policy makers should not ignore the "economic logic" of illegal immigration. How do you explain this "economic logic"?

What drives immigration is obviously economic differences between Mexico and the United States. Workers come because they have more opportunities here than they have at home. But that's only part of what makes the market for illegal workers function in the United States. These workers help fit into U.S. industry in a way that enhances productivity and is extremely convenient for employers. They are highly motivated, they come here to work because they don't have other options, they don't have access to government benefits, they are a mobile population that responds to changes in labor demand in different parts of the country, and they are a very flexible population whose employment ebbs and flows with the business cycle. That motivation, the mobility, and the flexibility are things that make them very attractive to U.S. employers.

> *"Illegal immigration is more or less a wash for the U.S. economy, if you ignore the consequences for the rule of law, civil liberties, and the security of our borders, which nobody has been able quantify in monetary terms yet."*

In your 2005 book, *Why Does Immigration Divide America?*, you argue that the effects of immigration on labor markets alone cannot explain the ideological divides that cut across political parties, businesses, and American public opinion. In the realm of public finance, what are the central sources of political opposition to immigration today?

U.S. states and localities pick up the fiscal tab for immigration, which they pay in the form of funding public education. Many of the immigrants that come here are young, have larger families, and send their kids to schools, and educating those kids is costly. In California, 50 percent of the kids in schools have immigrant mothers. Taxpayers in those states end up paying for services, education, and subsidized healthcare. Immigrants that come here to work also pay taxes—income and social security taxes—even though they are illegal. However, most of that tax revenue ends up in the hands of the federal government. So you have the federal government receiving the tax payments from illegal immigrants and states and localities paying the bill. So, taxpayers in high immigrant states are thus not very happy about the immigrant influx.

Immigration opponents claim that illegal immigrants put a greater strain on welfare and healthcare services than do native residents. How do illegal immigrants get access to these services, and how do you reconcile this fact with the argument that illegal immigration is overall positive for the economy?

They get access to those benefits in two ways. One, as I have

mentioned, is by sending their kids to school. The U.S. Supreme Court has ruled that everyone in the Untied States has a right to public education. Using resources that are devoted to public education is the most important draw on resources that illegal immigrants make. If illegal immigrants have kids in the U.S., those kids are entitled to certain public benefits including Medicaid. The U.S.-born children of illegal immigrants can get access to subsidized health care, school lunch programs, and other benefits. That, in part, accounts for the fiscal drain that illegal immigrants represent. That $10 billion simply is not a very big number: it's a drop in the bucket. When we think about the economic consequences of illegal immigration, we have to think whether we would be better off trying to eliminate illegal immigration. Eliminating unauthorized immigration is costly. It would require dramatically increasing enforcement resources at the border and in the U.S. interior. Our best sense is that it would cost far more than that $10 billion that we lose on net to the fiscal drain caused by illegal immigration.

Family members touch hands through the wall of the U.S.-Mexican border in San Ysidro, California in June 2008. Hanson explains that many workers come to the U.S. because there are more opportunities for work in the U.S. than there are for them home, and the wages they earn serve as vital sources of income for families back in Mexico. (Photo by Sandy Huffaker/Getty Images)

Are the economic benefits of illegal immigrant labor enough to outweigh the costs to those Americans who either receive lower wages or are displaced entirely from their jobs due to illegal immigration?

If we just look at the consequences of the illegal immigration on the labor market, the economic models suggest that the gains for employers, in terms of higher income associated with being able to employ more low skilled workers, is going to more than offset the losses of native American workers who see their wages fall as a result of an illegal immigrant influx. If we just look at the labor market consequences of illegal immigration, we expect to see a net gain. It's when you factor in the fiscal costs that the gain can become a net loss. However, our best estimates suggest the net economic impact of immigration—taking into account the impacts in the labor markets and impacts in the fiscal side—is very, very small. Illegal immigration is more or less a wash for the U.S. economy, if you ignore the consequences for the rule of law, civil liberties, and the security of our borders, which nobody has been able quantify in monetary terms yet.

The Center for Immigration Studies—the U.S.'s only think tank devoted exclusively to research and policy analysis of the economic, social, demographic, fiscal, and other impacts of immigration on the country—recently released a report arguing that even if illegal immigration keeps business costs low, companies' use of cheap immigrant labor removes incentives to invest in technology, thereby decreasing productivity. The implication is that the trend can only last for so long; sooner or later American industry is going to fall behind more technologically proficient competitors. How do you respond to this claim?

There are certain lines of work that are going to be labor-intensive by their very nature. If we are thinking about producing apparel or meatpacking, there have been many attempts to automate production in those industries as much as possible. They have only been partially successful. Those activities remain labor-intensive because technologically it is very hard to make them less dependent on low-skilled work. It is hard to see that there is going to be huge changes in the nature of innovation in those low-skilled industries in the absence of that immigrant labor. Where there would be changes would be in agriculture. Agriculture would switch from labor-intensive crops—perishable fruits and vegetables—into crops who's harvesting can be mechanized. If you look at the central valley of California, where much immigrant labor is employed, you see a much higher demand

for immigrant labor in picking strawberries or tomatoes than in the production of cotton or rice. You would see a shift toward the production of commodities. If you look at the plains states where wheat and corn are grown, there is very little illegal immigrant labor simply because the production of those types of commodities does not require that much labor. There are certain parts of the country where the land is not very amenable to a shift in crops, which means that those land owners are going to lose out. There are other areas where substitution would result in much lower cost. For those farmers, the drop in income in switching form one crop to another is not going to be as large.

Congress has already considered numerous bills on how best to combat illegal immigration, ranging from the McCain-Kennedy Bill in the Senate to the proposed STRIVE Act in the House. Despite their differences, these proposals share similar mandates: strengthening border security while simultaneously expanding guest worker programs. How effective would these bills be in curbing illegal immigration, given the benefits that you say illegal immigration provides? What broader action should immigration reform bills encourage to effectively manage illegal immigration?

The three main elements of McCain-Kennedy, increased border enforcement, some sort of legalization or amnesty, and the expansion of the guest worker program, are, at face value, perfectly sensible. The big issue is how those programs would be designed and implemented. The concern is that, in terms of increased enforcement, we would not see meaningful monitoring of U.S. employers in terms of whether they are hiring illegal workers. In the absence of serious interior enforcement efforts, we just are not going to see a big dent in the demand for illegal immigrant workers. On the guest worker side, the concern is that the program that is created would be excessively bureaucratic, create high administrative hurdles, and prove costly to employers as a means of finding low-skill workers. If that is the case and if employers are faced with the option of hiring from a flexible, motivated illegal labor force or hiring high-cost, inflexible guest workers, we can be pretty confident that they would do whatever they could to undermine new legislation. The key to successful reform is one, a meaningful increase in interior enforcement, and two, designing a guest worker program that mimics the benefits those employers currently derive from being able to hire a motivated and flexible labor pool from Mexico.

You have mentioned before that even if the economy as a whole prospers due to illegal immigration, that prosperity would not be distributed equally across all affected states. Specifically, states that have the largest amount of illegal immigrants must foot the bill for increased healthcare and welfare hosts, while states with relatively few illegal immigrants reap the overall economic benefits. How should federal immigration bills respond to this inequity of financial burdens?

What we have seen in the past couple of years is that states have tried to put pressure on Washington to crack down on immigration or at least help states absorb the fiscal costs. This, in part, accounts for the rash of anti-illegal immigrant measures that began in California over a decade ago and that we now see in Arizona, New Jersey, Pennsylvania, New York, and many other places. As far as a rational immigration policy, the approach of devolving immigration control to states and localities does not make any sense. The key, I think, would be to have employers internalize the fiscal cost of hiring immigrant labor. That means that you are going to have some payroll tax associated with hiring foreign workers. Now, for employers to be willing to pay such a payroll tax, they would have to be denied access to illegal workers. Denying them access means having meaningful monitoring and enforcement of employment actions. You need two policies to accomplish that. One is meaningful interior enforcement and the other is a payroll tax that employers would pay to reimburse states and localities for the fiscal costs of bringing those individuals into the country. Those costs would be passed onto illegal immigrants themselves, in the form of lower wages, but would also be passed along, through higher prices, back to the consumers who buy the goods and services that illegal immigrants produce.

In the past, states have tried similar methods of sanctioning employers for hiring illegal immigrant labor, but these measures failed due to lack of enforcement. What kind of enforcements measures would make these new laws effective?

The most promising new programs are the ones that are already being tried out: electronic verification of the employment eligibility of immigrant workers. This is something that employers can adopt on a voluntary basis right now. The problem is that the federal government lacks a database that can be shared between various government agencies that ensures that workers who are eligible can be recognized as such. We have ideas for the programs in place, but what we lack is the administrative structure to make those programs work. That requires the Department of Homeland Security getting together with the U.S. Social Security Administration and designing a database of eligible workers in the U.S.

How can the government reconcile its goal of all workers in America paying taxes with political opposition

to any institutionalized recognition of illegal immigrants?

One strategy for diffusing opposition to illegal immigration is to lower the fiscal burden. A substantial part of the electorate—as much as 20 to 25 percent—are opposed to allowing any of those illegal immigrants to stay. Many of those are opposed to immigration in general. However, there is another part of the electorate that takes a very practical view to immigration. They believe immigrant workers add value to the U.S. economy, are motivated, and come here to try to improve their lives. What they want is an immigration process that recognizes those people who are willing to work hard but still pay their fair share. There is a portion of the electorate you are never going to bring on board in terms of supporting immigration reform, but there is another portion that is willing to be convinced. With a sensible set of fiscal policies associated with immigration reform, you might be able to undermine opposition to policies that would sanction the presence of illegal workers here.

In various articles, you make the argument that strengthening border security—building a wall, maintaining guards, and expanding surveillance—would cost more than the drain from illegal immigration on public resources. What calculations are you using in this assessment, and how can the government account for the intangible benefits of national security involved?

We don't have a good sense of how much of an increase in border presence would be required to curtail illegal immigration entirely. Currently we spend approximately $15 billion per year on enforcement measures designed to impede illegal immigration through various means. That expenditure of $15 billion has the net effect of allowing four to five hundred thousand illegal immigrants into the country each year. If we think about what would be the increase in expenditure necessary to drive that figure to zero, it is not at all unreasonable to think it would be more than double. Once you are in that range, you are more than absorbing the fiscal benefits reaped from eliminating that illegal immigration. It is important to emphasize that we do not have a good sense of the cost of driving illegal immigration to zero. What we can say is that we are spending a whole lot of money right now, and even as we engage in that level of expenditure we are letting lots of illegal immigrants into the country. It is very hard to put a monetary value on border security. What we can say, is that there is no clear evidence that individuals who have planned to attack the United States have been sneaking across the U.S.-Mexican border. The possibility is certainly there, but I don't think anybody is looking at the U.S.-Mexican border and saying right now, that it is a potential access point for terrorists.

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An Immigrant Nation

A conversation with John DeStefano, Jr.

Conducted by Christopher Chen

John DeStefano, Jr. is currently serving his seventh term as mayor of New Haven, Connecticut and was formerly the president of the National League of Cities. DeStefano has recently championed the Elm City Resident Card, the nation's first identification card available to undocumented immigrants. Some anti-immigration groups have protested that the card essentially grants amnesty to illegal immigrants.

"We're the same city we've always been"

New Haven's rich tradition of immigration dates back more than two centuries when 350 Puritans left the Massachusetts Bay Colony to settle in present-day New Haven. Led by Reverend John Davenport in March of 1638, the Puritans established a colony, which soon developed into an important religious center and port that later attracted other immigrant communities looking for refuge. Waves of Irish immigrants escaping the potato famine arrived in New Haven during the 1840s. Other Europeans began to immigrate in the following decades because of lower transportation costs.

Looking back on these immigrant communities and the many others that have integrated themselves into New Haven in the years since, DeStefano tells *The Politic*, "We're the same city we've always been—an American city that has been home to large immigrant populations, including my grandparents and many other people's grandparents, great-grandparents, and parents." And he compares the circumstances of current Hispanic immigrants "without papers" to the many Italian Americans, including his own grandparents, who were called "'waps'—without papers" when they arrived in New Haven over a hundred years before.

Today, New Haven continues its tradition of welcoming immigrants, with or without legal documentation. Its Elm City Resident Card, a form of identification available to all those living in New Haven, regardless of immigration status, is the first of its kind in the country. DeStefano maintains that the card has achieved great success for the Elm City. However, a card that gives legitimacy to individuals who are there illegally raises many questions about immigration policy in the wider United States.

> *"[New Haven is] the same city we've always been—an American city that has been home to large immigrant populations, including my grandparents and many other people's grandparents, great-grandparents, and parents."*

"Consistent with our values"

Efforts to introduce the Elm City Resident Card began in 2005 when the mayor announced "Hablamos Español," a program meant to increase bilingual city services. The introduction of identification cards was also intended to reduce the high levels of crime in New Haven. Because undocumented immigrants were unable to open bank accounts and, thus, forced to keep large amounts of cash, they were frequently the victims of crime. Furthermore, without proper identification, any attempt to report criminal activity would put these illegal immigrants at risk for deportation—a reality that only exacerbated the problem.

To solve this problem of heightened crime, the mayor's office in 2005 investigated whether identification cards would be legal under federal law, finding the federal government's position on demanding a registered individu-

DeStefano says that undocumented residents like Misael Amrocio, pictured here, are key to America's economy. "A coherent [national] immigration policy," he believes, must take this into account and address the needs of the 13 million undocumented immigrants. Amrocio is a landscaper who lives in Marin County, California. His wife and seven children live in Guatemala. (Photo by Justin Sullivan/Getty Images)

als' personal information unclear. As a result of anti-immigration groups, however, the plans for the card ceased that year. DeStefano only revived it one year later after he issued General Order 06-2, establishing a "don't ask, don't tell, don't arrest" policy that prohibited police from asking crime victims about their immigration status. That year, when Latino advocacy group Unidad Latina en Acción publicly thanked him for the order, they also lobbied him to pursue the ID cards. As a result, DeStefano announced that he would work to include the identification program in the next year's budget.

By May 2007, DeStefano's office had redrafted the plan for the card, expanding it to all New Haven citizens. The modified proposal addressed the needs of those without an official governmental ID, including youth without driver's licenses; it also called for a form of identification that would serve as a debit card for parking meters and various stores downtown.

A month later, the New Haven Board of Aldermen approved the plan by a vote of 25-1. Despite considerable opposition from outsiders, New Haven residents showed overwhelming support for the Resident Card initiative, which DeStefano explains to The Politic is "consistent with our values" of welcoming immigrants and "reflective of where [we] came from—from immigrants." He points to the nearly 6,000 IDs issued as evidence that the cards have been well recieved.

"A desired commodity"

The Resident Card program has succeeded thus far, DeStefano argues in his conversation with *The Politic*. Indeed, he claims, crime has decreased in Fair Haven, the neighborhood with 3,000 to 5,000 undocumented residents—the most in New Haven. DeStefano does admit that he cannot analytically prove a causal relationship. Yet given the support in the community, he explains that "neighbors value [the card as] a desired commodity." By embracing its immigrant population, New Haven has embraced many of its workers and consumers. The immigrant-friendly program may be good for the city's economy and may also relieve the legal costs and police resources that the city would have devoted to a more stringent policy.

Many of the card's critics argue that the initiative will spur a dramatic rise in illegal immigration and consequently strain the government's ability to provide social services. DeStefano points out that immigration patterns to the city have not changed since the card's creation. In addition, he believes that it is questionable whether immigrants are "a burden on government." He argues that the taxes illegal immigrants pay, especially for Social Security, are greater than the government benefits they receive. DeStefano also believes that the American economy might not be able to survive without the millions of undocumented immigrants within U.S. borders today.

"Stuck in an untenable position"

Yet, there have been difficulties. After New Haven passed the legislation creating the Resident Card program, federal Immigration and Customs Enforcement (ICE) officers raided homes in New Haven looking for illegal immigrants on June 6, 2007. DeStefano notes that ICE officials later acknowledged that they did not notify the New Haven Police Department as their own procedures required; he says that ICE agents allegedly entered buildings and arrested bystanders without proper warrants. Since the city filed a complaint with the U.S. Department of Homeland Security, ICE has not conducted any raids in New Haven.

DeStefano tells *The Politic* that "ICE and Homeland Security are stuck in an untenable position" because national policymakers have not created "a coherent immigration policy." He believes that the federal government must implement a national immigration policy that supports the country's workforce demands. It also must address the needs of 13 million undocumented immigrants and the undocu-

mented residents who have children that are U.S. citizens. DeStefano says that Congress and the President have failed "to adopt some immigration policy that makes sense."

The resident card has also prompted local outcry. DeStefano contends that many of the card's critics are "white supremacist-driven hate groups" who do not reflect "our values as a nation." He argues that New Haven is simply dealing with "what the federal government has been unable to deal with." New Haven, he argues, is not a "sanctuary city" and is not doing anything illegal. Both the U.S. Attorney's office in Connecticut and the Attorney General of Connecticut have concluded that the program is legal. In addition, the State Department and the U.S. Department of Homeland Security have confirmed that the program is protected from the Freedom of Information Act, as the disclosure of private information would put individuals at risk. The same hate groups who oppose the program, DeStefano says, have sent hate mail to City Hall, making it clear that they want to harm people. The mayor believes that the best way to deal with them is to "remain true to our values and [pass] immigration policy that reflects the type of nation we are."

Volunteers at the Elm City Resident Card Mobile Unit register applicants for municipal IDs in Fair Haven. According to DeStefano, the priority is to make sure that the card is accessible to a broader base of citizens. A principal concern for the city is to grant all people—not just undocumented residents—access to financial services. (Isaac Arnsdorf/Yale Daily News)

New Haven is eager to help the federal government in its efforts to control immigration. DeStefano personally assured Homeland Security Secretary Michael Chertoff that New Haven would assist in any Homeland Security effort backed by a criminal warrant. DeStefano maintains that if the city comes in contact with a suspect in a criminal investigation, it will investigate that person's immigration status.

New Haven is trying to continue to expand the Resident Card, DeStefano tells the Politic, because a principal concern for the city is to grant all people—not just undocumented residents—access to financial services. According to DeStefano, the priority is to make sure that the card is accessible to a broader base of citizens.

"An immigrant nation"

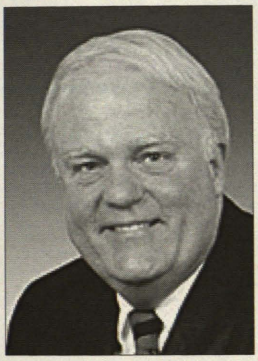
Cities countrywide are beginning to consider similar programs. The New York City Council is considering a bill that is partially inspired by the Elm City Resident Card. The proposed law would create a New York City Municipal Identification Card that would give all residents access to government services, including public safety. Cities in Nevada, Kentucky, Maryland, Wisconsin and Arizona are all considering similar proposals.

The issue of immigrants' IDs has been in the national spotlight recently with the focus on Senator Obama's support for issuing driver's licenses to undocumented immigrants. DeStefano is optimistic about the future of immigration on a national scale. Looking at the 2008 presidential candidates, he highlights the lack of strong anti-immigration stances. He points out that some candidates, such as Mitt Romney and Tom Tancredo, attempted to use restrictive immigration policy as a wedge issue to drive voters to the polls. However, DeStefano says, they were defeated—the most pro-immigration candidate on the Republican side emerged as the nominee, and Senators Barack Obama and Hillary Clinton are both looking to reform immigration policy.

DeStefano argues that the immigration problem is not something that can be solved by one city alone. He believes that it is ultimately up to the U.S. government to pass comprehensive immigration reform. This reform, according to DeStefano, would need to address the needs of the 13 million undocumented immigrants while trying to identify these individuals. He believes that if a criminal matter is involved, the immigrants should be deported; otherwise, they should sign up for tax ID numbers and start paying taxes. DeStefano adds that there must be an appropriate path to citizenship as well as new quotas that are more reasonable for the country to enforce. "It's got to happen," he says. "Until it does, this issue isn't going to be resolved."

Leading the Way on Reform

A congressman's work to control illegal immigration



By F. James Sensenbrenner, Jr.

Congressman F. James Sensenbrenner (R-WI) has represented the 5th Congressional district of Wisconsin since his election to office in 1978. He is the former Chairman of the House Judiciary Committee and the House Science Committee.

For decades, the topic of how to control illegal immigration has been too hot to handle. Attempts to control our borders and to dry up the market for illegal immigrant workers have been strongly opposed by a lobby which has the ear of the media. As a result, the number of illegal immigrants in the U.S. has ballooned to between 14 and 20 million with an estimated net increase of about 500,000 each year.

Not only do the large numbers of illegal immigrants reduce wages for Americans and legal permanent residents, but our loose borders pose significant law enforcement and national security problems. Large amounts of illegal drugs are smuggled across the border and are sold by gangs on our streets. Moreover, significant numbers of "persons of interest" (those on anti-terrorist watch lists and those with outstanding criminal warrants) have been picked up by the Border Patrol trying to enter our country illegally.

As a result, I decided to put illegal immigration control on the national agenda in 2005, when I was the Chair of the House Judiciary Committee. I knew a hot debate and intense criticism would result, but action was necessary.

In crafting legislation, I was guided by the report of a Select Commission appointed by President Carter in 1979 and headed by Father Theodore Hesburgh, former President of Notre Dame University. The report concluded:

"[We do] not believe that the U.S. should begin the process of legalization until new enforcement measures have been instituted to make it clear that the U.S. is determined to curtail new flows of undocumented/illegal aliens. Without more effective enforcement than the U.S. has had in the past, legalization could serve as a stimulus to further illegal entry. The Select Commission is opposed to any program that could precipitate such movement."

Events of the past 28 years proved the Hesburgh Commission right. That is why I introduced a bill to tighten the border and crack down on those employers who hire illegal immigrants in 2005. This bill passed the House of Representatives in December of that year by a vote of 239-182. The Senate failed to act on it, but instead passed its own bill, which was weak on enforcement and gave amnesty to illegal immigrants. "Comprehensive" immigration reform became a buzzword for amnesty, and the American public exposed it as such.

> *"Not only do the large numbers of illegal immigrants reduce wages for Americans and legal, permanent residents, but our loose borders pose significant law enforcement and national security problems."*

Notwithstanding the Senate's failure to pass my bill, putting this issue on the national agenda has forced both Congress and the Administration to accept many of the features incorporated within it. Changes in the past two years include:

- Passage of a bill authorizing 758 miles of fence along the southern border, and funding the first 350 miles of fence, 300 miles of vehicle barriers, and 105 cameras and radio towers;
- Funding 2,220 additional Border Patrol Officers and 9,000 additional detention beds;
- Changing the old policy of "catch and release" of illegal

immigrants to "detain and deport" (this alone has slowed the flow of illegal immigrants);

- Stepped up raids on employers hiring illegal immigrants;
- Requiring employers to fire employees who use false Social Security Numbers to obtain jobs and forcing them to use an electronic system to verify the accuracy of SSNs;
- Aggressively recruiting and training state and local police to help enforce immigration laws in their communities.

A group of illegal immigrants walk to a U.S. Border Patrol vehicle after crossing into Nogales, Arizona August 30, 2005. Congressman Sensenbrenner writes he has worked to change the old policy of "catch and release" of illegal immigrants to "detain and deport." (Sandy Huffaker/Getty Images)

In 2007, with the Democrats in control of Congress, the illegal immigration issue gained some media attention as Members introduced more bills; but again, though they used different words, when it came down to it, these proposals still incorporated amnesty provisions. "Comprehensive reform" was not any more popular to the American public in 2007 than it was in 2005, as evidenced by the Senate's failure when it tried to lead on this matter by repackaging old amnesty bills.

This dichotomy between the American public and the new Democratic Leadership in Congress has led to comments like those made by Chairman of the House Democratic Caucus Rahm Emanuel (D-IL), saying that further effective legislation on this issue is off the table until 2013 at the earliest. Since I find this delay to be disappointing and unacceptable, I introduced another immigration bill in November 2007. Among other provisions, my new bill includes proposals to secure our nation's borders by increasing funds, tools, and training, cracking down on employers who hire illegal immigrants, increasing the penalties against people who smuggle in illegal immigrants, and doubling the number of H1-B visas issued each year.

Realizing that Republicans do not control Congress' legislative agenda and schedule, in addition to the introduction of my bill, I continue to consider all available alternatives to help keep the fire burning on this issue. It was in that vein that I recently signed a discharge petition for an immigration bill introduced by Congressman Heath Shuler (D-NC). A discharge petition is a procedure by which a majority of the House of Representatives may sign a petition to force an up-or-down vote on a bill on the House floor. In this case, the Members signing this petition did so in the hopes of bringing to the floor HR 4088, the Secure America Through Verification and Enforcement (SAVE) Act.

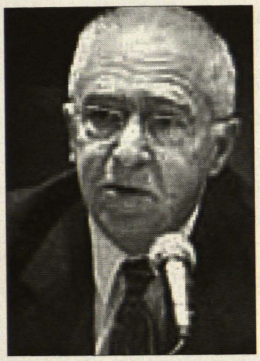
The SAVE Act incorporates many of the principles necessary for our nation to tackle the problem of illegal immigration. Among other things, it augments the Republican-passed Secure Fence Act, and it makes the E-Verify Program (known as the Basic Pilot Program) permanent.

Created in 1996, the E-Verify Program has been updated in recent years with over $300 million in funding, and consequently, technology, so that employers can do a better job of ensuring the legal status of prospective employees.

Undoubtedly, we have come a long way since 2005, but our work is not yet complete. Whether it is my bill or Shuler's bill, Congress owes it to the public to work on America's illegal immigration problem. I have said all along that this problem is not going to be solved by any one political party—it will require the bipartisan cooperation of both Democrats and Republicans. When Republicans were in control of Congress, I reached out across the aisle and worked with a number of my Democratic colleagues to push critical measures relative to illegal immigration. I look forward to the same courtesy by the Democrats in the days to come, not for me, but for the people of this country, who deserve better than to have this issue swept under the rug.

"A Nation By Design"

A Conversation with Aristide Zolberg



By Matt Andrews

Aristide Zolberg serves as the Walter A. Eberstadt Professor of Political Science at the Graduate Faculty of New School University in New York City and is director of its International Center for Migration, Ethnicity, and Citizenship. His most recent work, A Nation by Design: Immigration Policy in the Fashioning of America *gained critical acclaim from publications including* New York Times *and the* New Republic. *The book won the 2007 Myers Center Outstanding Book Award Honorable Mention in Immigration.*

According to popular belief, the United States of America has long had an 'open door' toward immigration, providing a haven of opportunity to all those who seek it. The many Americans who subscribe to this notion maintain that although political movements and world events have often led to the closing of the United States' door, the country has consistently strived for a policy of openness. The flow and composition of immigrants entering the country have therefore depended more on fluctuating levels of demand within the American business cycle than federal and state measures aimed at keeping foreigners out.

Aristide Zolberg radically breaks with that tradition. While immigration scholars point to periodic nativist outbursts and lack of economic demand as the rationale behind immigration control, Zolberg contends that American immigration policy has always been structured around the goal of nation-building. America's door was never open or closed but cracked to accept some and deny others. Through concerted attempts by social and economic interest groups, state and federal legislation effectively engineered the racial, ethnic, and religious composition of the United States. The U.S. has always been what Zolberg calls a "nation by design"—a country dedicated to filling its specific economic needs while protecting a particular conception of what it means to be American. According to his view, the composition of America has always been formulated, group by group, through careful selection by state and government officials rather than through the free flow of immigration.

> *"Through concerted attempts by social and economic interest groups, state and federal legislation effectively engineered the racial, ethnic, and religious composition of the United States."*

Today, the issue of how these state and government officials should control the flow of immigrants into the U.S. is as divisive as ever. There is no certainty of what immigration policy will look like in the future. Yet, one fact remains certain: if policymakers ever wish to pass effective immigration reform, they must learn to separate nation building concerns from the legitimate interests of American security and economic prosperity. That task begins with understanding the history of American immigration policy, a history that Aristide Zolberg explains well.

Immigration Policy in Early America

Before the founding of America, colonial communities living on its soil were selective in choosing who entered their land. Colonial England viewed its territory in America not only as a source of taxes and natural resources but as a repository for Britain's proliferating level of criminals and paupers. In his conversation with *The Politic*, Zolberg argues, "colonists wanted the people that Britain didn't want to let go of, while they didn't want the people that Britain wanted to get rid of." Colonists wanted the skilled immigrant labor that would transform America's economy.

While this was a seemingly trivial conflict, the colonists challenged the theoretical underpinnings of the English monarchy itself: the notion that states possessed complete and permanent sovereignty over their subjects and reserved the right to control their movement within state territory. Colonial immigration policy, in establishing rules to reject

Britain's undesirables and accept immigrants from European nations without Britain's consent, set the groundwork for the American revolutionaries' radical conception of citizenship by consent. In this way, immigration served as an important factor impelling the American Revolution and even found its place into the seventh grievance of the Declaration of Independence, which reads: "He has endeavored to prevent the Population of these States; for that purpose obstructing the Laws for Naturalization of Foreigners; refusing to pass others to encourage their migration hither, and raising the conditions of new Appropriations of Lands."

America's nation-building considerations soon expanded beyond deterring criminals and paupers to include both race and religion. In the early days of the United States, the Naturalization Act of 1790 established that only free white persons would be eligible for naturalization in the United States. Zolberg argues that by the 1830s, Judaism and Roman Catholicism were in the same position that Islam is in now. People perceived Catholics as an easily manipulated mass subservient to the Pope, fostering the belief that Catholicism was incompatible with democracy. The Mexican attack on the Alamo in 1836 further suggested that Catholicism might even serve as an impediment to Manifest Destiny. Irish Catholics were considered an entirely different race, unassociated with white Protestants. While many immigration scholars point to the lack of federal regulation of entry prior to the Civil War as evidence of American openness, this fact ignores the considerable latitude that states were given to limit immigration. The Supreme Court confirmed states' authority to limit immigration in *City of New York v. Miln* in 1834 by ruling that New York City could restrict paupers' entry from Europe based on the argument that these immigrants were a potential security threat. State regulation of immigration was thus constitutional as long as it served a policing function rather than the regulation of commerce. Under the claim of preserving security, states gained the perfect pretext to exert control over the ethnic composition of their populations.

The "Iron Law"

A half a century later with the Chinese Exclusion Act of 1882, the Chinese joined the list of racial groups considered totally incapable of becoming American. The Act was unique, however, in that it represented what Zolberg argues is the "iron law" of immigration reform: to pass any law in Congress, interest groups inhabiting different ideological universes and political parties must form alliances. The Chinese Exclusion Act accomplished that task by linking economic populists in the Democratic Party to cultural conservatives in the Republican Party, creating an unconventional middle ground. This "strange bedfellow" principle soon gathered a substantial following in Congress.

By 1910, a national census recorded the proportion of immigrants in the United States at its all-time high, totaling nearly 15 percent of the population. The fact that many of those immigrants were Eastern European and perceived as possessing cultural, religious, and linguistic habits too alien to assimilate, was too much for cultural conservatives to handle. America's domestic population was under attack. In 1924, the United States Congress passed the National Origins Act, placing heavy immigration quotas on countries in Europe and Asia. These quotas were instrumental in closing America's borders to Jewish refugees in the 1930s and 1940s, failing to prevent their slaughter. Ironically, the group favored by the 1924 Act would become America's biggest immigration problem 40 years later: Hispanics from South America.

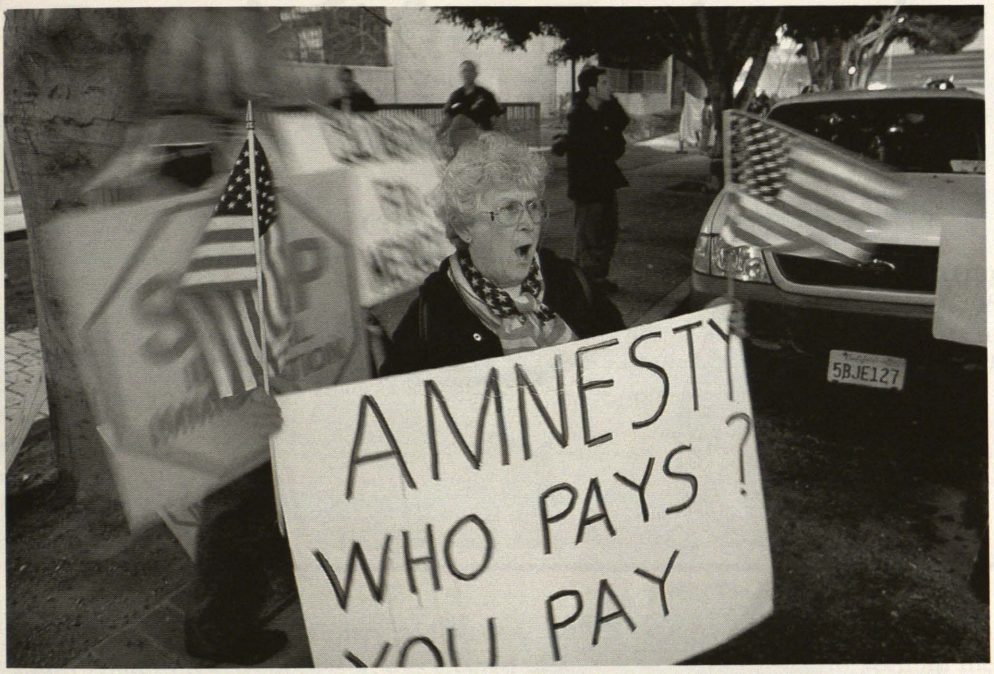
With the Hart Cellar Act of 1965, Italians, Eastern Europeans, and Asians became "white." The Act, pushed by President Johnson, removed the quotas established by the Asian Exclusion Act and the National Origins Acts and represented a decisive expansion in American racial identity. "The Act was part of the same movement as the Civil Rights Acts," Zolberg argues. "The Obama candidacy could be considered as really starting right here."

Yet, Zolberg's principle of immigration reform once more proved itself to be an "iron law." According to Zolberg, "Johnson had to get the votes of the right wingers in order to get rid of the quotas [so] for the first time the United States put a limit on immigration from the Western hemisphere." Hispanics from South America were no longer white.

Even after September 11, Zolberg's notion of a "nation by design" remains the same. While legitimate security concerns are now prominent in immigration debates, "many immigration opponents use security concerns as an excuse to enforce anti-immigration," according to Zolberg. Just as New York City in 1834 restricted the immigration of paupers based on the pretext that they posed a security threat, today's immigration opponents use arguments of national security to seek tougher border control and keep the culturally backward out of the United States.

Today's economic agent and nation-building concern is the Mexican illegal immigrant. As a highly flexible, highly motivated labor force, illegal immigrant labor from Mexico serves as a boon to companies seeking to keep their costs low and their profits high. Yet cultural conservatives view America's 12 million illegal immigrants as thwarting the rule of law and posing a threat to American culture. As Zolberg argues, "There is a widespread belief that I think is inaccurate, which is that Latinos don't become as American as other immigrants." What it means to be American today is to speak English properly, to not eat the wrong foods, and to assimilate into American culture.

Yet, Zolberg points out that the Hispanic media illustrates how these beliefs are not true. "Younger Hispanics don't know enough Spanish and they don't want to see more Spanish shows, they want to see more shows in English." The fear



Members of the California Coalition for Immigration Reform protest in Los Angeles, California against providing "amnesty" to illegal immigrants in February 2008. Zolberg, who explains that amnesty is a divisive issue, argues that the only way the U.S. will ever overcome such political divides is to follow its historical tradition of the "strange bedfellow" principle. (David McNew/Getty Images)

of Hispanicization simply follows a trend spanning over two centuries centered on policing American identity. Yet cultural conservatives, low-skilled American laborers, and state governments footing the fiscal bill for illegal immigration have taken up this fear to drive a national movement against illegal immigration. Congress will have to respond in the coming years by passing some kind of immigration reform; the only question that remains is what it is going to look like.

Nation-Building, Economics, and Those "Strange Bedfellows"

How can the United States establish an effective immigration policy in light of nation-building considerations, economic interest groups, and the "strange bedfellow" principle? Building a fence is not an option as long as employers will still pay for illegal immigrant labor. As Zolberg argues, "Unless you're willing to shoot them, which we're not going to do because that would make us look like East Germany, building a fence is nonsense." American policy must thus start with where the problem began: employers. "You have to give employers an incentive to check up on employees by reestablishing sanctions to punish the hiring of illegal workers," contends Zolberg.

While employers have claimed that checking up on employees is time-consuming and ineffective due to easy access to false identification, the passage of the 2005 REAL ID Act will silence these complaints by establishing a national identification card. With more reliable identification, employers can quickly do background checks while state and federal enforcement will become more credible. In response to growing economic demand, Congress could also institute a broader guest worker program to remove the logic behind illegal immigration.

For the 12 million undocumented workers currently in the United States, Zolberg supports a policy of legalization. The logistical difficulties in removing that many people are insurmountable. But "you can't just give citizenship to people who came here illegally— they did break the law," argues Zolberg. "Amnesty is not a popular thing to do."

To overcome political divides and successfully implement the "strange bedfellow" principle, Zolberg contends that politicians should opt for mandatory community service in return for legalization. If local communities feel the brunt of undocumented immigration because of increased school enrollment and greater stress on health care facilities, then it is the local communities that should most benefit from legalization.

While jail time is too harsh and fines are not realistic for the economically impoverished, Zolberg argues that community service offers a viable option for the undocumented while protecting politicians from claims of being soft on immigration. A community service program would also have the benefit of allaying fears of Hispanicization, as it would remove the perception that Hispanics are freeloading on community resources while promoting interactions that facilitate understanding rather than fear of Hispanic culture.

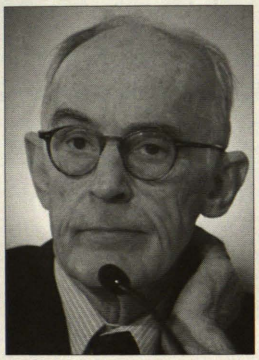
While conservative visions of nation-building have historically influenced American immigration policy, they need not dictate its future. Politicians and citizens alike must be cognizant of the ways that interest groups use the idea of American identity to further their own ends.

In Congress, political parties must find a rational middle ground rather than pandering to visions of walls. Then, they have to give it time. As Zolberg argues, "It took Congress until 1965 to pass legislation removing the laws of the 1920s. But the past is not indication of future failures. It's typical in the U.S. that if you want to get something through Congress, you have to try more than once." P

INTERNATIONAL

Russia After Putin

An Interview with William Odom



Conducted by Christopher Gombeski

***Lieutenant General** William E. Odom, **U.S. Army (Ret.) served as** Director of the National Security Agency from 1985 to 1988 and as Assistant Chief of Staff for Intelligence, the Army's senior intelligence officer, from 1981 to 1985. He is a Senior Fellow with the Hudson Institute, and is an Adjunct Professor at Yale.*

To no one's surprise, Dmitry Medvedev, President Putin's hand-picked successor, was elected with ease to the office of President on March 2, 2008. President-elect Medvedev has said that the office of Prime Minister, which Putin will soon inhabit, will remain subordinate to the office of the president, believing, "the President has his authority and the Prime Minister has his. These authorities stem from the constitution and the law and no one is suggesting they be changed." How likely is it that the center of power will remain with the Kremlin and not in the hands of the new Prime Minister?

It's not clear. I would doubt that it will—if this situation is to remain stable. But if power stays in the Kremlin, that means Putin loses power and Medvedev—or somebody besides him—gains it. If it doesn't shift to the Prime Minister, that's a sign of instability in the system right now.

Putin's reasons for naming Medvedev, as his successor have been the subject of much speculation as he was once a relatively low-level official who never held elected office. What might have been his reasoning?

The same reason that Boris Yeltsin had for picking a very low-level, unknown official in 1999 and essentially anointing him as his successor and then allowing for the rigging of the elections to ensure that Putin would win. Putin has just done the same thing. Putin and his supporters seem to be determined to keep up the façade of legality. That's been their practice ever since 2003. It was not quite clear which way they were going until then at the start of his term, as he had made several very pressing reforms and simplified the tax structure, among other things. But then in 2003-04, the Kremlin began to tear apart the oil company Yukos and divide it up. From that day forward, there have been a whole series of reforms that can essentially block any kind of pluralistic, law-based development. There has been a change in the laws on non-governmental organizations, which means those that are not associated with the Kremlin or financed by the Kremlin don't have much opportunity to develop in Russia. The election laws now allow Putin to appoint the regional governors and take away taxing authority from the governors and mayors. We're seeing the system move right back in many ways to the normal control system of the Soviet state.

> *"As long as the Ukrainians and Georgians and others continue to put up a fight against the Russians, I think the prospects for liberal change are much better."*

Grigory Yavlinsky, the head of the opposition party Yabloko, told Radio Free Europe that the election has now merely determined "the form of the third term of Vladimir Putin." Will Putin's tenure as Prime Minister be his last turn in high office, or might he run for president again when it is constitutionally permissible?

What I understand Yavlinsky to mean is that Putin will continue to govern from the Prime Minister's office the same way

he governed from the Kremlin. We've yet to see whether that can be done. If it can be done, Putin has to retain a very strong control over the state budget, particularly the oil monies to be able to dictate those allocations. The second thing he has to be able to do is retain control over the Kremlin's rival factions and cadres and the appointments of high-level officials within the Kremlin. If he loses those officials or if they are left with Medvedev or some other clan leader and if this group manages to get their hands on those levers of power, then it might be the end of Putin's career. But there are a number of other scenarios that are possible. One would be that Medvedev might suddenly decide after three or four months that he is going to leave office of his own free will, and elections are called, at which time Putin would be eligible to run for president again. We're in uncharted waters here, and nobody really knows what's going to happen. The only thing that I think we can be very sure of—because of an episode that happened last fall in the run-up to this election—is that allies of Putin are fighting one another. The head of the Narcotics Bureau, who has been particularly powerful in wielding his narcotics police, published a letter claiming that the FSB—the Federal Security Service—had wrongfully arrested several of his people and had actually paid for the murder of one of his subordinates. It became obvious from that, and several other newspaper reports, that these people were settling their scores at gunpoint in a struggle to succeed Putin or to keep him in office so that their present power positions are undisturbed. It's a rough-and-ready game, and I don't think anybody has made any firm predictions. There's pretty good evidence that the situation is inherently unstable. When a few months pass, we see whether it restabilizes.

Russian President Vladimir Putin, at right, greets First Deputy Premier Dmitry Medvedev, the future Russian president, at a meeting in Moscow. Putin all but assured Medvedev's eventual election by endorsing him to be his successor. (Alexander Zemlianichenko/AFP/Getty Images)

Medvedev received more than 70 percent of the vote in the general election and faced only minor competition. His nearest opponent, Communist Party candidate Gennady Zyuganov, garnered only 18 percent. One of Medvedev's advisers admitted to the Australian Broadcasting Company that had Medvedev won by an even greater margin, it would have proved "embarassing" for the elections to be so noncompetitive. Yet several of his potential opponents—former Russian Prime Minister Mikhail Kasyanov and former chess champion and current leader of Other Russia Gary Kasparov—were barred from running by the Election Commission. Do you believe that the Kremlin was behind this decision? If so, why did the Kremlin act in such a way when Medvedev seemed so invincible?

There's no question of that. Kasyanov and Kasparov have been harassed for the last year or two by the FSB and by a number of other organizations. It's not even a debatable issue: obviously the Kremlin has done all this. It's too well orchestrated to be otherwise. The only thing that ought to surprise anybody about that is that other people were surprised that it happened. You could argue over why they pulled all these vote-rigging shenanigans when they probably could have won the election by 55 or 60 percent without doing so. Who knows the answer to that? During the Soviet period, they would win elections with 99 percent. The larger that number is, the more invincible they probably think they appear. It also may have been a consideration for Putin and Medvedev to show how strong they were in case any of the Kremlin factions decide that there is enough dissident vote out there that they could carve off and use to push aside Putin and Medvedev. It also has a chilling effect on people of the regions who would want to challenge the authority of the oblast, or provincial, government. So there are any number of ways to explain that.

Although Medvedev has a reputation for being a more liberal, pro-Western politician than his predecessor, he has also asserted that he plans to make his time in

office "a direction continuation" of the Putin era. How do you assess the claim that he is more liberal?

'Liberal' is a term that Westerners love, and that we apply through the spectacles of ethnocentricity, which means we are using that term in describing leaders of other countries and usually getting it seriously wrong. It's less the case when you're talking about Western Europe or countries that have stable, mature constitutional orders. But in the case of Russia, the only people who would claim that they are liberal are the rightist forces, who are for stable property rights and for strong, independent courts. Medvedev will say Russia needs all these things—better courts, better laws, this, that, and the other, but in the same speech he talks about implementing a program that is highly authoritarian in substance. So I'd say keep one's eye on what Medvedev does and don't pay much attention to what he says. If he really meant what he says, he wouldn't be supporting the repression of NGOs, the repression of free media, or the breaking up of private firms by the Kremlin and the parceling out of the pieces that are left among various factions or gangs within the Kremlin. So those are the actions you have to rely on. Also, one thing that goes remarkably unnoticed or unnoted in the Western press is the number of journalists who have been murdered in Russia today. Almost certainly the Kremlin has been behind some of these and hasn't done anything to clarify the situation afterwards, except sometimes accuse a person who couldn't possibly have the motives ascribed to him, but who is arrested and tried for the crime.

Less than a day after his election, Medvedev announced that Russia would reduce gas supplies to Ukraine, ultimately cutting in half all shipments to the country for three days. What signal does this action send about his prospective foreign policy?

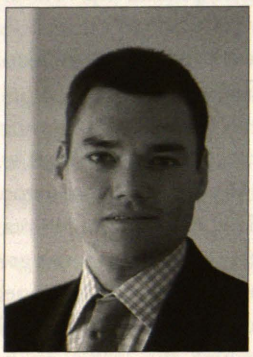
It ought to send the signal that Russia is serious about using its oil and gas monopoly for political leverage not only with Ukraine and Belarus but also with European Union countries. The specifics of this case right now would allow Medvedev to say that this is just business and that Ukraine is not paying the bill. And, in fact, Ukraine is in arrears. It's hard to know if this is just simply a payment issue or a political move, but I suspect it's both. Clearly, Russia is going to use its oil monopoly politically. The longer Europeans deal with Russia on an individual basis—they don't have a combined, unified position on oil and gas supplies and can't force Russia to commit itself to not using its monopoly for political leverage—then they're going to have trouble when someone like Gerhard Schröder, former chancellor of Germany, goes to work for one of Putin's companies and tries to build a pipeline bypassing Poland to ensure that if Russians cut off supplies to Poland, they keep going to Germany. It raises all the historical fears of the German-Russian Alliance of 1922 and the Nazi-Soviet Pact of 1939, which ended with the partition of Poland in the Second World War. If the Germans are going to do that, they are just letting the Russian government undermine European unity.

What are the prospects for the establishment of a constitutionally liberal regime in Russia?

They're next to zero for the foreseeable future. That is, I don't see one likely for the next 10 to 20 years, and I would be surprised if it could be achieved in the next 30 to 40 years. There never were any real prospects for it; it was just a great hope and aspiration of Americans and Western European specialists, who tend to be optimistic and always put the best spin on things they can. Through the 1990s, we had a lot of hope. We saw book titles like *The End of Polarized Politics in Russia* and articles in *Foreign Affairs* saying Russia had turned a corner toward democracy. Those are typical of many of the publications that displayed the mood of Western observers at the time. I was chided for a piece in 2001 called "Realism about Russia" when I said that Russia was no longer a great power and liable to remain in this condition for quite a long time. That was not well received, though of the five or six commentators who responded in the journal *The National Interest*, the two Russians who responded were more in agreement with me than any of the Westerners. But I stick more or less to what my assessment was in 2001: what's going on in Russia is normal and has been that way for a long time. The conditions for creating a liberal regime are just not there. There are some really fundamental changes that occurred as the result of the breakup of the Soviet Union, which could bring fundamental change in half a century or longer. Most important is Moscow's loss of the non-Russian nationality areas. There are still 23 national republics in the Russian Federation. Thus, you could still call it a multinational empire, but it's not an empire in the sense it once was. But if it's able to reabsorb Ukraine, Belarus, Georgia, Armenia, or Azerbaijan and some of the central Asian republics, then it will never have a chance to make a change to a liberal system. As long as the Ukrainians and Georgians and others continue to put up a fight against the Russians, I think the prospects for liberal change are much better. Western support and careful diplomacy can deter Moscow from reabsorbing those republics, and if those countries themselves are able to make some progress and some reforms, particularly the Ukraine, that would have a devastating impact on the authoritarian forces in Russia. By the year 2020 if they have not absorbed these republics, and if these other republics are beginning to show more stability and growth, then the prospects will improve. Unless that happens, Russia very easily could slip right back into its old imperial trap.

A Liberal War on Terror

An interview with Peter Beinart



Conducted by Craig Kafura

Peter Beinart is the author of The Good Fight: Why Liberals-And Only Liberals-Can Win the War on Terror and Make America Great Again. *He is an editor-at-large and former editor of the* New Republic, *columnist for the* Washington Post, *and contributor to* Time *magazine. He is currently a senior fellow at the Council on Foreign Relations and is examining how the United States recovers from lost wars.*

How do you characterize "liberalism" and what makes a "liberal" liberal?

Liberalism is about a brand of politics which prizes liberty, and in that sense American conservatism is also liberal, or at least large chunks of American conservatism are also liberal. To distinguish American liberalism from American conservatism, I think you have to go to the liberal belief in the idea of human cooperation. The liberals are more optimistic of the possibilities of human cooperation. It goes back to the idea of a society in which people can cooperate much more than conservatives tend to imagine. Conservatives tend to believe that, basically, competition and conflict are fandamental to society. Around the world, as well, liberals tend to believe in the possibilities of cooperation between nations, and that's why they are more sympathetic to international institutions and international law. Conservatives—those more imperialistic or isolationist—have generally tended to view the world as more Hobbesian, just as they see domestic society as more Hobbesian. Therefore, they elect to take a much dimmer view of the possibility of cooperation between nations, just as they take a much dimmer view of the possibility of cooperation between individual human beings.

> *"I actually think that both McCain's plan and the Democrats' plan for withdrawal are better than the alternative. You can't go for some middle-level troop deployment."*

Your book advances the argument that only liberals can win the War on Terror. Why would they stand to do better? And what would a liberal War on Terror look like?

I think that central to America's ability to win the struggle against jihadist terrorism is America's legitimacy around the world. The good news about the enemy that we're fighting against is that it has an ideology which is not very appealing, much less so than communism. It's not a universalistic ideology, and it has shown no capacity to produce economic growth, which is something that many people actually believed about communism in the 1930s. What it has going for it is that it is riding the wave of anti-imperialist feeling in parts of the Muslim world. America, in particular, has come to be seen as such a predatory power—a power that, in fact, doesn't pay any heed to its own professed values of human rights and human dignity around the world—that jihadists have managed to hijack this anti-imperialist feeling, and so in a lot of ways jihadist terrorists are gaining strength because of America's legitimacy crisis. There is to some degree an element of resentment and envy of America as the biggest power on the block. There is a sense, in much of the Muslim world and beyond—in Europe, too—that America fundamentally acts based on the premise that might equals right rather than believing that we have to hold ourselves to a set of higher standards. We define in partnership with other nations the moral premise for international institutions. That has been the big part of the reason that jihadist terrorism has become as significant force as it has been. The restoration of American legitimacy is the most important thing that America needs to do. Once America can convince large numbers of people in the Muslim world that essentially an alliance with us offers a much better chance of a life of dignity and opportunity than an alliance with terrorists, then killing and imprisoning the remaining terrorists and isolating them

Pakistanis burn an American flag in March 2008. America's image in much of the world has grown increasingly negative, and its crisis of legitimacy within the Muslim world continues to be a major concern for U.S. policymakers. (Arif Ali/AFP/Getty Images)

from their populations is necessarily a technical job that can be done by law enforcement and military and the CIA.

During the Cold War, President Truman oversaw interventions to head off communist insurgency in Turkey and Greece. What can liberals today draw from these examples? How do these historical cases compare with Iraq in 2003?

First of all, it's important to note that America didn't send troops to Turkey and Greece. We simply sent military and economic aid. America was much less exposed in Turkey and Greece. Secondly, we were sending aid to defend existing governments against communist insurgents in Greece who were backed by neighboring communist countries. We were not going to overthrow an existing government. Those governments in Greece and Turkey were far from perfect, but I think they were better than the alternative, ultimately it turned out. If you want to find the Cold War analogy to Iraq, the best analogy would probably be the decision to go north of the 38th parallel in Korea. Greece represented a case where military aid was sent to an authoritarian, pro-American ally, who we believed was more in line with our interests and values than its communist opponents. These examples are probably more similar to American aid to the government of El Salvador during the 1980s.

What is your assessment of the way in which liberals acted in the era following the Vietnam War?

The Democratic Party was in a difficult position. It was trying to oppose the war, which liberals believed was not only a mistake but also immoral, particularly these mass bombings of North Vietnam that started in the late 1960s. And yet to oppose the war at a time of enormous social upheaval, along racial lines, generational lines, and gender lines while still showing that you could be against the war and in favor of this quite rapid social progress and yet be someone who was a patriot who believed that America could still be a force for good in the world was a difficult balance. I don't think that Democrats and liberals did as well as they could have. If you compare the anti-Iraq War movement to the anti-Vietnam War movement, you can see some of the mistakes that were made. For instance, liberals were less willing to embrace the military during Vietnam than they have been during Iraq. The historical circumstances were different. Liberals made it too easy for their opponents to say that being anti-Vietnam meant being anti-military and even believing that America could no longer be a force for good in the world. I think that was ultimately very damaging. Some liberals like Allard Lowenstein recognized that problem and tried to respond to it. I think others were not cognizant of it nearly enough, and I think that set the stage that allowed Richard Nixon and Ronald Reagan to explore that political opportunity.

Although you were originally a proponent of the War in Iraq, you have since changed your view. What made you reevaluate your earlier support?

I changed my view partly simply because the evidentiary basis for my view was wrong. You can have theories about the war, but those theories have to be based on analyses of fact. My analysis of the facts was just wrong. In particular, I believed that Saddam Hussein had a nuclear weapons program. I wasn't so upset about chemical or biological weapons or terrorist ties. Chemical and biological weapons didn't seem to be much of a threat, and the terrorist ties seemed to be pretty minimal. Saddam having a nuclear program means a really dangerous strategic earthquake in the Middle East. He had been close to getting one on the eve of the Gulf War. He had had a pretty significant program in the late 1980s, we learned after the Gulf War. The inspectors left in 1998, and we didn't have inspectors there between 1998 and 2002, and we had evidence that the sanctions regime was weakening. I took the worst-case scenario. I think my first huge mistake was not revising my view about the state of Saddam's nuclear program in the early months of 2003. When the IAEA (International Atomic Energy Agency) inspectors came in in

early 2003 and went looking in early 2003 and found that the nuclear infrastructure had really decayed from what it was, I should have really reevealuated my evidentiary basis for the war, and I soon did.

I think I also overestimated the degree to which America would be considered legitimate once it overthrew Saddam Hussein. I underestimated the degree to which America would be seen as an imperial force, even though people were very happy to get rid of Hussein. Now, there may have been a period right after Saddam's toppling, when that wasn't the case as much, particularly with the Shia, for instance, when the Shia may have been open to America and convinced that it could get security in order and improve their lives fairly quickly. But I think that was partly also based on my exaggerated view of American capability and competence also.

In light of the recent political turmoil in Pakistan and the death of Benazir Bhutto, what policy should the U.S. pursue in the region?

Bhutanese citizens wait to cast their ballots in elections marking the end of more than 100 years of royal rule on March 24, 2008. U.S. policymakers must work to sustain gains made in fledging democracies. (Paula Bronstein/Getty Images)

It seems to me that Pakistan is one of those situations where there are very few good options. American leverage is genuinely limited, even though we give them a lot of aid. Our ability to make things happen there is really quite limited. I think at the end of the day I still incline toward the view that Musharraf is growing weaker and more isolated. America is perceived as putting all of its eggs in that one basket and basically endorsing whatever he does. Our position in Pakistan will grow weaker as his does. His ability to help the U.S. do things that are in our interest will diminish. It's very important for America to try to find a way of building bridges to the liberal opposition to Musharraf. I think Benazir Bhutto was more the embodiment of that than Nawaz Sharif. I think it's important for us to look for other people that we can form relationships with who are anti-Musharraf and anti-Musharraf because they are liberal rather than because they are Islamist.

With the 2008 election drawing near, the question of Iraq looms large. What is your assessment of the candidates' positions on the war?

I actually think that both McCain's plan and the Democrats' plan for withdrawal are better than the alternative. You can't go for some middle-level troop deployment. That couldn't really do much good. The costs of leaving Iraq are high. I think life would get worse for the Iraqi people, at least within the short term, and I think that would be a tragedy. It would also be humiliating for the United States. On the other hand, the costs of keeping a long-term presence in Iraq are also high. First of all, there are real questions about the degree to which we can simply sustain it as a military option or whether we've done lasting damage to the military. The cost is enormous, both in terms of money and in terms of killed and injured Americans. And the cost is also enormous because it's really kept America from focusing on other problems. The people in government only have a certain amount of time, and we've really neglected other issues because Iraq has taken up so much of the foreign policy agenda.

In your May 2007 piece in *Time*, you discussed the "global democratic recession"—the backsliding into authoritarianism in nations that have previously made democratic gains. What do you feel can be done to reverse this trend?

It seems to be the most important thing to find ways to try to help democratic governments show that they can make tangible improvements in people's lives. Historically, people have often turned away from democracy to a new form of tyranny in large part because they thought that those tyrannies could actually improve their lives, often in material ways. So many of the democracies in the developing world are not producing economic gains for the people and are not producing an orderly society with less corruption and more of a rule of law, and I

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think it's those things that we really have to try to invest in, so that democratic governments can show that they can materially improve people's lives.

What role does foreign aid have to play in accomplishing that goal?

I think probably it should play a very important role. Bush increased foreign aid spending, and if you look at Obama, he wants to increase it quite a bit more—which I think is great. Some of our European allies are doing that. It's clearly foreign aid but also the right kind of international economic engagement—more trade and investment, and the right kind of trade and investment.

In January 2007, you criticized the Bush Administration for returning to the Nixon Doctrine of using other nations to advance U.S. interests without the U.S. necessarily getting involved. What's been the fallout from this approach?

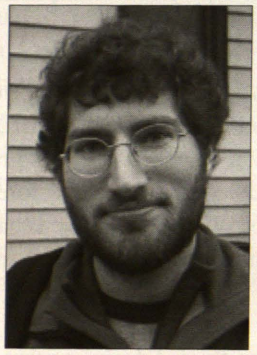
It is a reality that America is going to have to retrench a little bit from the very, very heavy international military commitment that we've made, in Iraq certainly and in Afghanistan as well. There's a real danger of trying to, as Richard Nixon did in the Vietnam years, have other countries pursue, at that time, the containment policies that America didn't want to pursue directly because oftentimes those countries will have their own agenda and we will be a partner to agendas that could really be very dangerous. I think that happened. The Nixon Doctrine didn't do well as it related to Pakistan in the 1970s or Iran. We have to be very careful in recognizing that as we try to build an anti-Iranian coalition—which I think is a dubious prospect—that we don't end up strengthening and writing blank checks to governments like Saudi Arabia that themselves may be as much of a problem for American interests as Iran itself.

The Saudi government is notoriously anti-Shiite, and there have been reports of the government trying to stir up anti-Shiite fervor in Iraq and other countries. What role can the U.S. play in keeping the Saudis from destabilizing even further an already dangerous conflict?

I think America's capacities are more limited than they were; there's no question about that. Ultimately, the best solution for this would be some kind of American diplomatic arrangement with Iran in which Iran is allowed to have some influence in the region, which I think it inevitably is going to have. We need to reach an arrangement where we are able to stop Iran's nuclear program before it reaches fruition, to curb Hizbollah a little bit, and to bring about some of the relationships and openness that could lead to some kind of regime change there. That's the best thing that American can do to head off this Shiite-Sunni conflict.

American Wars

A photo essay of soldiers' lives in Iraq and Afghanistan



By Peter van Agtmael

Peter van Agtmael studied history at Yale University. After graduation, he went to China on a Charles P. Howland Fellowship to photograph the areas of the Yangtze River being inundated by the Three Gorges Dam. Peter lived in South Africa in 2005 and worked extensively throughout sub-Saharan Africa. He is currently working on a long-term project about the toll of America's wars at home and abroad. In 2006, Peter was named one of "25 under 25 - Up and Coming American Photographers" by the Center for Documentary Studies at Duke University. In 2007, he won second place in the General News Stories category at the World Press Photo awards for his coverage of night raids in Iraq.

Photo 1

A teenage boy separated for questioning leans against a wall, while in the next room American soldiers ransack cabinets looking for contraband. The house had been raided on a hunch, as a passing American patrol noticed two young men fidgeting and eyeing them suspiciously. Anticipating violence, the patrol immediately detained the men and stormed into the house to look for evidence of wrongdoing. Everything was thrown onto the floor. Toys, dishes, exam papers, blankets. A radio and a tricycle.

Throughout the search the soldiers teased their young medic, a recent high school graduate who had wanted to go to medical school, about his lack of sexual experience. He responded defensively, touchy and shrill at the accusations, while absentmindedly sweeping the family's possessions onto the floor. The soldiers had performed hundreds of house searches at this point in their deployment, and their normal banter was rarely interrupted by reflection on their surroundings. In the next room the boy was questioned. 'Had he seen anyone unusual around the house lately?' 'Were his brothers coming and going at strange hours?' The boy muttered non-committal answers, never making eye contact with the towering soldier that questioned him.

Although nothing was found in the house to suggest insurgent activity, the hands of the two brothers came up with a faint residue of explosives when tested. The lieutenant in charge of the platoon decided to detain the men, although he suspected they were completely innocent and would probably be released in a few days. Still, they were blindfolded and their hands secured with plastic cuffs. At this, the previously docile mother, father, and two wives, began wailing, throwing their arms into the air, begging for leniency. Their desperation was familiar to the American soldiers, and glassy-eyed, they pushed the two stumbling men towards their armored vehicle.

Photo 2

PFC Baird, a young soldier from the 173rd Airborne, was shot at a remote outpost in Nuristan province during a firefight with insurgents firing from the mountains surrounding the base. The brachial artery in his right arm was severed by the shot, and he rapidly began losing blood. A call was put out to a medevac unit from the 82nd Airborne to evacuate Baird to the nearest hospital, a short helicopter ride away. Because the first hour ('the golden hour') after the wounding is so important to the survival of the soldiers, the medevac crews fly in all conditions, and will land on remote battlefields during firefights or moonless nights.

Baird's evacuation happened quickly. Colored smoke was popped from the unit on the ground into a nearby open field, signaling for the circling helicopter to land. Upon touchdown, the flight medic Sergeant Michael Julio jumped out the side sliding door of the UH-60 Blackhawk with an aid kit and ran to the patient lying behind cover, surrounded by his worried comrades. Julio did a once-over of Baird's condition to make sure he was ready to be moved, then signaled for the stretcher to be run over to the helicopter.

As soon as the doors were secured and the soldiers on the ground were safely away from the rotor blades, the helicopter took off. Total time on the ground didn't exceed four minutes. Baird drifted out of consciousness for most of the flight, finally awaking about fifteen minutes from the base. His groggy and placid features quickly turned to panic as he realized he was unable to move his fingers. While Julio stroked his face and reassured him above the din of the fast-moving helicopter, Baird continued to look at his unmoving hand, until finally his fingers stirred slightly. At the movement he dropped his head, exhausted, but with a look of enormous relief. He went into emergency surgery, and a surgical team managed to save his arm from amputation.

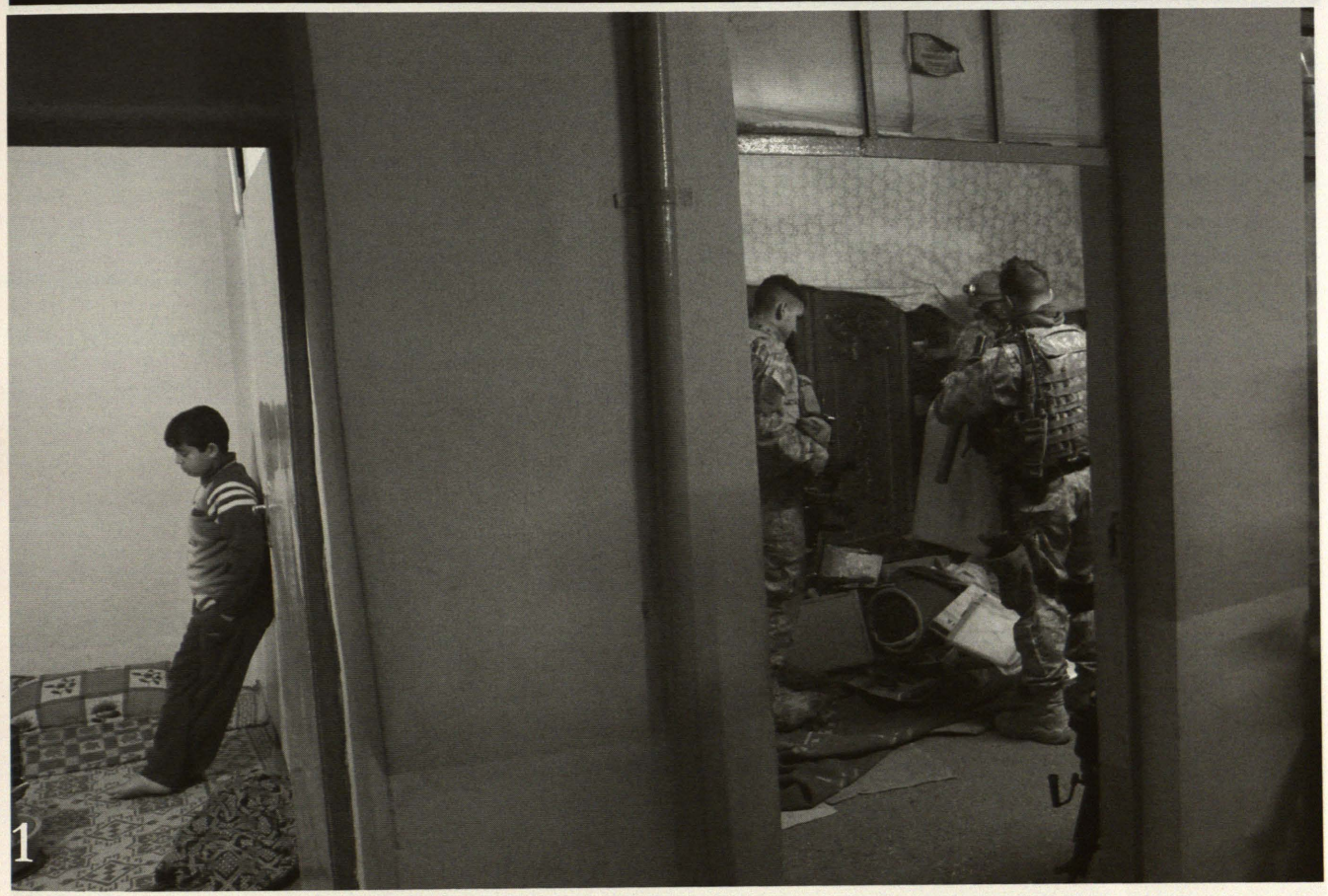


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Photo 3

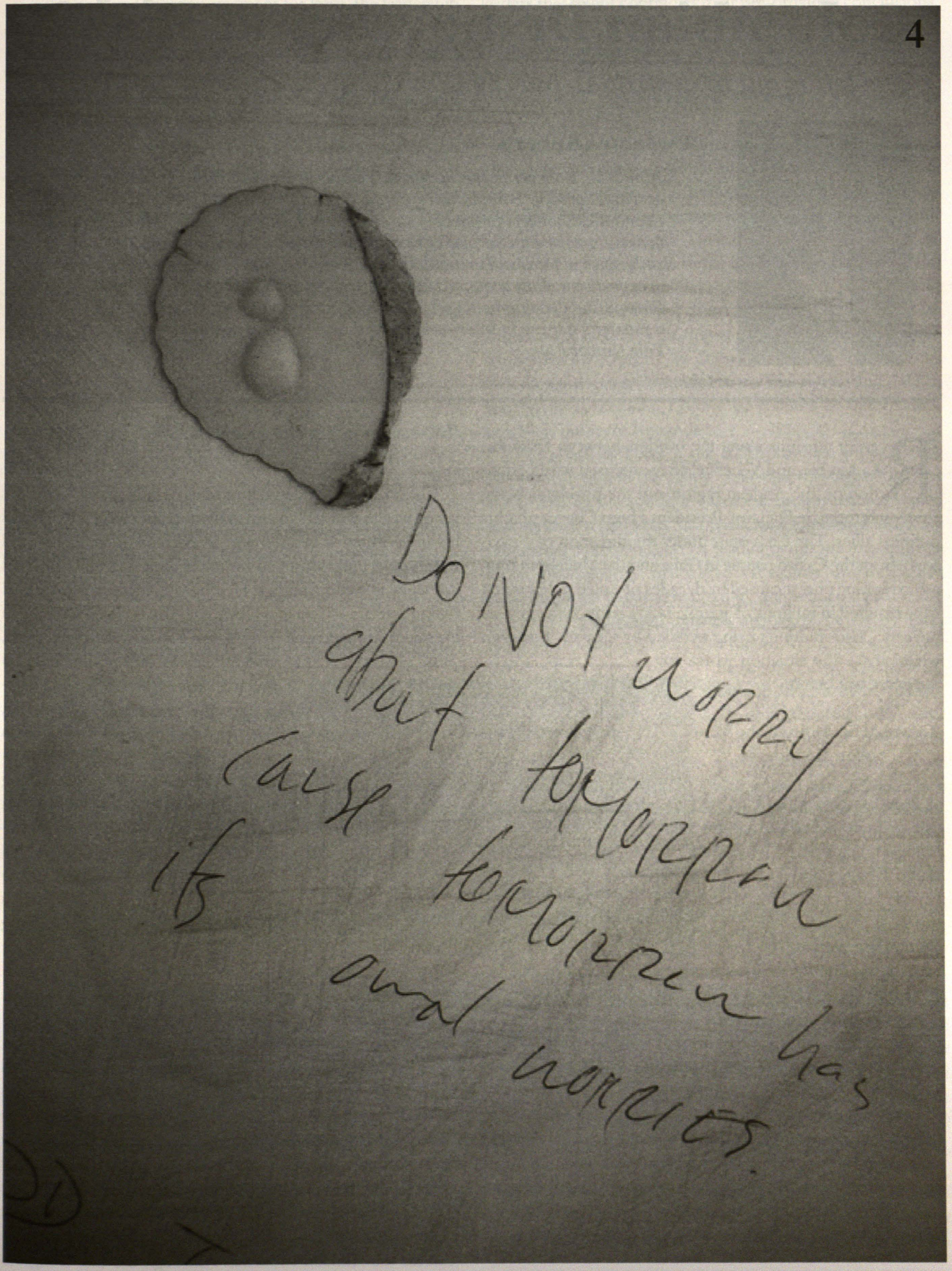
A medic in a helicopter evacuation unit of the 4th Infantry Division (medevacs) rests in his hooch between missions. His girlfriend in Texas sent the teddy bear to him, and he had another one hanging in the chopper next to his seat. The medevac mission demands long hours of monotony waiting in small huts next to the helicopters. When the call comes in on the '9-line' that there are casualties in their sector, the crew scrambles to the chopper, usually getting into the air within 10 minutes. They hurtle to the site of the injury, landing just long enough to take the casualty onboard before flying off to the nearest Combat Support Hospital or Forward Surgical Team.

Photo 4

Bathroom graffiti in Ali Al Salem Air Force Base in Kuwait. Ali Al Salem is the main transit point for soldiers entering and leaving Iraq. It is a vast, shade-free complex in the middle of the desert. In the center are hundreds of large tents, where soldiers wait out the heat of the day, watching DVDs or reading. Skirting the edges of the tent city are dozens of trailer-sized containers containing bathroom and shower facilities.

The walls of the stalls are scrawled with soldiers' recollections, musings, confessions, fears, hopes, anger, and humor. Some remember their fallen comrades. Others debate the merits of the war. There are favorite music quotes and lines from scripture.

Some admit painfully to unjustified killings, others gloat about them. The relative merits of different branches of the services are debated. There are racist comments, and aching lines of poetry. The walls are as diverse as the army, a cross-section of American society, united temporarily by their experiences in wartime.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DO NOT worry
about tomorrow
cause tomorrow has
its own worries.

Columbian Democracy at Risk?

The left is out to destroy it, but the U.S. Congress can stop them

By James Roberts

James M. Roberts is the Research Fellow in Freedom and Growth at The Heritage Foundation's Center for International Trade and Economics. Roberts previously served in the State Department for 25 years. As a Foreign Service officer, he completed tours of duty at U.S. embassies in Mexico, Portugal, France, Panama, and Haiti. His areas of expertise include economic and political issues in Latin America and Europe and development assistance and nation-building. Roberts has a master's degree in international and development economics from Yale University.

Recent tensions along the borders between Ecuador, Colombia, and Venezuela have focused world attention on the Andean region and the problems being fomented there by Dictator-President Hugo Chavez and his political allies. The Chavistas, under the direction of "advisors" from the Castro regime in Cuba and the Mullahs in Iran, are exploiting unrest caused by decades of failed policies that have resulted in millions of people being trapped in extreme poverty. The solutions being peddled by Chavez, however, would make the situation worse for the poor, not better.

Chavez Has Ruined the Venezuelan Economy...

One has only to look at the mess this populist Caudillo has made at home in Venezuela to confirm that Hugo Chavez and his "Chavistas" haven't got a clue about managing an economy so that it will create good, sustainable private sector jobs to provide prosperity and hope to its citizens. Although, since taking power in 1999, Chavez has given the poor billions in government subsidies, the handouts have not improved lives. They are increasingly suffering from shortages of basic foodstuffs (caused by price controls and Chavez's war on the Venezuelan private manufacturing and agriculture sector), rising crime (Caracas has the highest murder rate in the Western Hemisphere), and inflation (also the hemisphere's highest). The infrastructure is deteriorating. Income inequality has not improved.

...He'd Like to Do the Same to Colombia

Chavez has squandered hundreds of billions of Venezuela's oil wealth windfall to enrich his corrupt cronies, to expand his government's bloated and inefficient bureaucracy, and to mount a multi-pronged assault against U.S. interests and influence in Latin America. He hopes to achieve at last Fidel Castro's dream of bringing down the America that he, Iranian President Ahmadinejad, Nicaraguan President Daniel Ortega, and others on the far left hate so much. Chavez has purchased $5 billion worth of helicopters, fighter jets, AK-47s, and other weaponry from Russia, yet Venezuela has no apparent enemies. He is also intervening in the domestic politics of Colombia by actively supporting the Revolutionary Armed Forces of Colombia (FARC), a narco-terrorist group intent on destroying Colombia's democratic government and turning Colombia into a narco-state.

> *"[Venezuelan President Hugo Chávez] aims to rule the 'Gran Colombia' that was (briefly) headed by Simon Bolivar 200 years ago, and Colombia is the jewel in would-be Emperor Hugo's crown."*

Trade and Globalization are the Tickets to Prosperity

The answer for Colombia (and Venezuela, too) is not Chavez's vaunted "21st Century Socialism," which was a proven failure in its earlier incarnations elsewhere (e.g. in Cuba and the late Soviet Union). Instead, it is the success story of economic development and a growing middle class in Mexico in the years since the signing of the North American Free Trade Agreement (NAFTA) that points the way to a brighter future for the Andean countries. Although the U.S. Congress

recently approved a trade agreement for Peru, the leadership of Congress refuses to do the same for Colombia.

Members of Congress who oppose the U.S.–Colombia Trade Promotion Agreement (TPA) are hurting the very people they claim to be protecting—workers and their families in the United States and Colombia. Not surprisingly, Big Labor and other elements of the anti-globalization left in the U.S. are the driving forces behind the opposition to freer trade. To counter the Bush Administration's push for a floor vote on the TPA by April 2008, AFL-CIO Executive Linda Chávez-Thompson led a "fact-finding" mission to Colombia in mid-February, which included Communications Workers of America President Larry Cohen and United Steelworkers counsel Dan Kovalik, to "gather information to inform the debate over the proposed trade agreement."

Selective Deafness

Although the AFL-CIO leaders met with some anti-TPA union leaders and government officials in Colombia, including President Alvaro Uribe, they went out of their way to avoid any encounters with the heads of the many trade unions that represent more than 80,000 Colombian workers in export industries (e.g., cut flowers, mining, petroleum products, coffee, textiles, sugar, and bananas). These representatives fervently favor the TPA and the new investments and jobs that it would bring. Apparently, the Big Labor visitors did not want to risk hearing anything from pro-TPA Colombian labor leaders that might contradict their pre-ordained conclusions. It seems that U.S. unions don't want facts to get in the way of their publicity stunts.

A History of Violence

Colombia has a tragic history of violence dating back to 1948, when a ruthless young Cuban sociopath named Fidel Castro joined other Latin leftists in fomenting urban riots and rural violence that became known as the Bogatazo and La Violencia, respectively. Their intention was to overthrow the democratic government that had ruled Colombia for 150 years. At the time, a multilateral meeting was being in held in Bogotá that led to the creation of the Organization of American States. A protest event, bankrolled by Argentine strongman Juan Peron, was attended by many of the rioters, including the young Comrade Castro. The riots claimed thousands of lives, including Colombian soldiers, revolutionaries, as well as innocent bystanders.

Colombia's civil war in the 1950s, coupled with Castro's call to revolution in the 1960s, created new insurgent groups like FARC. In the 1980s, the Colombian government failed to stop the rise of Pablo Escobar's Medellin Cartel and other murderous narco-traffickers, leading some on the right to form "paramilitaries" that waged war against drug traffickers, FARC, and the chaos generated by the political Left.

In the 1990s, FARC pursued the overthrow of the government of Colombia but also turned to the lucrative businesses of drug trafficking, kidnapping, and extortion. The combination of FARC, drug traffickers, and paramilitaries nearly destroyed the Colombian state. Cooperation between U.S. and Colombian administrations—first by Presidents Andres Pastrana and Bill Clinton and then by Presidents Álvaro Uribe and George W. Bush—led to the rollout of "Plan Colombia" in 1999. This bold, multi-year commitment to rebuild the Colombian state has helped the government to recover control of territory and extend security to the towns and the countryside. More than 30,000 paramilitaries have disarmed, FARC is on the run, and violence is down significantly.

Ecuadoran commandos and members of the special forces prepare to patrol territory running alongside Ecuador's border with Colombia, where in early March a member of the Revolutionary Armed Forces of Colombia (FARC), a guerrilla organization, was killed by Colombian forces. (Rodrigo Buendia/AFP/Getty Images)

Despite the progress of Plan Colombia, the culture of violence continues, and the U.S. is Colombia's largest export market for cocaine. Ratification of the TPA would help Co-

lombia to strengthen the government institutions that fight the scourge of illicit drugs.

President Uribe's Successes

Big Labor's script for stopping the Colombia TPA calls for heavy emphasis on the history of violence against Colombian labor leaders and alleged impunity for their government assailants. However, the number of murders of trade unionists has dropped by 75 percent since President Uribe took office, with only three killings so far in 2008. As a result of successful efforts to reduce crime and boost economic growth, President Uribe's approval rating is near 70 percent. As reported in Reuters, "The Colombian government has tripled spending on protection for unionists, human rights activists, and other at-risk individuals and established a special unit to prosecute crimes against trade unionists."

In fact, a large percentage of attacks—mostly against leaders of public-sector unions (teachers and other government workers)—had nothing at all to do with the victim's union affiliation. Many of the crimes ensued from "normal" motives (i.e., robbery) but are categorized as "anti-union violence" by leftists to further their anti-globalization, protectionist agenda. The best way to change Colombia's culture of violence is to follow Mexico's post-NAFTA example and develop a large, well-educated middle class. The TPA would move Colombia in that direction by integrating its economy into the globalized market, thus increasing its prosperity and economic growth.

Surrendering to Chávez

If Congress listens to the AFL-CIO and votes down the U.S.–Colombia TPA, it will deliver a potential knock-out blow to President Uribe, the United States' best friend in the region. A failed TPA would lead Colombians and people from other countries in Latin America to conclude that the U.S. is not a reliable partner. Effectively, it would be a vote of "No Confidence" in the Colombian people, which would be a public relations bonanza for Venezuelan President Hugo Chávez and the FARC narco-terrorists he is trying to legitimize in order to undermine the Uribe government. Chávez aims to rule the "Gran Colombia" that was (briefly) headed by Simon Bolivar 200 years ago, and Colombia is the jewel in would-be Emperor Hugo's crown.

A defeated TPA would put at risk the considerable progress made by Plan Colombia, into which Congress has poured more than $4 billion since 1999. Chávez would be emboldened to increase his already extensive collusion with the Colombian drug cartels, which are now on the run. The cartels are increasingly redirecting their products through Venezuela to Europe (through West Africa) and to the U.S. (through Haiti and the Dominican Republic—destabilizing them along the way).

If the TPA fails, perhaps the biggest losers would be the constituents of members of Congress. Colombia currently has duty-free access to the U.S. market through the Andean Trade Preference Act. Defeat of the TPA would deny U.S. businesses the same access to the Colombian market. This is a competitive disadvantage that hurts American businesses and workers and couldn't come at a worse time, with the U.S. economy heading into recession.

Partisan Politics Vs. National Security

The U.S.–Colombia TPA is much more than a simple trade agreement: it is the sealing of a strong alliance between two long-time friends. More than 60 years ago, Colombia sent troops to assist in the allied effort in the Korean War; it was the only South American country to do so. The defeat of the TPA would be a tremendous loss of face for President Uribe and the entire Colombian nation, as well as a devastating blow to U.S. prestige and influence in the entire Andean region.

The AFL-CIO says that Colombia will just have to be patient "until 2009" for a "new" TPA to be negotiated and signed. Big Labor clearly hopes that a Democratic administration will be taking power in Washington next year. Practically speaking, there is no way that a new TPA could be ready for implementation before 2010. Meanwhile, every day Colombia will continue to face oil-wealth-funded, multi-pronged assaults and challenges from Hugo Chávez and his Chavista followers both inside Colombia and in neighboring countries such as Ecuador and Bolivia. The AFL-CIO wants President Uribe to cool his heels until the end of his term in 2010, but neither Colombia nor the United States can wait for these problems to be addressed.

The timing of the opposition suggests that Big Labor is putting partisan politics ahead of national security. The Left's real agenda could be sheer protectionism or the raw partisan desire to deny a "legacy" victory to President Bush and the center-right government of Colombia.

Conclusion

Contrary to the propaganda of special interests, the U.S.–Colombia TPA would help the economies of both countries. Failure to ratify would damage the United States' reputation in the region, hinder progress in the war on drugs, and could push Colombia toward the embrace of Venezuelan President Hugo Chavez. Congress should put national security ahead of partisan politics and ratify the U.S.–Colombia TPA. Congress also should restore the cuts made to Plan Colombia's military budget in Fiscal Year 2008. With the agreement ratified, the Bush Administration and U.S. businesses could begin a new chapter in U.S. economic engagement with Colombia and the region.

The Breakdown of U.S. Intelligence

An Interview with Tim Weiner

Conducted by Christopher Gombeski

Tim Weiner is a reporter for the New York Times. *He has written on American intelligence for twenty years and won the Pulitzer Prize for his work on secret national security programs. He has traveled to Afghanistan and other nations to investigate CIA covert operations firsthand. His most recent book is* Legacy of Ashes: The History of the CIA.

President Eisenhower used the phrase "legacy of ashes" to describe the CIA at the end of his term. What did he mean at the time?

He was speaking about the entire realm of American intelligence, which at the time Allen Dulles oversaw as Director of Central Intelligence. Until the post was abolished, the Director of Central Intelligence was both the CEO of the CIA and the chairman of the board, in essence, of all intelligence agencies. What I found lamenting, during the last sessions of the National Security Council meetings in January 1961, was that throughout his eight years in office, he never really got it together and organized American intelligence so that it was equal to the sum of the parts, and Eisenhower was worried that he would hand, in his words, a "legacy of ashes" to his successor John Kennedy. And four months later came the Bay of Pigs.

Why have you said that the United States has "failed to create a first-rate spy service"?

First of all, we're new at it, relatively speaking. By comparison, the British have been at this for 500 years, and the Chinese for two millennia more than that. We've only been at it for 60 years, so we're, relatively speaking, newcomers at the world's second oldest profession. Another reason is that by our nature, we as Americans would prefer if everybody else would think like us, talk like us, act like us, be like us. We get mad when they don't. So we don't have a lot of in-country expertise in foreign lands, compared to say the British at the height of the British Empire. We don't have a lot of language ability. When the British were running an empire, for example, in the Raj in present-day India, Pakistan, and Afghanistan, they lived there for generations, and they learned the languages. We don't do generations; we do two-year tours. It's very hard to drill down deep into a foreign country or foreign culture in that way.

How would you propose reforming the agency?

> *"The judgment of the CIA...that Iraq had presented an existential threat to the United States will go down in American history as the blunder of the century."*

This will take years, possibly another generation. I think the place to begin is in learning the languages, history, and culture of the countries we're interested in. Learn Arabic, learn Chinese, learn Urdu, learn Pashto—the language of eastern Afghanistan, which the British called "the language that would be spoken in Hell." To get anywhere near fluency teaching those languages takes five years. There is a program that was begun in 1991 at the end of the Cold War to teach undergraduate and graduate students those fundamentals and become national security officers. Those programs are currently funded at $2 million per year for graduates and another $2 million for undergraduates. Now that's pathetic. If you were serious about this, you would increase that by orders of magnitude and train up a new generation of people coming out of high school in language and culture.

Defenders of the CIA often argue that the agency's successes are by necessity kept secret while its failures are common knowledge. In your book, however, you cite CIA officer Donald Gregg as claiming that the CIA has a "great

reputation and a terrible record." What are we to make of the CIA's track record?

First of all, Don Gregg had said that he strongly suspects that if all the records were opened up and all of the successes were known, the balance would not shift in terms of the CIA's covert, analytical, or espionage successes and failures. I think I agree with him. Because the agency operates in a democracy, they have to practice politics and public relations, and they have ways of letting their successes be known.

Critics of the CIA have tended to characterize the agency as one out of control and run amok. Famously, the Church Committee in the 1970s, tasked with examining its history of covert operations, called it "a rogue elephant." Do these critiques accurately describe the situation?

That was Frank Church's line, and he was wrong. The fact is that ever since the Bay of Pigs, with very few exceptions, the CIA has been exquisitely sensitive to presidential demand and control. It does what the president wants it to do. When people and nations get trampled, it isn't the elephant's fault but often the fault of the mahout, or elephant driver. That driver is the president of the United States.

Where does that leave Congress?

Congress has to do its job. For thirty years now, Congress has had formal oversight committees to oversee the CIA. Especially in recent years, they have been derelict in their duties. The 109th Congress in 2006-07 didn't even pass an intelligence authorization bill—that's the basic legislation that governs policy and budgeting. That's the first time that it happened in 30 years, and that is really close to criminal negligence. The American people deserve a modicum of public information about their secret intelligence, and it is the job of their elected representatives to deliver. It means they really have to get their act together and ask hard questions and report back to the American people. They have not done that. Since 9/11, this administration has operated under extraordinarily tight secrecy and has limited reporting to Congress severely. Congress, until quite recently, has not had the temerity to fight back. We have spent 60 years trying to figure out how to run a secret intelligence service in an open American democracy, and I think my book demonstrates we haven't gotten that question right yet. There is always going to be a tug of war between secrecy and openness—or to put it another way, security and liberty. Since 9/11 the tug has been much stronger in the executive branch. This president and this vice president assert that President Bush is a commander-in-chief in a time of war and thus can and does assume unitary powers; it is not a tripartite government with an executive, legislative, and judicial branch anymore. When the president issues orders that abolish habeas corpus or legitimate interrogation techniques that are tantamount to torture, he feels he can do this with a wave of the wand or a stroke of the pen. When presidents do that, they knock our system of checks and balances out of alignment. This is not what the Framers had in mind when they created the three coequal branches of government to watch over each other, and this administration has argued that all presidential action taken in the name of national security is constitutional. This is not what Jefferson and Madison had in mind.

Is the existence of a covert, amoral intelligence service compatible with the interests of democracy?

Yes. We have to have an intelligence service and good intelligence. But by this I mean espionage and analysis—that is, figuring out what is going on in the world. Running secret prisons isn't espionage. Waterboarding isn't espionage; it is a practice from the Spanish Inquisition. Espionage is a slow, very difficult practice and has been going on since before Joshua took Jericho. You want to know the world? You need spies. You want to change the world? You send in the Marines. That's not what an intelligence service is supposed to do.

While the CIA has undertaken covert operations and engaged in psychological warfare since its beginnings, these duties were not intended to be in the CIA's original purview. Why was intelligence-gathering of little interest to the CIA's founding fathers? Has the balance changed today?

Espionage is very difficult and requires long years, patience, and living very often in dangerous places, whereas buying a politician, trying to swing an election, or running guns is really quite simple. Politics is money. It's easier to try to change the world than to know what is going on. That's part of the problem. The other part of the problem has been the presidents. Not one president except George H. W. Bush really understood the first thing about the CIA and what it could and could not do for him. Presidents want silver bullets and action today. "Action this day," Churchill said. And so they try to use the CIA as a secret weapon, and it's just not very good at that. It has proven that time and again. When the president has a problem, he doesn't like it when his intelligence officers tell him they can figure it out but it might take five years; the president doesn't have five years. He wants his problem fixed now, and espionage is not about now; covert action is. So presidents choose to use the CIA this way.

You write that the CIA was stymied in its attempts to gather crucial intelligence from within the Kremlin on matters as important as the strength of Soviet nuclear firepower. How does this failure compare to the intelligence breakdown in the lead-up to the Iraq War?

CIA Director Michael Hayden addresses the media following testimony before the Senate Select Committee on Intelligence in December 2007 concerning the revelation that in 2005 the CIA destroyed videotapes of terror suspect interrogations. (Chip Somodevilla/Getty Images)

Eventually, in the 60s and 70s, the United States developed spy satellites that could look down on the Soviet Union and count missile silos and tank parts and give a rough idea of Soviet military strength. Had we also been looking at Soviet farms and seen potatoes rotting in the fields because there wasn't enough fuel to take it to market, if we had moved openly among, as tourists did all the time, the Soviet cities and seen people queuing up for bread and salt, we might have realized how weak they really were and proceeded differently. We spent $2 trillion trying to keep the Cold War cold, on armaments. We may spend another $2 trillion on our misadventure in Iraq. Add together the costs of war, weaponry, caring for injured soldiers—that is the cost of bad intelligence. The CIA told Colin Powell and George Bush that Iraq was bristling with chemical and biological weapons, and that was the moral basis for a preemptive war. It turned out to be dead wrong; that's what got us into this mess. There were also estimates inside and outside the CIA that Iraqis would welcome us with candy and flowers and that once we got a hold of the means of production, the oil revenues from Iraq would pay for the cost of the war. That's bad intelligence. Ultimately when intelligence fails, soldiers die, leaders mislead, and generals get lost in the fog of war. That is the consequence of bad intelligence.

You write that the "inability to penetrate North Korea remains the longest running intelligence failure" in CIA history. Does the CIA know with any certainty what is going on in Pyongyang?

No. Our diplomats have some idea because they've been part of these multiparty talks, but in terms of the intentions of the North Korean leadership—nothing.

By comparison, you write that the United States had collected vast amounts of intelligence on its enemies in Vietnam. Yet, you argue that "never had so much intelligence meant so little." Why was this so?

Vietnam started out as the CIA's war. By 1964-65, it was the military's war. The CIA was right about Vietnam as early as 1966—or should I say less wrong than any other branch of American government? They tried to tell military leadership and the White House that this was a political war, that it could not be won by military means alone, and that Vietnamese communists' will to resist was very strong. I don't think that message got through. There are eight miles of microfilm detailing the war contained in the factory warehouses along the Potomac. Ultimately, the CIA was right about Vietnam, and it was right early on. Presidents just often don't listen.

Is it fair to say that many of the CIA's past failures—in Iraq, Iran, and Afghanistan, for example—are responsible for some of today's most urgent problems?

No. Ultimately, the CIA does not make American foreign policy; it executes it. Its judgments can shape American foreign policy, and they often do. But it is the president of the United States who has the call. 9/11 was not the CIA's fault; it was the failure of American government on many levels. The Iraq War was not the CIA's fault; President Bush made the call to go to war. As I said before, when intelligence fails, soldiers die, and the judgment of the CIA and American intelligence community that Iraq had presented an existential threat to the United States will go down in American history as the blunder of the century.

What have been the CIA's greatest successes?

The CIA contributed mightily to the analytical processes of arms control during the Cold War. The CIA analytically got Vietnam right early on. The CIA's support for the Afghan Mujahideen—the holy warriors of Afghanistan during the 1980s—saved Afghan lives, killed Soviet soldiers, and may have hastened the downfall of the Soviet Union. The Afghan example represents what happens when you don't have strategic vision or strategic intelligence. Reporters who traveled to Afghanistan, like myself in the 80s and 90s, reported and wrote that Afghanistan was becoming the international university of jihad against the United States, and so the people that the CIA armed with hundreds of millions of dollars of weapons in the 1980s are still around today killing American soldiers. Long run strategic successes? Very few. Tactical victories? Quite a few more. But in the long run, it's very hard for the agency to sustain covert victories. They have to be backed up with overt American foreign policy and have to be part of a strategic vision that unites our military, diplomatic, and intelligence strengths. But today our military is exhausted, our diplomacy is ineffectual, and our intelligence is far from strong.

The Rise of Pan-Arab News

Possibilities and pitfalls

By Rachel Bayefsky

Rachel Bayefsky is a junior in Morse College at Yale University. She is majoring in Ethics, Politics, and Economics with a concentration on religion and politics.

"Just try to change the media for the better. And I think the result will be a better Arab world," Abdul Rahman al-Rashed, general manager of the Arab satellite news channel Al Arabiya, told the *New York Times* on January 5, 2008.[1]

Pan-Arab satellite television news has become an important focus for those wishing to bring about democratic change in the Arab world. Satellite news channels discussing political events in a livelier, more critical fashion have spurred hope that the traditionally closed information environment in the Arab world will come to an end.

Yet, important questions remain concerning the viability of Arab satellite news as a serious agent of liberal reform. It is not clear that current channels have the independence or the financial stability necessary to apply a dose of greater openness and participation to the politics of the Arab world.

Faith in the novelty of pan-Arab satellite television can be traced back to its beginnings in an environment previously ruled by government-owned media. The revolutionary regimes of the 1950s and 1960s, such as Egypt and Syria, often turned to the press to bolster support for authoritarian governments. But CNN reporting of the 1991 Gulf War, which was rebroadcast by Arab countries wishing to counter Iraqi radio propaganda, gave viewers a taste of exciting, accurate reporting free from state dictates. Arab governments began to realize that promoting semi-private media endeavors could be highly attractive to millions of viewers—and therefore highly influential.[2]

Many of the first satellite channels—including the Middle East Broadcasting Center, Orbit, and ART—were bankrolled by individuals connected to the Saudi royal family.[3] In 1998, 10 to 15 percent of households in the Arab world had regular access to satellite television, and satellites have become a common sight on rooftops throughout the region. (The viewing audience of pan-Arab satellite television, however, remains disproportionately well-off and urban.)[4] Yet one of the largest breakthroughs in Arab satellite television came not from Saudi Arabia but from Qatar—through the creation of the news channel Al Jazeera.

> *"[Time suggested that] arguably nothing—including the Bush Administration's panoply of democratization programs—has done more than Al Jazeera to open minds and challenge authority in the Middle East."*

By hiring Western-trained reporters, adopting flashy backgrounds, and exhibiting technological adeptness, Al Jazeera brought a news reporting style that raised eyebrows and fists in the Middle East.[5] "The opinion—and the opposite opinion," is Al Jazeera's motto, and it has definitely presented views previously unaired on Arab television.[6] Programs have broached taboo subjects like female circumcision, accused the rulers of Jordan of being in the pay of the United States, run interviews with American and Israeli leaders, and discussed the little-known conflict in the Western Sahara.

Al Jazeera's controversial reporting style has earned the ire of both Arab and Western leaders, some of whom have threatened possible repercussions on the channel's finan-

The headquarters of the satellite news channel Al Arabiya are located in Dubai, United Arab Emirates. The channel recently marked its fifth anniversary in March 2008. (Patrick Baz/AFP/Getty Images)

cial backer, the emir of Qatar. Saudi Arabia objected to a number of specific issues, including Al Jazeera's spotlight on the illness of the Saudi King Fahd, and consequently banned Al Jazeera from reporting within the country. Morocco, Kuwait, Tunisia, and Libya have all recalled their ambassadors from Qatar in response to Al Jazeera coverage, and Jordan closed the Al Jazeera office in Amman for a year after the station aired a program criticizing the government.[7] The U.S. has also protested Al Jazeera's broadcasting of taped messages from Osama bin Laden and Iraqi militants, and Al Jazeera has been banned several times by the Iraqi Governing Council and then the Iraqi government.[8]

In February 2003, the late Saudi King Fahd's brother-in-law, Walid Ali Ibrahim, decided to take matters into his own hands. The Saudi-owned Middle East Broadcasting Association started its own all-news channel, Al Arabiya, based in Dubai in the United Arab Emirates. Al Arabiya was specifically designed to compete with Al Jazeera; it bills itself as the less controversial but equally insightful counterpart of its Qatari rival.[9] It also strongly emphasizes professionalism; Al Arabiya's presentation is more digitized, its logo more "Western," and its reporting more straightforward and less provocative than that of Al Jazeera. While Al Jazeera's ratings remain consistently higher, Al Arabiya has proven a strong competitor. Statistics from the Allied Media marketing service report approximately five million households tuning into Al Arabiya from the Middle East,[10] compared to 40 million Al Jazeera viewers in the Arab world.[11]

The question remains as to whether either news channel can serve as a true agent of democratic change. Many argue that one or both can. *Time* magazine suggested in October 2006, for instance, that "arguably nothing—including the Bush Administration's panoply of democratization programs—has done more than Al Jazeera to open minds and challenge authority in the Middle East."[12] Al Arabiya also believes it has a unique ability to change Arab politics. General manager al-Rashed believes that the rules of Arabic-language media have changed, in large part because, according to the *New York Times*, "Arabiya led the way, replacing the old, loaded terms with more neutral ones, offering a wider variety of opinions, aiming at balance."[13]

Pan-Arab satellite television, however, faces serious political and economic difficulties impeding its ability to play an influential democratizing role. One key obstacle is their funding structure. Both channels remain financially dependent on subsidies, with Qatar supporting Al Jazeera[14] and Gulf investors, especially influential Saudis close to the royal family, supporting Al Arabiya.[15] Their ability to attract advertisements has been hampered by a host of factors: companies' wariness toward jeopardizing their ties with Saudi Arabia or Qatar through advertising decisions; the controversy associated with the channels' coverage of the Iraq War; and, in the case of Western multinationals, the difficulties of adjusting Western-produced ads to local sensibilities. Some multinational corporations have opted to stay out of the news broadcasting environs altogether and focus on reaching Arab audiences through popular entertainment channels.[16]

Finding advertising has been particularly difficult for Al Jazeera, which some businesses perceive as too risky or "controversial." Saudi Arabia and Kuwait, in fact, are said to have banned local companies from advertising on the channel.[17] Advertisements on Al Arabiya are slightly less scarce and more varied, but they do not provide the channel with financial independence.

The channel's financial dependence results in selective reporting that often reflects government opinion. Al Jazeera has often been accused of not criticizing Qatar's

ruling Al Thani family to the same extent as other Middle Eastern governments.[18] The same holds true for Al Arabiya. As the director-general of Al Arabiya put it, "I can give you a long list of things that Al Jazeera doesn't show on television, and I can give you also a long list of things I don't show on television about the Saudis."[19] Qatar's decision to fund and promote Al Jazeera may not indicate that Qatar is taking a large step towards political openness, but rather that the ruling elite in Qatar finds it advantageous to keep an ostensibly independent news source under its auspices. For its part, Saudi Arabia has worked hard to buoy Al Arabiya's competitive position, and such support has consequences. One Al Arabiya reporter attempted to produce a documentary on African suffering in Darfur, called "Jihad on Horseback." As he revealed in the May 2007 issue of *Arab Media & Society*, a phone call from Sudanese President Omar al-Bashir to the Saudi king and "too many weighty people" prevented the broadcasting of the documentary on Al Arabiya.[20] Gulf countries have long been places where the line between government subsidy and government influence is not especially easy to draw.[21]

In addition to the governments' restrictions on news coverage, a general lack of open and democratic government in the region limits the satellite channels' ability to report. As the general manager of Al Arabiya noted in March 2007 PBS interview, "You have to appease [Arab governments] to a certain point so they don't close down your office...And every single TV station in the region does this."[22]

Moreover, many argue that in order for the channels to truly bring a breath of fresh air to the Arab world, they would need to undergo basic changes such as extending their scope by questioning widely-accepted attitudes within the region. Changing the paradigm of news reporting in the Arab world, however, is likely to run into trouble. Al Jazeera and Al Arabiya's pan-Arab orientation often means focusing on issues that appeal to the "lowest common denominator"–the subjects and opinions least likely to alienate a large segment of Arab viewers.[23] The situation in Iraq and the Israeli-Palestinian conflict are key focuses of satellite channels, and stories usually focus disproportionately on Arab suffering at Western hands, often treated without context.

The channels' practice of interviewing previously taboo officials, such as former Israeli prime ministers and secular Muslims like Los Angeles psychologist Wafa Sultan, is frequently cited as indicative of their willingness to air the opinions of the "other side."[24] But show hosts often use these guests to reinforce enmity towards controversial individuals and their views rather than to reduce it. There are some key differences between the coverage of Al Jazeera and Al Arabiya in this regard, with the focus on the Israeli-Arab conflict more pervasive in Al Jazeera. Neither channel, though, is immune to pan-Arab biases. An Al Arabiya host interviewing the former dean of Islamic Law at Qatar University on May 11, 2007 argued in response to the former dean's criticism of suicide bombing, "at the very least, they strike terror in the hearts of the enemies."[25]

Pan-Arab satellite news is sometimes considered a force for greater openness and democratization. Perhaps, however, this perspective has it the wrong way round; not until the Arab world sees greater openness and democratization will its viewers be able to access truly independent, effective, and liberal news channels. As the satellite channels progress into the second decade of their existence, then, the world should bear in mind the practical limitations on their current operations.

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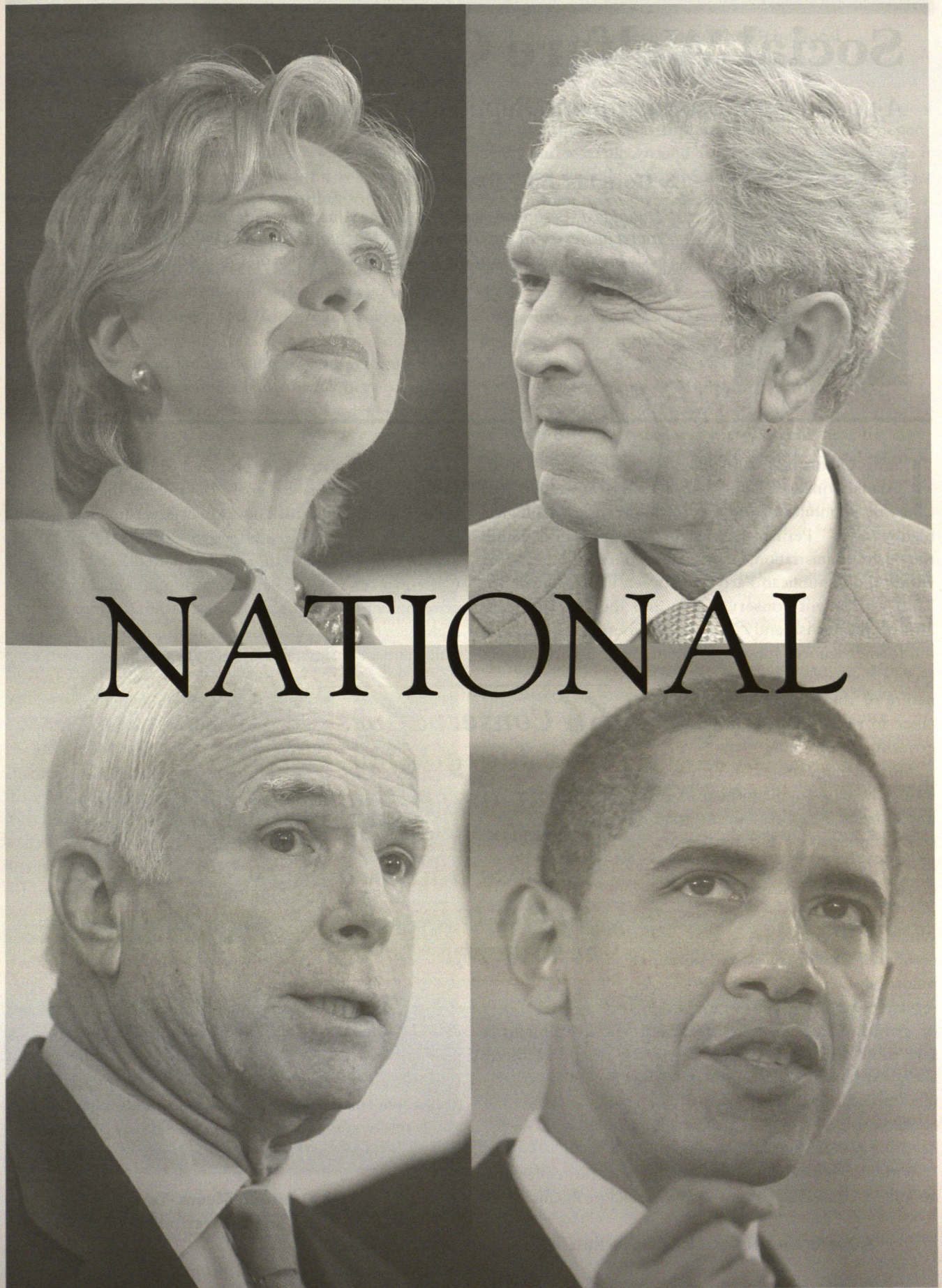
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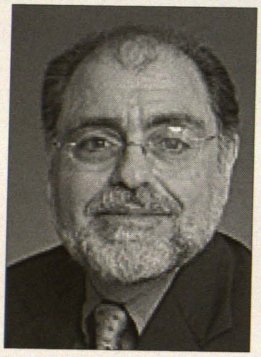
Social Welfare Conservatism

A positive philosophy for the Republican Party



By Douglas J. Besharov

Douglas J. Besharov, a scholar at the American Enterprise Institute and a professor at the University of Maryland School of Public Policy, was the first director of the U.S. National Center on Child Abuse and Neglect.

In his October 31, 2007 *Washington Post* op-ed, "Open-Arms Conservatism," Michael Gerson argued that "the Republican Party is in the midst of an ideological identity crisis." Perhaps because of his experiences within the Bush administration, Gerson falsely portrayed the choice within the Republican Party as between libertarianism (or "antigovernment conservatism") and the "social teachings of the Jewish and Christian traditions," arguing that the former ignores the plight of the most disadvantaged. Gerson's assessment misrepresents the nature of the true conservative's reluctance to rush headlong into large, new government programs.

Most Americans—conservatives as well as liberals—want to help their fellow citizens. Most Americans want an end to unnecessary suffering and racial discrimination, want to see greater equality of opportunity, and want to recognize government's vital role in advancing these and other social goals. But compared with liberals—and here's the point that Gerson did not make—conservatives are more sensitive to the limits of government's ability to ameliorate social problems. I say "more sensitive" because intensity is the point. Many liberals are concerned about the size and efficacy of government programs; they are just less worried about them than conservatives are, or they may feel more strongly about the need for government to "do something."

With that relativity in mind, consider six principles that underlie a conservative approach to social problems.

A Preference for Limited Government

Most conservatives are prepared to use government to further important social goals, but only in the absence of viable private solutions. They expect government programs to be less efficient, less effective, difficult to terminate, and more likely to have unforeseen (and possibly harmful) consequences. Liberals often see this preference for limited government as nothing more than a selfish desire to avoid higher tax rates (as well as callous indifference to human suffering and inequality). But conservatives see big government as stifling creativity and enterprise and as a danger to individual liberty—in small ways, if not big ones.

> *"Conservatives see big government as stifling creativity and enterprise and as a danger to individual liberty."*

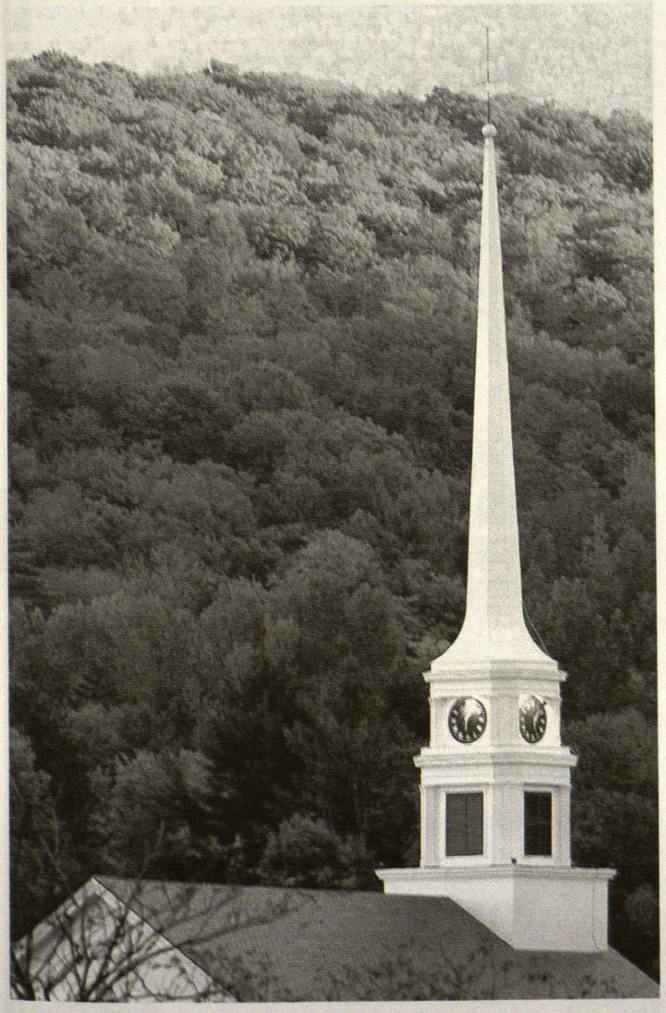
No one really knows how much government is too much government, so conservatives tend to be wary of all expansions because they fear that every expansion is part of an unchecked upward spiral. The larger government is, the more voters are dependent on it for benefits, subsidies, and jobs. This, the thinking goes, makes politics even more about the distribution of government benefits, which in turn creates pressure for yet higher taxes and yet more government. As Winston Churchill once wrote, probably borrowing from Sir Alexander Tytler, the 18th century Scottish historian, "A democracy cannot exist as a permanent form of government. It can only exist until the voters discover that they can vote themselves largesse from the public treasury."[1]

A Desire to Means-Test or Otherwise Target Government Benefits

Wariness about universal programs is a corollary of

limited government and low taxes. The argument in favor of universal programs and against means-testing is, crudely, that only if the middle class is hooked on the program will there be sufficient political support for it. Richard Titmuss, the British social researcher, argued that "separate discriminatory services for poor people have always tended to be poor quality services."[2] Perhaps—but this is one of those widely repeated political axioms with little or not actual evidence supporting it.

Compared to universal social welfare programs—such as Social Security and Medicare—targeted programs are much less expensive and, if properly focused, can do as much and perhaps more good. Too often, programs that seek to serve both the middle class and the poor do a poor job serving the poor. Student aid is a good example: costs have skyrocketed and benefits have shrunk because of the great cost of serving so many non-poor students.



Leave the church alone: Besharov argues that government should defer to mediating institutions, including religious ones. (Don Emmert, AFP/Getty Images)

A Concern about the Behavioral Consequences of Assistance

Conservatives believe that no-strings-attached assistance has often been a catastrophe, creating even more dependency and a fertile ground for social problems. Again, it is not that liberals are oblivious to such concerns; it's just that they are more worried about leaving someone out of the social safety net than they are about increasing levels of dependence. Thus, more conservatives are happy with the tough strictures of the 1996 welfare reform law, but when the law was up for reauthorization, many liberals pushed for various exceptions to work requirements and to the five-year time limit on benefits.

A Deference to Mediating Institutions

These days, everyone seems eager to harness the energies—and legitimacy—of family, neighborhood, church, and other societal groupings for this or that social priority. These are the voluntary associations that form the glue of society, which Edmund Burke called society's "little platoons."[3]

But the key word here is "deference." Deference means letting mediating institutions do it "their way"—in programming, in staffing, in their tendency to be judgmental, and even in their reliance on religious faith. Too many people on the left and right want to use mediating institutions to further government's objectives in government's way.

A former head of a Catholic charities agency once complained to me, "Government funding does not help us to do what we want to do. It just gets us to add our own money to what the government wants us to do. And then they tell us how to do it." We should appreciate mediating institutions for what they seem to accomplish without changing them into institutions that might be much less effective. Of course, there is a limit to what private institutions should be allowed to do with public funds, but conservatism starts with greater initial respect for the institution's own way of doing things.

Respect for Private Choice, Often in the Form of Markets

Conservatives have great faith in the ability of individuals—including the poor—to make sound decisions about their lives. How many times do we hear it said, for example, that poor mothers—all mothers, actually—cannot be trusted to choose good child care for their children? That is why advocates push for the heavy regulation of child care, even though that dim view of parental judgment has been proven wrong by the successful use of child care vouchers, a federal guarantee since 1992.

Private choice is a value in itself, but it does so much more. When properly channeled, the individual choices of thousands about the services they receive translate into market forces many times more efficient—and less political—than the top-down decision making that characterizes most current programming.

Notice that I have said nothing about school vouchers. That is because, like a true conservative, I would like to see a lot more experience and rigorous evaluation before we take the final plunge into full-scale implementation. We should give them a fair test, but it should be just that: a test.

Humility Bred from Disappointing Experiences: The Likelihood of Unintended Consequences

Here the lines get blurry. Many political conservatives are anything but humble about their social policy ideas, while many liberals display a healthy skepticism about overly ambitious designs. So, perhaps this principle refers to "conservatives" with a very small "c."

The plain fact is that contemporary social welfare efforts are strewn with programmatic failures, unintended consequences, and just plain damage to individuals, neighborhoods, and even whole cities. It took more than a generation, for example, for downtown New Haven to recover from the federal government's catastrophic urban renewal programs of the 1960s. Humility of purpose and design should permeate social planning.

When a problem seems bad enough, people often want to "do something," even if the remedy is unproven or unlikely to succeed. Being conservative sometimes means seeing problems and deciding that nothing can be done—at least not immediately. That should not be the end of the inquiry, though. Being conservative includes a commitment to experimentation—even with ideas with which one does not agree—coupled with rigorous and honest evaluation.

One additional point about experimentation: in our constitutional system, humility of design includes a general but refutable preference for state action over federal action. It is simply easier to correct past mistakes in a state capital than it is in Washington.

I have labeled these six principles "conservative," but they are relevant to any sound social policy making—from either the left or the right. One does not have to be a conservative to be wary of unrealistic goals and the possible ill effects of government intervention. Remember the "tough liberals" of the Kennedy Administration? P

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[1] *Alexander Tytler, Cycle of Democracy (n.p., 1770).*
[2] *Richard M. Titmuss, Commitment to Welfare (London: George Allen and Unwin Ltd, 1968): 134.*
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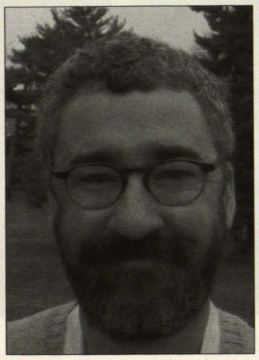
THE POLITIC

Religion and Rhetoric

The two Americas of 1960 and 2007



By Bernard Bate

Bernard Bate is an Assistant Professor of Anthropology at Yale and focuses on Tamil South Asia and its language, politics, gender and the historical ethnography of language. His previous research examined political and literary oratory in the contexts of its production in Madurai, Tamilnadu.

In December 2007, Mitt Romney, a Republican candidate seeking his party's nomination in the presidential race, felt compelled to offer an apology for his Mormonism. He delivered a speech that was widely compared to one that John F. Kennedy gave some 47 years earlier clarifying his relationship to the Catholic Church. Romney, it seemed, welcomed the comparison, evoked it in the speech, and provoked a great deal of discussion in major media outlets and on the blogs about how the two were similar and different. But in all the discussions of the similarities between the two religion speeches, there was very little actual comparison of how speeches themselves reflect the two strikingly different Americas of 2007 and 1960.

> *"We must now admit that the America in which a candidate's religious views are 'his own private affair' failed to emerge, despite JFK's belief."*

Both the Kennedy and Romney speeches were delivered by presidential candidates who felt compelled to respond to critics of their religion: JFK, a Catholic, to a largely Protestant country that wondered where a Catholic's loyalties might ultimately lie; Romney, a Mormon, to a party whose politics have become disproportionately influenced by a politically mobilized minority of people energized by religious zeal. Both speeches were delivered in Texas. But for all the claims that Romney channeled JFK, that is where the similarities end. As it turns out, the two speeches index a sea change in the place of religion in American public life, our sense of ourselves as a people, and the erosion of the rhetorical arts in America today.

Just two months before the general election in 1960, JFK addressed the Greater Houston Ministerial Association, a group of Baptist ministers, who had invited him to speak directly to Protestants. A pamphlet campaign targeting JFK lifted, in JFK's words, "carefully selected quotations out of context from the statements of Catholic Church leaders, usually in other countries, frequently in other centuries" to disqualify the first Catholic candidate from the presidency. Television footage—now available on www.youtube.com—shows him from shoulders up, standing on a stage in front of a heavy curtain. The setting of Kennedy's speech was, if not hostile territory, far from home ground. The ministers offered polite applause of welcome to the future president and again upon completion of his speech.

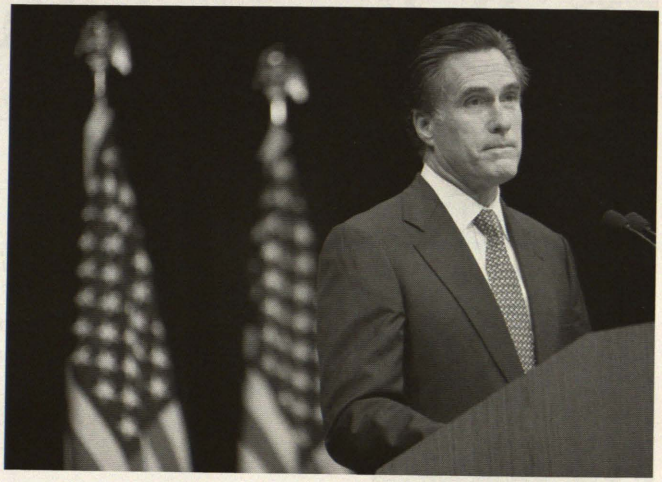
Mitt Romney, in contrast, spoke at the onset of the primary season at the invitation of former President George H.W. Bush at his presidential library, and he was welcomed warmly by an earnestly Republican audience. Flanked by eight American flags and speaking from a podium emblazed with the Seal of the President of the United States of America, Romney could not have been more at home. He was interrupted by applause 13 times. Footage shows him comfortable, smiling, at ease, polished.

In stark contrast to Romney, JFK struck a near-defiant tone in the speech—something no candidate (except perhaps John McCain) dares today. JFK's barely veiled sarcasm chastised his audience, and by extension American bigotry. Kennedy stood on that stage in Houston to discuss what he deemed the "so-called religious issue." Just moments before, his host, Reverend Meza, had exulted that the "religious issue" was finally being taken seriously by the American people. The Reverend argued that "the fact that the senator is with us tonight … is because that there are many serious minds decently raising questions" regarding a presidential candidate's religious views. It was clearly irritating to JFK that he had to address this issue, "once again," when

there were "hungry children in West Virginia," "old people too poor to pay their doctors bills," and "families forced to give up their farms"—"for war and hunger and ignorance and despair know no religious barrier." And as for the "religious issue," he asserted the "absolute [...] separation between church and state." Period. That much is well understood and is the single most cited phrase of the speech.

Beyond that, JFK's speech was an extraordinarily well-crafted piece of oratory, something which is little noted in contemporary commentary. His 11-minute talk was structured by a recurring theme which he introduced early on in the speech: "the kind of America I believe in." As Martin Luther King, Jr. returns to the phrase "I have a dream," Kennedy's speech returns to his theme again and again, providing a poetic structure to the speech as a whole. The speech thus has a rhythmicality to it as he asserts his belief in an America that is "neither Catholic nor Protestant nor Jewish," an America "where religious intolerance will someday end." He ends that segment of his speech with the aphoristic, "That is the kind of America in which I believe," and then engages in an oratorical sleight of hand by making the presidency a microcosm of America itself by saying, "And it represents the kind of presidency in which I believe." In the most poetically powerful passage of the entire speech—and a passage that encapsulates his views on the topic—he says, "I believe in a president whose views on religion are his own private affair, neither imposed upon him by the nation nor imposed by the nation upon him as a condition to holding that office." The poetic structure of the speech suggests to us that JFK's new generation was perhaps the last to receive the kind of education in rhetoric that would enable him to produce such an elegant oration.

Mitt Romney's speech was structured by parallel sound bites and a series of expected applause lines from a sympathetic audience. The poetic structure of the speech is almost nonexistent (with the exception of a few chiasmatic [A:B::B:A] sound bites such as "freedom requires religion just as religion requires freedom," a phrase most commentators of the speech dutifully reproduced). Phrases such as the "president will need the prayers of the people of all faiths" and "I will take care to separate the affairs of government from any religion, but I will not separate us from the God who gave us liberty" evoked strong applause, as the speechwriter (Romney?) expected. The speech was equally structured by parallel sound bites designed to target specific constituencies Romney needed in order to win. And so he asserted his belief that "Jesus Christ is the Son of God and the Savior of mankind" and thereby achieved the single most important mission of the entire speech, to mollify evangelical critics who have attacked Mormonism as non-Christian. And perhaps even more troublingly (and less noticed), he targeted those who subscribe to "Dispensationalism," a radical Christian theory of the Constitution's ultimate basis in the Bible: "Our greatness would not long endure without judges who respect the foundation of faith upon which our Constitution rests."



He's No JFK: Mitt Romney speaks at the George H. W. Bush Presidential Library in 2007 to address concerns about his Mormonism. (Paul Schutzer/Getty Images)

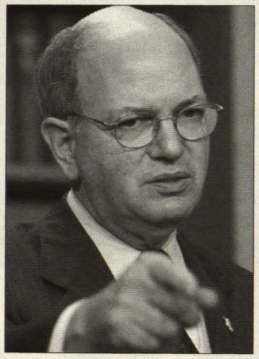
Troublingly, that was designed as an applause line, too.

Finally, Mitt Romney was interrupted by applause when he said, "Americans acknowledge that liberty is a gift of God, not an indulgence of government." He forgets what JFK knew: that when our Founding Fathers wrote that "all men are created equal, that they are endowed by their Creator with certain unalienable Rights," those who counted as free and equal men were a distinct minority among those who would live in those newly United States. If freedom was authored by God, it was certainly the struggles of men and women who ensured that the basic principles of freedom were applied to all of God's children, not just a few. And that struggle is the struggle that defines American history, from abolition to civil rights, from the right of a woman to vote to the rights of men and women to define how they will love and pledge themselves to each other in love.

Let's be clear: politicians are calculating animals who size up their constituencies and say what they feel they have to say in order to get elected. The two religion speeches of 1960 and 2007 were crafted to articulate what the candidates believed they had to say, not what they actually—really truly—believed. That's politics, then and now. So, the differences between the speeches do not so much reflect differences between the two men as they reflect differences between the two Americas that they responded to. And regardless of one's political views, we must now admit that the America in which a candidate's religious views are "his own private affair" failed to emerge, despite JFK's belief. JFK had only to assert principles clearly written in the Constitution and the American public appeared to let it go at that. Mr. Romney was compelled to clearly articulate a positive statement about his religious views, in essence, to articulate a specific religious creed as a condition to running as a candidate for the presidency. This is a sobering difference between the two Americas of 1960 and 2007.

Bringing Democrats Success

An Interview with Martin Frost



Conducted by Christopher Chen

Former Congressman Martin Frost (D-TX) is the newly-appointed president of America Votes, a coalition of 42 progressive organizations that coordinates voter education and turnout in swing states. He was a ranking member of the House Rules Committee and also served two terms as chairman of the House Democratic Caucus and two terms as chairman of the Democratic Congressional Campaign Committee. Congressman Frost, a commentator for Fox News Channel and Politico, is considered one of the Democratic Party's top strategists.

When you spoke with the Yale College Democrats on March 3, 2008, you predicted that Senator Obama would win the Texas primary. Why were you wrong?

Well, he looks like he's going to win the delegates but he didn't win the popular vote—I was not entirely correct. When I talked to the Yale College Democrats, I think I explained that with the peculiar procedure in Texas, it was possible for one candidate to win the popular vote and for the other candidate to win the delegates. It looks like he will narrowly win the delegates. I think Hillary put together a very strong campaign at the end, and sometimes campaigns do make a difference. She closed very strong, and she did what she needed to in terms of turning out the Hispanic vote. She was able to unify white rural voters—that wasn't enough to win, but she chipped into his margins in the suburbs, and that ultimately was the difference. She ran a very strong campaign.

In a February 18, 2008 article on *Politico*, you called the Texas dual primary and caucus method "Rube Goldberg-esque." What changes would you make to the presidential nominating process, both in Texas and nationwide?

I can't speak for the nationwide process, but Texas probably should go to a pure primary system. It is confusing. You had so many people show up at the caucuses, and the local elected Democratic officials weren't prepared for the large turnout. One of the reasons that you still have the caucus system is that's how you elect members of the state Democratic Executive Committee. The delegates elected to the state convention then caucus on the floor of the state convention and pick a state Democratic Executive Committeeman and a state Democratic Executive Committeewoman from their Senate district. There ought to be a way to do that without having it tied up with presidential politics.

Over the course of your career, Texas has shifted sharply to the right politically. Do you believe this shift is permanent?

No, I think that Texas will shift back over a period of time—not all at once, but in the foreseeable future. I think Democrats will be competitive statewide again in the not-too-distant future. Whether we would win a top-ballot race or perhaps win a down-ballot race statewide is hard to tell at this point, but I think we will start winning some statewide races. It might not be this year, but it will be in the not-too-distant future. Last time in 2006, we took all of the contested races in Dallas County, which had previously been a Republican county. We hope to do a similar thing in Harris County, where Houston's located, in this election. We're very close—within five seats—of taking back control of the Texas House of Representatives. It's a gradual process. I think we will be successful, but it does take time.

> *"I think Democrats will be competitive statewide again in the not-too-distant future."*

This rightward shift culminated in 2004 when you lost your 24th district seat because of former Congressman Tom Delay's (R-TX) targeted redistricting, which made the district much more conservative. You then

ran in the 32nd district race, which you lost to Republican Pete Sessions. What realistic methods can state governments take to stop gerrymandering?

Losing Control? Frost lost his seat because of Tom Delay's redistricting scheme, but he ses brighter days ahead for Texas Democrats. (Chip Somodevilla/Getty Images)

Basically, the redistricting eliminated the district I had previously represented. It divided it up into five pieces. The district that I had represented for many years didn't exist in any recognizable form. Some states have adopted bipartisan or nonpartisan commissions to draw up congressional lines. Iowa has a commission like that; Arizona does; there are some other states, and I think that's probably the ultimate answer.

You are the head of America Votes, an organization that you've called "the largest grassroots voter mobilization and education effort in America today on the progressive side." To what does America Votes owe its success?

Well, America Votes was started for the 2004 cycle. This is the third cycle we've been in existence. We've identified some very good field people to serve as state directors and political directors within very competitive states. They in turn will work with various progressive organizations that are interested in turnout. Our role is to coordinate the various groups that are working in that state, and we've found very good people to do that. We've brought the various progressive organizations together to meet on a regular basis. In many instances, they hadn't talked to each other, state-by-state, in the past. That's been a big accomplishment for us—to get them to work together.

What does America Votes do that the Democratic Party and individual campaigns cannot achieve?

In current American politics, a campaign is generally divided into three parts: one is what the candidate does, second is what the party does, and third is what independent groups do. Because there is such a significant number of people now who identify themselves as political independents, it's important to have organizations that work those voters—who can speak to those voters—on particular issues that they're concerned about, such as environmental issues, women's issues, and labor issues. That's what we do—we fill a void. There are large numbers of people today in American politics who don't necessarily listen to the message of either political party. They may ignore or pay little attention to the partisan message of the particular candidate, but they may respond to issues they care about. It's very important that that group of independent voters be worked in a coherent, organized way. That's what we try to do.

How do you characterize the differences between "bottom-up" and "top-down" approaches to campaigning?

Grassroots campaigning is all done on the local level. What we have is a national staff that then works with the people state-by-state, and the actual organizing is done out of the state. That's how you do grassroots politics. You don't do grassroots politics sitting in an office in Washington, D.C. What you do is work with the people state-by-state who understand how that works and how campaigning should be conducted.

Regarding Democratic efforts to win elections in Republican-dominated districts, you said in an April 24, 2004 *Off the Kuff* interview, "We cannot afford to swing wildly at every pitch hoping for a home run. We need to

pick our pitches carefully, hit singles and doubles and run bases aggressively." Do you think this philosophy conflicts with Democratic National Committee Chairman Howard Dean's 50-State Strategy to win elections at every level in every area of the country?

No, I don't. It's actually very consistent with that. Chairman Dean is trying to build up the state parties and trying to win local races. That's exactly what I was talking about. I think the issue is all about money. The more money he can raise, the more he can do across the country. I think his approach is correct; it's just a question of whether he'll have enough money to do this in every state.

You represented a fairly progressive district in a conservative state for 26 years. For Democrats to win in conservative areas in the South, how do Democratic candidates need to change?

A number of Democrats have been successful in more rural, conservative districts. My district was not a rural district; it was a suburban and urban district. It's important that Democrats reflect the values and the positions of people in those parts of the South, and lots of Democrats do. We're a big tent party. When I was Chairman of the DCCC in 1996 and in 1998, we worked hard to recruit candidates whose philosophies fit the districts they were running in. Rahm Emanuel (D-IL), as chairman in 2006, did the same thing. You have to understand where people are running and you have to find candidates that are appropriate for those areas. When you do that, you have a real chance of winning. That's something you can do in the South—recruit some candidates that are pro-gun rights and who may not be pro-choice on the abortion issue. The Democratic Party is a big enough tent to accommodate diverse views on hot-button issues like that. Where the Democratic Party has recruited candidates who accurately reflect the views of the area in which they're running, those candidates have done well in many cases.

How does the Democratic Party's national strategy need to change?

I don't think it needs to change, but I can only speak for the DCCC because that's what I was involved in. The DCCC has actually followed a very conscious strategy of trying to find moderate and conservative candidates to run in the moderate and conservative areas and not trying to recruit liberal candidates to run in districts where they can't win. That's how you get to a majority—by electing liberals, moderates, and conservatives in different parts of the country and in different types of districts. That's what the party did successfully in the 2006 election.

In a March 25, 2008 article on *Politico*, you wrote, "Should Clinton win the nomination on the basis of tainted delegates from Michigan and Florida, millions of African-Americans and young people who rallied to Obama's cause would have a reason to seriously consider not participating in the fall election." Do you feel that the same could happen if Clinton won without the delegates from Michigan and Florida but rather her advantage among superdelegates was able to overcome Obama's margin among pledged delegates?

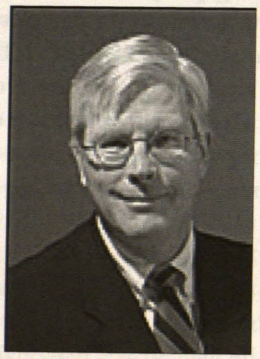
No, if she were to win and not rely on the Michigan and Florida delegates, there would be people who would object to that, but I think it would be viewed as a reasonable way for this to be resolved. There may be people who are unhappy with the result, but convincing superdelegates is a job for both candidates at this point because the election is so close. You can't win on the basis of illegally elected delegates. That's an entirely different issue from winning on the basis of convincing superdelegates that you're the most electable candidate. I'm not saying Clinton's necessarily going to win, but if she were to win by convincing superdelegates that she was the more electable candidate, that would be easier—it wouldn't be pleasant—for people who supported Obama to ultimately accept. I think that's very accurate.

Who will be the presidential and vice presidential candidates on both tickets, and who will prevail in November?

I don't know, and I'm not going to make a prediction about the candidates. In terms of the general election, I think this election is the Democratic Party's election to lose, and we could still lose it but we ought to win it. We should win, and I think we will win. P

On the Right Online

An Interview with Hugh Hewitt



Conducted by Alex Zhu

Hugh Hewitt is the host of a nationally syndicated radio show heard in more than 70 cities nationwide, and a professor of law at Chapman University Law School. He is the New York Times *best-selling author of* If It's Not Close, They Can't Cheat. *Hewitt received three Emmys during his decade of work as cohost of the PBS Los Angeles affiliate KCET's nightly news and public affairs show Life & Times. He is a weekly columnist for* The Daily Standard, *WorldNetDaily.com, and the online edition of* The Weekly Standard. *His website is www.hughhewitt.com.*

You initially supported Mitt Romney for president. After he dropped out, you wrote on your blog, "Governor Romney is an incredibly gifted man—intelligent in the way very few people are, charismatic, and blessed with an amiable openness and determined, strong character." Why do you think his campaign failed?

The conservative votes split. As a result, neither Governor Romney nor Governor Huckabee was able to assemble the combined strength of their two camps. Senator McCain triumphed by sort of running the center, moderate campaign that appealed to a slightly higher vote total than any of them, but sufficient to win an enormously greater number of delegates than either of them could given the dynamics of the campaign.

You wrote on February 1, 2008: "Conservatives around the country are sounding the alarm that John McCain's nomination means the end of the Reagan agenda." Now that he is the presumptive nominee, should conservatives rally around Senator McCain? Will they?

They absolutely should rally around him for several reasons, especially because of the war and the six Supreme Court justices who are 68 years or older. Senator McCain is not a movement conservative, but he is very conservative on key issues, and he is especially determined on the issue of the war, in stark contrast to Senator Obama and Senator Clinton. Will conservatives rally around McCain? That remains to be seen; I think Senator McCain made a good start at the CPAC convention in Washington in late February.

Do you think a conservative might run as a third party candidate and be able to pick up any significant support?

No. No conservative has ever done that from within the Republican Party. It would not be welcome and it would not succeed.

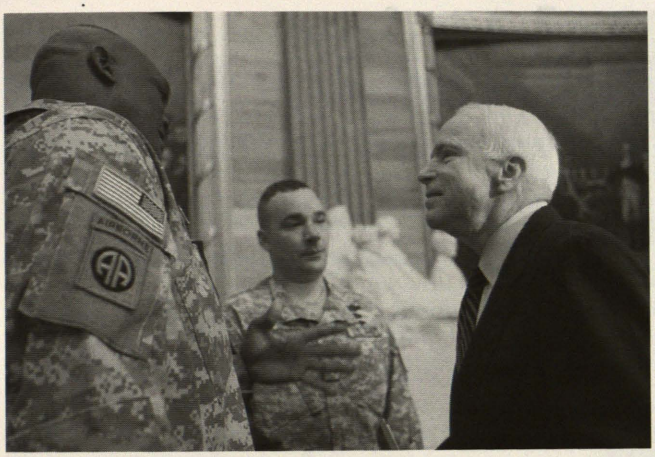
On February 7, 2008 you wrote, "The campaign ahead is first and foremost about victory in the war." What does "victory" mean to you, and how long would American troops have to stay in Iraq to achieve it?

I believe that American troops should be in Iraq for a long period of time to come, and hopefully the levels of casualties associated with that deployment will drop to the level of casualties associated with the deployments in Germany and South Korea, where we are there but there are no hostilities directed at us, and we assist in preserving a regional peace that is stable and enduring. The end of the war means the prolonged opposition to and successful disarmament of terrorist groups and regimes that support them—in particular Iran and Syria. It doesn't mean that terrorism will ever end, but the removal from the battlefield of regimes that support international terrorism will be, to me, the end of the war.

Do you have a time span in mind as to how long this might take?

It's for the duration and it could easily be for as long as the Cold War went, from 1945 through 1989.

You are a conservative blogger. As you know, the blogosphere is generally thought to be primarily dominated by liberals. Do you agree with this assessment, and do you think that the internet has the potential to become for the Left what talk radio has been for the Right?



A winning issue? John McCain, shown talking with American soldiers, strongly supports maintaining a large American troops presence in Iraq, a stance that Hewitt believes will rally conservatives around him. (Mark Wilson/Getty Images)

I don't agree with that assessment. I believe that traffic statistics are notoriously difficult to unpack because they don't account for people who repeatedly return to a site. That could mean that the center-right of the blogosphere is overstated or that the left side of the blogosphere is overstated—we simply don't know yet. Measurement is very, very difficult. But I see a lot of influence on both the left and right of the blogosphere, and I see new media—primarily electronic—tilted towards the center-right, but that old media—again, primarily electronic and newspapers—remains quite solidly on the left side of the political spectrum. So, I think that center-right views and causes are at a significant disadvantage still in the world of communications, both new and old, but that we're getting better at it.

Barack Obama has said on the stump, notably in Nevada, that he has the potential to be a transformational figure in American politics just as Ronald Reagan was, saying, "I think Ronald Reagan changed the trajectory of America in a way that Richard Nixon did not and in a way that Bill Clinton did not. He put us on a fundamentally different path because the country was ready for it." Do you think the country is ready to be put on a fundamentally different path in 2008, and do you think Barack Obama is the man to do it?

No, I don't. I believe that the United States is primarily a center-right country that would prefer to win in the war than to retreat from the front lines and that it prefers a high-growth economy as opposed to managed decline as we saw in European socialism in the past quarter century. I think Barack Obama is an incredibly gifted orator, but that the deficiencies of his preparation for the Oval Office are already obvious and will become even more so as the months go by, and if I were Senator Obama, I would not be speaking about Ronald Reagan-like landslides for a long time to come.

Young voters, when they vote, are much more likely to vote Democratic than any other age group. Does this reality make you worry about the future electoral viability of the Republican Party?

No. It's always been that way. When I was in Harvard in the mid-70s the same dynamic was at work. As people begin to enter the workforce, they become more conservative, and they really become more conservative when they have children.

So you think this is just a natural part of life?

Yes, it's a generational issue that repeats itself again and again. As Winston Churchill supposedly said, "Young and not to be a liberal is to have no heart. Old and not to be a conservative is to have no mind."

Do you think Barack Obama or Hillary Clinton would be easier for John McCain to beat in November?

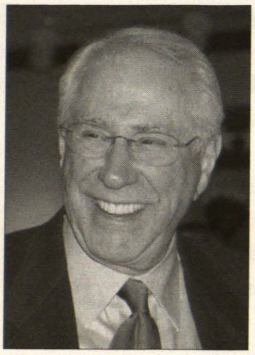
I think it would be much easier for him to defeat Senator Clinton. She's divisive with extraordinarily high negatives, and she lacks the natural communication skills that are abundantly evident in Senator Obama.

Who will be the Democratic nominee, who will be on the two tickets, and who will win?

I think it will be Senator Obama. I don't have a prediction on vice presidential candidates because I think those will be made much later in the season after extensive polling and additional news cycles shape the political battlefield, and folks who are making predictions now demonstrate a fundamental lack of seriousness about this. There are obviously very qualified people on both sides. For example, Governor Tim Pawlenty of Minnesota and Governor Mitt Romney are very compelling characters, and there's a lot of support for Governor Huckabee. I think McCain would be well-served by choosing a governor because two senators simply don't make a lot of people confident, and the same dynamic will hold true if it is in fact Senator Obama. I think he'll look to the bench—maybe Governor Tim Kaine in Virginia or elsewhere, or perhaps someone like Wesley Clark who has the military and foreign affairs experience that Senator Obama lacks. Who's gonna win? I don't know, nobody knows, but it could go decisively in either direction based on how the campaign is waged.

An Unconventional Voice

An Interview with Mike Gravel



Conducted by Mike Educate

***Mike Gravel**, a candidate for the Democratic nomination for president, served in the Alaska House of Representatives from 1963-66, and as Speaker from 1965-66. He then represented Alaska in the U.S. Senate from 1969-81. He served on the Finance, Interior, and Environmental and Public Works committees, chairing the Energy, Water Resources, Buildings and Grounds, and Environmental Pollution subcommittees.*

Why did you choose to run for president after being out of the public eye for over 20 years?

Well, our representative government and the federal system are absolutely broken. I am running on a platform of empowering the American people through the extremely vital power of direct self-governance. I want to give Americans the power of government and the means for lawmaking, as I specify under the National Initiative. This is a means to acquaint the American people with legislative power and give them incentive to change the government and how their government operates. They can improve upon it and come into the operational government as lawmakers. They would be sharing that responsibility with their elected officials.

In light of your concerns about the influence of the corporate media and politicians in Congress, why would the legislation be anything genuinely new?

Well, we cannot change the way we address these problems. The military-industrial complex's control of government is a good example. Our primary systems are skewed to benefit the small political elite that controls our society. So if you were to ask the American people—if they had the power—whether to get out of Iraq, the obvious answer would be to get out immediately. If we had the power to repair the health care system, we would enact legislation immediately. The federal government would never carry out initiatives like this. The wrong people control our institutions.

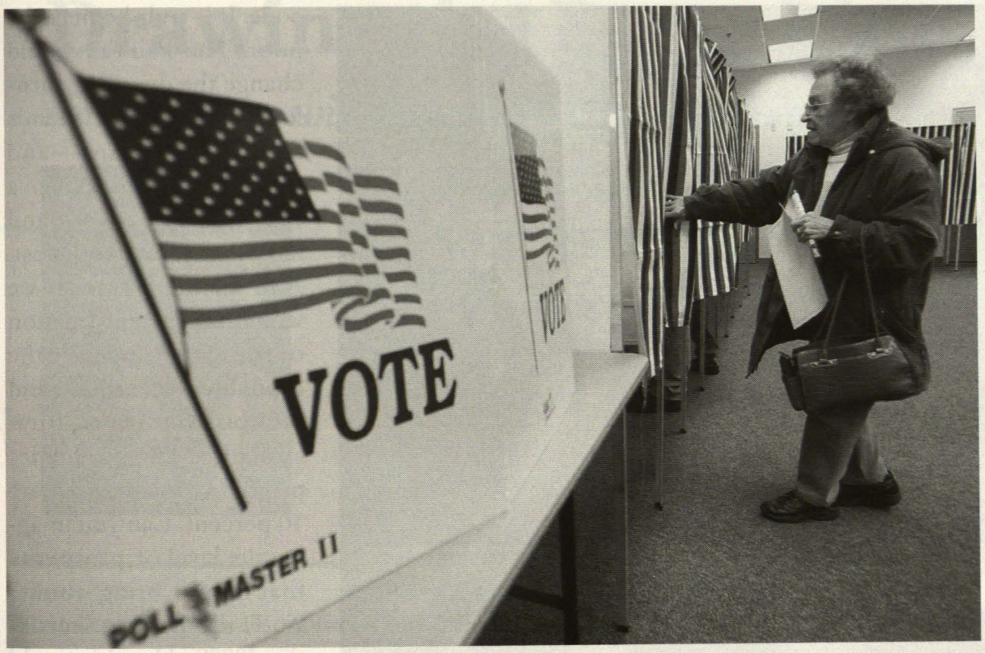
Go down the list of all the issues that affect our lives: the people can address many of these problems, but the government cannot meet our expectations. The people must recognize that the structure of our government is not designed to address our problems. All our government can do and has done is maintain the status quo through our elections; the specific policies may change, but those do not turn into actions. If the American people are to take responsibility, we must be able to make laws and as a result of that experience, become adults civically. And that is the only way you are going to be able to see change, and that's what you will never see if the people do not become lawmakers.

> *"If we give the people the power to act upon the issues, they will become informed and they will get involved."*

How do you respond to the claim that the average voter is ignorant and does not have the time to become sufficiently informed on policies in order to vote for them?

The people are not ignorant at all; people are not informed, and they need to become informed so that they can act upon legislation. We can inform people, but they currently can't do anything about it. They can vote for personalities, but they cannot address these issues to their liking. So, it is quite the contrary. If we give the people the power to act upon the issues, they will become informed and they will get involved. It is not mandatory; you may not need to vote on every issue. What we do want to foster is a habit of following through on legislation and enacting laws.

So who would be drafting the laws? Would it be the



300 million congresspeople? Gravel advocates giving the American people a more direct voice in passing laws. (Win McNamee/Getty Images)

people themselves, Congressmen, or special interest groups?

There are a number of people, including myself, who would like to draft initiatives and legislation, and have it submitted to the American people. A lot of folks would do that, but not everybody, because not everybody fancies himself to be a politician who is knowledgeable of all these areas of politics. Now keep in mind, once you get beyond the serious national issues, you are hard pressed to come up with a lot of other issues. So your question targets what issues people would be picking, building off of the national ones. People would probably be voting on three to four issues per year, maximum.

Why do you think Barack Obama has had so many successes recently, particularly with young voters?

Well Obama really epitomizes the case where people know that our present situation is in serious trouble, and they are hoping against hope that somebody can come along and supply the leadership for change. So he turns around and offers them rhetoric. The rhetoric is not enough; you need a specific plan for change, which he does not have. Oh sure, he says a lot about initiatives he has undertaken for education, social security, and health care. None of them bear any significant difference from the legislation we have been offered in the last 50 years. He buys into the military-industrial complex, and he buys into Wall Street controlling the Democratic Party. So he talks of change, but you are not going to see change. The true rub is that he raises expectations and he will not be able to deliver on those expectations. That will create a whole generation of cynics among a rejuvenated youth voting bloc.

What are your thoughts on Hillary?

She has a plan just like Barack Obama has a plan. She has a plan for health care, which is not a very good one. She has a plan that will continue American imperialism and continue the power of the military-industrial complex. I do not see that she has an agenda any different from the same old story that Barack Obama is also offering, except for a few minor details.

Excluding a few specifics, neither is an actual candidate for change. Really, what is change? The only change that has been offered in this campaign is what I have suggested: to empower the American people. The National Initiative would be the most fundamental change since the founding of the country. Neither candidate really understands what I am talking about.

When you spoke at the Yale Political Union in February 2008, you mentioned that if elected to the presidency, you would be a "legislator, not a president." Could you explain this?

That would definitely be the fun of being in the executive and being president. If you want to talk about some real changes, the Congress is not going to vote for it, because it would compromise their power, which is why we have not seen reforms in the tax code. They are in favor of the status quo because it makes them powerful. Change means they are going to have to give up their power. People would vote for that in a heart beat; the Congress certainly will not. That only happens if you can empower the American people, which is something I would help carry out as president.

You and Mike Huckabee have both been advocates for the FairTax—a national sales tax that would replace the current income tax. Considering how lower income earners spend a higher percentage of their

Not a fan: Gravel, shown at the Univision debate in September 2007, has harsh criticism for both remaining Democratic candidates. (Joe Raedle/Getty Images)

wages, might this be more regressive than the current tax code?

It is certainly not regressive at all. We all know that the current income-based tax code is inherently progressive, and the retail tax is as well. They are—in theory—progressive. The more you earn, the more you pay. The more you spend, the more you pay. With respect to a sales tax, you can make it more progressive than it currently is theorized to be by turning around and providing a tax rebate to people to pay for necessities. We would, of course, deny these same rebates to people with the higher incomes.

The reimbursements would be substantial sums, possibly around $400-500 per check every month. They would be receiving the rebate from taxes they would otherwise be paying for the essentials of life and add it to their income; the lost revenue would be recovered by repeal of the Bush tax cuts. This way, they would be paying no taxes at all at the federal level. The improvements would be significant; right now, the poor are receiving nothing. My proposal is the first of its kind in history: the poor receive the rebates that they would otherwise lose in income-based tax code. It is truly helping the poor. The FairTax would change the dynamic, turning a country that spends beyond its means—and is deep in debt—into a country that saves and has more capital to invest. And for the first time, we would see a rejuvenation of the nation and have the capital to turn around and refurbish our entire infrastructure. The academics project a growth factor of 10 percent. Can you imagine the level of prosperity that would bring about? With the proper legislative leadership, this could all help to decrease our dependency on carbon fuels with more personal capital. We could make serious cuts in our gasoline consumption within five years and possibly get off of carbon-based energy within ten years. These are some of the possibilities that we could enjoy if we had real leadership and had the people in power ready to carry out these policies that the current leadership would never present to the American people.

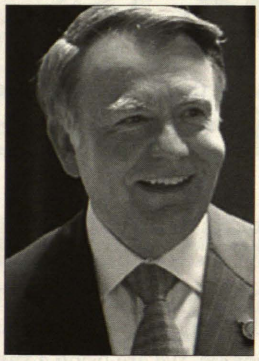
> *"The only change that has been offered in this campaign is what I have suggested: to empower the American people."*

You ran a notable commercial in which you stared at the camera for over a minute and then threw a rock into a pond before walking off into the distance along the shore. What did the ad mean? Is this perhaps a comment on how presidential candidates can make a "big splash" but have nothing important to say?

No, quite the contrary, what this metaphor meant was very different. Three young men had designed this whole thing, and I merely followed their instructions. It is a metaphor for when you look for what will fulfill your life and find it and do it. You hope that you can create ripples with your life that affect other people positively before you go on to your demise. That's a metaphor that they applied to my candidacy for president, and it's a metaphor that you can apply to your own life and any other human being who chooses to do something serious with his or her life. P

Drawing the Party Line

An interview with Robert M. "Mike" Duncan



Conducted by Matthew Ellison

***Robert M. "Mike" Duncan** is currently the Chairman of the Republican National Committee. He has held a wide variety of positions at the RNC, most recently as General Counsel and before that, Treasurer. During his career, he has served on the campaigns of the last five Republican presidents. In 1989-90, he worked in the George H. W. Bush White House as assistant Director of Public Liaison. President George W. Bush appointed him to the President's Commission on White House Fellows in 2001 and nominated him to the Tennessee Valley Authority Board in 2006.*

What went wrong for Republicans in 2006, and how can you turn it around in 2008?

Unfortunately, our party lost sight of some of our core values in 2006, but we learned an important lesson during that election: when Republicans stick to our principles of lower taxes and limited government, strong national defense, and individual responsibility, we win elections. And that's how we will succeed in retaining the White House and gaining traction in Congress this November.

What do you think will be George W. Bush's defining legacy?

History will show George W. Bush as a president who provided hard-working American families with critical tax relief, implemented the nation's most comprehensive education reforms in a generation, and took unprecedented steps to protect our country in the wake of the devastating 9/11 terrorist attacks.

John McCain, the presumptive Republican presidential nominee, disagrees with the majority of the party on immigration, campaign finance reform, the original vote on the Bush tax cuts, an amendment to the Constitution banning gay marriage, stem cell research, and torture, among other issues. Can he bring the party together in the fall?

Voters are going to elect Senator McCain as our nation's next president because he has demonstrated the judgment and the experience to lead our country as Commander-in-Chief.

John McCain wants to make the Bush tax cuts permanent, eliminate the AMT, and reduce burdensome taxes on American businesses. He honorably served our country for 22 years in the U.S. Navy and he is dedicated to staying on offense to win the War on Terror. John McCain will protect traditional values and he believes that marriage should be defined as a union between one man and one woman.

Compare this to the Democrats, who have each proposed nearly a trillion dollars in new government spending and voted for the largest tax increase in American history. Both Senators Clinton and Obama voted against critical funding for our troops and have called for a timeline in Iraq that would telegraph our intentions to the terrorists. Instead of standing up for our nation's security, Clinton and Obama have pandered to radical liberal extremists such as MoveOn.org.

Clearly, there will be a stark contrast between either of the Democrat [sic] candidates and Senator John McCain this November.

What do you think Senator McCain should look for in a potential running mate?

I'll leave that up to Senator McCain to determine, but I am confident that he will choose a qualified and complementary running mate.

On January 24, you said, "With Senator Clinton, it comes down to trust." Whether or not she is the Democratic nominee, why do you not think voters should trust Hillary Clinton?

Senator Clinton has clearly demonstrated that she will say or do anything to get elected. Contrary to her claim to support fiscal responsibility, Clinton has proposed over 600 billion dollars in new government programs and can't explain how she will pay for it without burdening Americans with new taxes. And after promising to provide the necessary resources for our military leaders, Clinton voted against funding for our men and women fighting in harm's way. Unfortunately, the only thing we can trust about Senator Clinton is how badly she wants to be president.

In Democratic primaries thus far, Barack Obama has at-

A Crucial Demographic: Polling indicates that Latinos are increasingly likely to support Democrats, but Duncan is confident they will break to John McCain this fall. (Adalberto Roque/AFP/Getty Images)

tracted significant support from independent voters and even some Republicans. If he is the Democratic nominee, do you worry about him being difficult to beat in the general election?

According to several recent surveys, more Democrats say they would vote for John McCain than Republicans say they would vote for Barack Obama. Our internal polling conducted earlier this year shows a similar trend: among independents, McCain beats Obama among many key swing voter groups, including suburban voters, rural voters, and seniors. That's because Americans of all walks of life know that Barack Obama is too liberal and inexperienced to be our nation's Commander-in-Chief.

A lot has been said about Howard Dean's 50-State Strategy on the Democratic side, but in 2006, Republicans only won one House seat in New England, which is held by Chris Shays (R-CT), who is perhaps the most liberal Republican in the House. What can be done to strengthen the party in New England and other places where it has struggled recently?

The Republican Party is prepared to compete in every state, and Senator McCain has a broad appeal to voters of all walks of life. In contrast, the Democrat-led Congress is facing the lowest approval ratings in history, and their presidential candidates are still battling to decide which liberal Senator can impose more burdensome taxes hikes or siphon off funding for our troops faster.

William F. Buckley, Jr., the creator of the National Review magazine and perhaps the father of modern conservatism, died recently. What is his legacy in the Republican Party?

The news of William F. Buckley Jr.'s death was saddening to the conservative community. Mr. Buckley had a tremendous impact on Yale as a student there, and later had a tremendous impact on the conservative moment and the Republican Party. He committed decades of his life to defending our principles and shaping the future of our party. His contributions to the conservative movement in America are countless, and we are comforted to know Mr. Buckley's legacy is carried on through the publication he founded, *National Review*.

Polling data and voting data indicate that young voters lean significantly Democratic. Is this cause for concern about the future of the Republican Party?

We are confident that voters—both young and old—will support Republicans this November because our party is focused on maintaining lower taxes for hard-working Americans, keeping the government out of our hair, and fostering the innovation and creativity that makes our country unique. We are using a variety of methods to reach young voters with our party's core messages, including our website, YouTube, and social networking sites, just to name a few.

The fastest growing ethnic group in the U.S. is Latinos. Do you worry that the positions on immigration taken by many Republicans will push Latinos even further into the Democratic column, thus hurting Republicans' chances in many key states in the future?

Hispanic voters will continue supporting Republicans and Senator McCain's candidacy because of our shared values. We stand together in the pursuit of the American dream. This includes lower taxes for families and small businesses, educational opportunities for Americans of all walks of life, and traditional family values. The Democrats, in contrast, are talking about imposing burdensome tax increases on hard-working Americans, choking off funding for our men and women in uniform, and drastically growing the size of government. Their policies could threaten to slow the development of Hispanic businesses and entrepreneurs and hurt those that create jobs for so many in the Hispanic community.

The first section of the Republican Party Platform reads, "In 1860, Abraham Lincoln of Illinois carried the Republican banner in the Presidential election and was elected the Party's first President. He became our nation's greatest leader...and one of our Party's greatest heroes." If Abraham Lincoln were alive today, I assume you think he would be a Republican. Why?

Abraham Lincoln was a true American hero, whose life and service was founded on strong principles: freedom, justice, equality, and hope. These are the same principles to which the Republican Party still adheres. Even in wartime, Lincoln never abandoned the ideals that were the foundation of his own strength and upon which he had been elected. We continue to measure ourselves by these same principles to ensure his legacy lives on.

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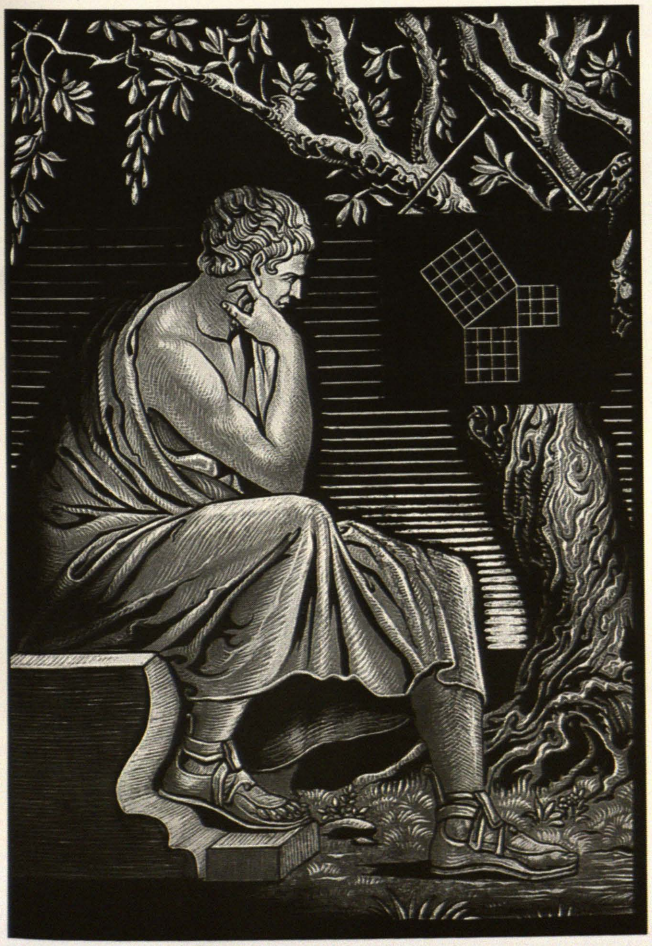

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- End-of-Life Issues
- Neuroethics: Scientific, Moral, Political, and Religious Inquiries
- Perspectives on Aging
- Public Health Ethics
- Religious Issues and Bioethics
- Research Ethics
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For further information about ISPS and the Bioethics Center, please visit www.yale.edu/isis/bioethics

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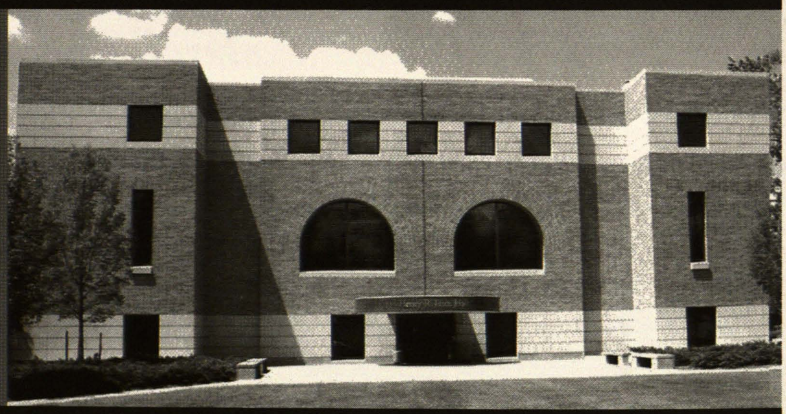

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